



PARLIAMENTARY DEBATES

OFFICIAL REPORT

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Correction of errors of substance may be made only on the floor of the House with the permission of the Speaker. However, correction of typographical or grammatical errors which Members suggest for the Bound Volumes which will be compiled at the end of the Meeting may be clearly marked in the Daily Report, and the copy containing the corrections submitted at the Editor's Office, Parliament House, not later than four clear days after the publication of the Daily Report.

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

SECOND MEETING, 2025

Friday, 25th July, 2025

*The House met at the Chamber of
Parliament at 12:44 p.m.*

[HON SECOND DEPUTY SPEAKER,
MR ANDREW ASIAMAH AMOAKO,
IN THE CHAIR]

[PRAYERS]

**VOTES AND PROCEEDINGS AND
THE OFFICIAL REPORT**

Mr Second Deputy Speaker: I think the former Minority Chief Whip is so enthused with the position that he does want to even abandon that post, in spite of the bigger post of being the Minister for Roads and Highways.

Anyway, Hon Members, let us turn to the item numbered 5, Correction of *Votes and Proceedings* and that of the Official Report. We start with the *Votes and Proceedings* of Thursday, 24th July, 2025.

Page 1...9?

Yes, Available Leader and Member for Afadjato South?

Mr Frank Afriyie: Mr Speaker, I think what we have today will qualify to be called Bible; it is big enough.

On page 9, the item numbered (iv), the real spelling of the name of the Governor comes without “h”, thus, “Asiamah”, there is no “h” attached to it so if the Clerks-at-the-Table would take note and correct accordingly.

Mr Second Deputy Speaker: I am Asiamah and I know his “Asiamah” is without “h”. That is right. So, Table Office, kindly acknowledge that correction.

Page 10...16?

Mr Afriyie: Mr Speaker, page 16, the item numbered (xii) instead. On the very last line, “Sefwi Wiawso Forest District of the Western Region”. I think Wiawso is in Western North Region so if we are talking about the administrative region, then the records ought to be corrected.

Mr Second Deputy Speaker: Well, this is an administrative region but I think we are talking about forest regions. Table Office, check because if it is a forest region, then that might be right.

Mr Afriyie: Subsequently, it has been acknowledged properly as Western North. So, if the Clerks would check, as you directed.

Mr Second Deputy Speaker: Table Office, just take note of that.

Page 17...22?

Mr Afriyie: Mr Speaker, given the volume of what we are correcting, I think if you could direct consequentially so that the Clerks-at-the-Table would take a total look at the Forest Districts and the Regions they belong to because we have here, “Tarkwa District of the Central Region”

Mr Second Deputy Speaker: Tarkwa of the Central Region?

Mr Afriyie: That is page 22 (xli), the very last line, “Tarkwa Forest District of the Central Region”.

12.54 p.m.

Mr Second Deputy Speaker: That is what I am saying, I am not challenging you, but Table Office, take note of it. It could be that indeed, Tarkwa within the forest region may fall within it. So, just check.

Page 23...82—

Yes, available Leader, and Member for Afadjato South?

Mr Afriyie: Mr Speaker, just a minor error for correction. Under paragraph 3 of page 82, with the Motion that has been moved by the Minister for Lands and Natural Resources, Mr Emmanuel Armah Kofi Buah, there is some form of confusion with the one who seconded. The record has it here that it was seconded by Mr Richard Acheampong and Mr Sanja Nanja. I was here

yesterday when we considered this. So, almost all throughout, the Vice Chairman was the seconder. But then, the Clerks-at-the-Table could check, so that there could be one seconder. The records have it that we have two people who seconded the Motion.

Mr Second Deputy Speaker: Table, kindly check the records to see who was actually the seconder.

Page 83...103—

Mr Afriyie: Mr Speaker, on page 103, the item numbered 3 (xviii), the word “Mangement” has inadvertently been spelled wrongly. There is an omission of the letter “a”.

Mr Second Deputy Speaker: Very well. Table, kindly take note of that correction.

Page 104...107

Hon Members, in the absence of any further corrections, the *Votes and Proceedings* of Thursday, 24th July, 2024, is hereby adopted as the true records of proceedings.

Mr Second Deputy Speaker: Hon Members, I have two sets of *Official Reports*. The first one is dated Wednesday, 16th July, 2025.

[No correction was made to the Official Report of Wednesday, 16th July, 2025]

Mr Second Deputy Speaker: Again, we have the Thursday, 17th July, 2025 edition of the *Official Report*.

[No correction was made to the Official Report of Thursday, 17th July, 2025]

Mr Second Deputy Speaker: Yes, Leadership? Available Leader, when I refer to Leadership, you are also part—
[Laughter]

Mr Frank Annoh-Dompreh: Mr Speaker, we have to help our Colleague who is standing in our stead. I must commend him. He has shown brilliance and potential.

Mr Second Deputy Speaker: He is diligent.

Mr Annoh-Dompreh: Yes, very diligent.

Mr Speaker, may I advise the available Leader to come under Order 67(2) and seek the leave of the Speaker, so that we could vary the order of Business. We have related to the Minister. Then, we could go and take the item numbered 1(c) on the Order Paper *Addendum*.

1.03 p.m.

Mr Afriyie: Mr Speaker, may I adopt the words of the Minority Chief Whip as if they were mine. In doing so, may I plead that you vary the order of Business in accordance with Order 67 (2), so that

we take the item numbered 1(c) on the Order Paper *Addendum*.

Mr Speaker, I so submit. *[Hear! Hear!]*

Mr First Deputy Speaker: Hon Members, as the Minority Chief Whip said, I think he is showing a lot of promise.

The leave is granted and we will now move to public Business, so we have been invited to take the Order Paper *Addendum*, Presentation of Papers. We are taking the item numbered 1(c) instead.

So, Chairman of the Committee on Roads and Transport.

PAPERS

By the Chairman of the Committee —

- (i) Report of the Committee on Roads and Transportation on determination of the urgency of the Road Maintenance Trust Fund Bill, 2025.
- (ii) Report of the Committee on Roads and Transportation on the Road Maintenance Trust Fund Bill, 2025.

Ms Cudjoe: Mr Speaker, I pray if the Roads Minister can stand in for Minister of Health to lay the item numbered 8(a) b(i) and (ii) for us. The items

numbered 8(a), (b) and (c); the Minister of Roads and Highways is here, so that he does that for us.

Mr Annoh-Dompreh: Mr Speaker, we do not have a problem acceding to that request, but it should be done chronologically. It should be done one after the other. So, if the Deputy Whip will rather couch her request that the Minister for Roads and Highways should, instead, take item 8(a)(i) and when we are done, she can proceed to make another request if same Minister will take the item 8(b) and so on and so forth. She appears to be lumping the (a) and the (b) together. So, let us do the first one and then we can proceed to the second.

Ms Cudjoe: Mr Speaker, I pray the Minister for Roads and Highways lay the item numbered 8(a)—[*Interruption*].—The Minister is on his way; he will soon get here.

Mr Second Deputy Speaker: Are we doing 8(a)? The leave is granted. Minister, you may do so on your behalf of your Colleague.

By the Minister for Roads and Highways on behalf of the Minister for Health —

- (i) Annual Statement by the Audit Committee of the Mental Health Authority for the year 2024.
- (ii) Annual Statement by the Audit Committee of the Ghana AIDS Commission for the year 2024.

Referred to the Committee on Health.

Ms Cudjoe: Mr Speaker, I will plead that the Minister of Roads and Highways lay the item number 8(b) on behalf of the Minister for Tourism and Arts and Culture.

Mr Second Deputy Speaker: Hon Members, the leave is granted. Minister for Roads and Highways, you may do so on behalf of your Colleague.

By the Minister of Roads and Highways on behalf of the Minister on behalf of the Minister for Tourism, Arts and Culture —

Annual Statement by the Audit Committee of the Ghana Tourism Authority for the year 2024.

Referred to the Committee on Trade, Industry and Tourism.

Ms Cudjoe: Mr Speaker, I will plead that the Minister of Roads and Highways lay the items numbered 8(c)(i) to (xiv) for the Minister for Local Government, Chieftaincy and Religious Affairs.

Mr Second Deputy Speaker: Hon Minister for Roads and Highways, once again, do us the honours and do the presentation on behalf your Colleague.

By the Minister for Roads and Highways on behalf of the Minister for Local Government, Chieftaincy and Religious Affairs —

- (i) Annual Statement by the Audit Committee of the Akuapem North Municipal Assembly for the year 2024.
- (ii) Annual Statement by the Audit Committee of the Akuapim South Municipal Assembly for the year 2024.
- (iii) Annual Statement by the Audit Committee of the Atiwa East District Assembly for the year 2024.
- (iv) Annual Statement by the Audit Committee of the Amansie West District Assembly for the year 2024.
- (v) Annual Statement by the Audit Committee of the Atwima Nwabiagya North District Assembly for the year 2024.
- (vi) Annual Statement by the Audit Committee of the Akim North Municipal Assembly for the year 2024.
- (vii) Annual Statement by the Audit Committee of the Cape Coast Metropolitan Assembly for the year 2024.
- (viii) Annual Statement by the Audit Committee of the Ablekuma Central Municipal Assembly for the year 2024.
- (ix) Annual Statement by the Audit Committee of the Kwahu West

Municipal Assembly for the year 2024.

- (x) Annual Statement by the Audit Committee of the Asene Manso Akroso District Assembly for the year 2024.
- (xi) Annual Statement by the Audit Committee of the Korle-Klottey Municipal Assembly for the year 2024.
- (xii) Annual Statement by the Audit Committee of the Sagnarigu Municipal Assembly for the year 2024.
- (xiii) Annual Statement by the Audit Committee of the Gomoa West District Assembly for the year 2024.
- (xiv) Annual Statement by the Audit Committee of the Akrofuom District Assembly for the year 2024.

Referred to the Committee on Local Government and Rural Development.

1.14 p.m.

Ms Cudjoe: Mr Speaker, I plead that we return to the Order Paper *Addendum* and take the Motion numbered 7.

Mr Second Deputy Speaker: Very well. Hon Members, let me invite you to the item listed 7 at page 3 of the Order Paper *Addendum* – Motion. The Motion will be taken by the Chairman of the

Committee on Roads and Transportation.

Yes, Chairman?

Mr Isaac Agyei Mensah: Mr Speaker, respectfully, your Committee met with the Minister in connection with the Bill, the road—

Mr Second Deputy Speaker: Hon Chairman, you are to take the procedural Motion first.

Mr Annoh-Dompreh: Mr Speaker, I am sorry; I think the Chairman may be right because the Leader had called out that item, but we should have been on the Order Paper *Addendum* and started with the procedural Motion, which is the Motion numbered 6 at page 2.

Mr Second Deputy Speaker: Is that on the main Order Paper?

Mr Annoh-Dompreh: Mr Speaker, it is on the Order Paper *Addendum*. So, it is the Motion numbered 6 at page 2 of the Order Paper *Addendum*.

Mr Second Deputy Speaker: Very well. Yes, Chairman?

MOTIONS

Suspension of Standing Order 104(1)

Chairman of the Committee (Mr Isaac Agyei Mensah): Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders

which requires that a Motion shall not be debated until at least two sitting days have elapsed after the notice to move the Motion is given, the Motion for the adoption of the Report of the Committee on Roads and Transportation on the determination of the urgency of the Road Maintenance Trust Fund Bill, 2025 may be *moved* today.

Ranking Member of the Committee (Mr Kennedy Nyarko Osei): Mr Speaker, I rise to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr Second Deputy Speaker: Chairman, you can now take the Motion numbered 7.

Mr I. A. Mensah: Mr Speaker, the Committee was accordingly referred to in respect of the Road Maintenance Trust Fund Bill, 2025—

Mr Second Deputy Speaker: Chairman, normally, you have to move the Motion first, then you add the Report of the Committee. I do not know whether you understand what I am saying. Normally, you move the Motion first, that is “I move that so and so”, then afterwards, you seek leave to present the Report of the Committee.

Mr I. A. Mensah: Mr Speaker, I move that the Motion be adopted, and in doing so, I respectfully read the Report of the Committee accordingly.

Mr Annoh-Dompreh: Mr Speaker, we all need to help one another. We have moved the procedural Motion, which is the item numbered 6. Now, we are going on to the item numbered 7, which is the substantive Motion.

So, Mr Speaker, what the Chairman needs to do is to read everything there, but there are two processes: he can either read everything or say that he rises to move that the item numbered 7 at page 3 of the Order Paper *Addendum* be moved, he so moves. So, we have two options; I would advise him to read everything there, then afterwards, he can present the Report.

Mr Second Deputy Speaker: Thank you, Minority Chief Whip.

Hon Members, we learn from one another, so, it is good that—

Determination of the Urgency of the Road Maintenance Trust Fund Bill, 2025

Chairman of the Committee (Mr Isaac Agyei Mensah): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee on Roads and Transportation on the determination of the urgency of the Road Maintenance Trust Fund Bill, 2025.

Mr Speaker, in so doing, I present the Report of the Committee accordingly.

Introduction

The Road Maintenance Trust Fund Bill, 2025 was presented to Parliament and read the first time by the Hon Minister for Roads and Highways, Mr Kwame Govers Agbodza, on Thursday, 24th July, 2025. The Bill was subsequently referred by Mr Speaker to the Committee on Roads and Transportation for consideration and report, in accordance with Article 103(3) of the 1992 Constitution and Orders 165 and 253 of the Standing Orders of Parliament.

Following the referral, the Committee met with the Hon Minister for Roads and Highways and officials of the Ministry on Friday, 25th July, 2025, and considered the referral. The Committee hereby presents this Report to the House in accordance with Article 106(5) and Orders 166 and 215 of the Standing Orders of the House.

Reference Documents

The Committee referred to the following documents during its deliberations:

- i. The 1992 Constitution of Ghana
- ii. The Standing Orders of Parliament of Ghana
- iii. The Road Fund Act, 1997 (Act 536)

Background

The road infrastructure of Ghana is critical to national development because it enables connectivity to business, education, health and other essential services. Despite its importance to national development, efforts to maintain roads are plagued with persistent challenges. These challenges include irregular financing, inadequate accountability for released funds, disparities in regional investment and weak integration of digital asset management systems. As a result, road conditions continue to deteriorate, vehicle operating costs have risen and public safety has been adversely affected.

In view of the challenges faced, the Road Fund Act, 1997 (Act 536) was enacted in 1997 to establish the Road Fund to finance routine and periodic maintenance and the rehabilitation of public roads. Over the years, the Road Fund has faced institutional and legal challenges, including inequitable disbursements, vulnerability to lawsuits, garnishment of the bank accounts of the Fund, as well as weak transparency and accountability.

In order to address the challenges, the Bill seeks to overhaul and enhance the financing and oversight of road maintenance by establishing the Road Maintenance Trust Fund which is designed as a ring-fenced, performance-linked vehicle for financing routine, periodic, emergency and minor

rehabilitation works on public roads, bridges and associated infrastructure.

Purpose of the Bill

The purpose of the Bill is to establish the Road Maintenance Trust Fund to provide sustainable financing for the maintenance and rehabilitation of public roads, bridges and related infrastructure in the country.

Provisions of the Bill

The Road Maintenance Trust Fund Bill, 2025 contains a total of 57 clauses.

Justification for the Bill

Urgency of the Bill

The Hon Minister informed the Committee that the Bill is being laid before the House under a certificate of urgency. According to the Hon Minister, the deteriorated condition of many roads across the country poses immediate threats to public safety, impeding economic activities and escalating road maintenance costs. The Committee is of the view that delays in establishing a dedicated and efficient funding mechanism, as proposed in the Bill, will worsen the current infrastructure deficit and increase long-term rehabilitation expenses. Considering the Bill under a certificate of urgency ensures that critical funding mechanisms are promptly established to address urgent road repair needs, prevent further deterioration and support socio-economic development.

Given the pressing need to address deteriorating road conditions and ensure the safety and reliability of the national road network, the Committee finds the rationale for invoking the certificate of urgency to be well-founded. The timely passage of the Bill will enable the Ministry responsible to implement essential interventions without delay, thereby serving the best interest of the public and contributing to national development.

Conclusion

In view of the urgency associated with the Bill, particularly given the impending adjournment of the House, the Committee supports its consideration under a certificate of urgency.

The Committee in its deliberations, therefore, considered the Bill is of an urgent nature and that it should be taken through all the stages in one day in accordance with Article 106(13) of the Constitution and Order 160(3) and (4) of the Standing Orders of the House.

The Committee unanimously recommends to the House to adopt this Report in accordance with Article 106(13) of the 1992 Constitution of the Republic of Ghana and Order 160 of the Standing Orders.

Respectfully submitted.

Mr Second Deputy Speaker: Hon Members, the Motion has been moved. Now, let me turn to the Ranking Member to second the Motion.

Ranking Member of the Committee (Mr Kennedy Nyarko Osei): Mr Speaker, I rise to second the Motion ably moved by my Chairman and in so doing, I would like to add a few words to the Report of the Committee.

Mr Speaker, your Committee met with the Ministry and the agencies to determine the urgency of the Road Maintenance Trust Fund Bill, 2025 which was laid in this House yesterday. After carefully listening to the Minister, the Committee is of the view that this Bill needs to be taken under a certificate of urgency, so that the Ministry can have the Act in place and set up the needed mechanism to be able to manage the funds.

Mr Speaker, as we speak now, because of the delays in passing this Bill, most of the contractors that are working under the Road Fund Project have not been paid because there is no governing board in place to ensure the disbursement of allocation of the Road Fund that has been earmarked for the road project.

I believe we need to get it done now, so that the Minister will be able to set up and have the governing board in place, then they can start with the disbursement of funds to various contractors that have performed activities under the Road Fund. So, Mr Speaker, I would like to urge the House that this is a Bill that we cannot reject. This is a Bill that needs our urgent attention.

Moreover, Mr Speaker, we will be rising next week. I do not know which day we will be rising, but if we are not

able to consider this Bill now, what it means is that we would have to wait until the ending of October. I am sure by that time, all the contractors will leave site and the road will get worse. So, we have to spend some time, as a House, to make sure we are able to work on this Bill and get it passed today before we adjourn.

Mr Speaker, I thank you for the opportunity.

Question proposed.

Mr Second Deputy Speaker: Hon Members, so, this is what we are looking at now: that the Motion be taken as a matter of urgency. Yes?

Alhaji Habib Iddrisu: Mr Speaker, we confided in our Colleague across the aisle, so that we would take one on each Side plus Leadership because this is just on the urgency of the Bill, and not the substantive Bill itself.

1.24 p.m.

Mr Second Deputy Speaker: Let me go to the Hon Member for Kpandai.

Mr Matthew Nyindam (NPP — Kpandai): Mr Speaker, thank you for the opportunity to also contribute to the Motion moved by the Chairman of the Committee.

Mr Speaker, I want to support this Motion, because as a House and as a nation, we all know the importance of roads. It is an undeniable fact that if we do not do something quickly on our

roads, especially, this season that the rains have started, most commuters are suffering. I want to support that this particular Bill or this particular Motion be taken under a certificate of urgency.

Mr Speaker, having said this, I want to draw the House's attention to a growing trend. Most of the Ministers today quickly run under certificates of urgency in this House and if we are not lucky, we will be abusing this particular privilege. Inasmuch as I agree that there will be times that we have to take Motions under certificates of urgency, it should not be the norm. Although I support this particular one, I want to let the Ministers know that, as a House, we need to do things in a normal form. We should just be using this opportunity wisely; else we will be abusing it. Every reason is tangible. Every Minister will come here and will want to always come under certificate of urgency, and we should look at it.

But having said this, I strongly believe that roads are important and the Road Fund has to be established to give the Minister opportunity so that disbursements can be done to support the contractors.

But I also want to urge the Minister that inasmuch as we support him, we will urge him that, if it is done as early as possible, he should try and support the contractors that he can, so that work can commence.

Thank you very much, Mr Speaker.

Mr Second Deputy Speaker: Thank you very much.

Yes, Hon Member for Afadjato South?

Mr Frank Afriyie (NDC — Afadjato South): Thank you, Mr Speaker. Mr Speaker, it is obvious your Committee has done an excellent job as far as the Road Maintenance Trust Fund Bill is concerned. Mr Speaker, the importance of roads in our national development cannot be overemphasised; from education to health, agriculture to industry. We are all very much aware of its importance and significance.

Mr Speaker, the issue that excites me most for which reason I will call on the House without any delay to consider this particular Bill under certificate of urgency, is the fact that it would introduce equity to the attention that we give to our roads nationwide. Mr Speaker, there is a common phenomenon where certain parts of this country, every now and then, you see that Government after Government, we keep laying asphalt while the rest of the districts are there. Most of the districts that are without roads are coincidentally the production zones of the country. So today, it is not surprising that food is so cheap at the production centres, but they are so expensive at the centres where we consume them. The only thing we can do is to consider this Bill, give power and authority to the Road Fund for the Board to be constituted so that contractors can be given the needed attention for us to have roads to bring food from the

production centres to city where we consume.

Thank you, Mr Speaker.

Mr Second Deputy Speaker: Thank you very much. Leadership?

Alhaji Habib Iddrisu (NPP — Tolon): Thank you, Mr Speaker. Mr Speaker, as much as the—

Mr Chiwitey — rose —

Mr Second Deputy Speaker: Are you up on your feet?

Did you want to comment?

Anyway.

Alhaji Iddrisu: Mr Speaker, the agreement was one from each Side and Leadership so that we can move.

Mr Speaker, like I was saying, all intent and purposes of the Bill is good. If you check the Report, it says with regard to the purpose of the Bill that:

“... is to establish a Road Maintenance Trust Fund to provide sustainable financing for the maintenance and rehabilitation of public roads, bridges and related infrastructure”.

Mr Speaker, my difficulty with this Bill is not the Bill itself but the form in which the Bill is being introduced into the House—certificate of urgency. Minister, I do not think that the Bill, as

Determination of the Urgency of the Road Maintenance Trust Fund Bill, 2025

good as it is, and we all need the Bill, we could at least bring it through the normal form. Because there is already delay in constituting the Road Fund Board and that has delayed a lot of payments and other things. The Road Fund Board would have been able to help in the payments of many of the road contractors. Majority of road contractors are already off site now. Even though this is good, they could have at least constituted the Road Fund Board which would have been functional before the introduction of the Road Maintenance Trust Fund Bill. Now bringing it under certificate of urgency, within this Meeting alone, we have had too many Bills passed under certificates of urgency. I think that Parliament is abusing the certificate of urgency in terms of introducing Bills, which we need to do diligent work in whatever we have to do. This will further delay the payment to road contractors. They have not formed the Road Fund Board and they are introducing the Road Maintenance Trust Fund Bill. The Bill will be passed and they have to now constitute it and now look for money to pay.

Mr Speaker, the reasons that are being attributed in terms of the justification of the Bill is an indication as to what we should do. As much as the Bill itself is good, for the urgency, we need to look at it critically so that moving forward, we do not always have to introduce Bills into this House through a certificate of urgency.

Mr Speaker, I want to draw the Minister's attention to the reasons that he has attributed to the urgency of the Bill and what he intends to do, I think that it is good and will help strengthen what we want to do in the road sector.

I think this is going to replace the Road Fund—that is my thinking. If it is not so, that is another thing you can clarify. But at the end of the day, when a formula is brought to Parliament, then we will be able to have a look at it so that we can all be participants.

I do not think this Bill will be like how the Road Fund used to function, where we have 70 or 30 per cent from the other sectors coming for them to determine how road contractors are being paid. This Bill will bring clarity as to how road contractors will be paid and should be prioritised in terms of payment. Since Members of Parliament will approve the formula, I think it is a good one.

Mr Speaker, I support the Bill so much, but I do not think that it should have come under a certificate of urgency.

Thank you, Mr Speaker.

Mr Second Deputy Speaker: Yes, Majority Leadership?

Ms Comfort Doyoe Cudjoe (NDC — Ada): Thank you, Mr Speaker. Mr Speaker, this is a Bill that we do not even need to complain about because we need it urgently. So, if it is coming under the certificate of urgency, it is in the right direction.

Mr Speaker, this is a Minister who is always serious and ready to work and he is always in the Chamber. Mr Speaker, he is ready to fix our roads and we need this Bill so that he can go ahead and do diligence to our roads. Even today, at the Committee's meeting, he was there when there was pressure from Ada. They were calling on why they did not hear their name—roads from Kasseh to Ada Foah; Totope to Otrokpe and others. All the roads are bad. So, if we would delay on this Bill, it would be a problem for us.

Mr Speaker, today I have to be in Ada because next week is Asafotu and I have to meet the Chiefs. But because of the nature of our road in Ada, I would need this Bill and I need to be here to make sure it is passed so that our roads fixed.

1.34 p.m.

Mr Speaker, let us all support and make sure we pass it today for the Hon Minister to form the Board and ensure he brings all the contractors back to the road. We need to work before we can fix our roads. So, Mr Speaker, I support this Bill and I am urging everybody in this House to support it. We should all sit in the Chamber and make sure we pass it today. So, I am assuring the people of Ada that their roads will soon be fixed. So, they should all be praying that this Bill is passed today and we will make sure the roads are fixed. *[Interruption]* Yes, I know it is not only Ada Roads, but I am telling you today that I have a meeting with my Chiefs today, but because of this Road Bill and because I want my road to be fixed in Ada, that is

why I could not go and I am here. Other roads and Ada roads will be fixed. So, let us all support it. So, I am pleading with the Chiefs that I could not meet them today because we need to fix our roads and this Bill must be passed and I am here to support the Bill to ensure we pass the Bill for our roads to be fixed. So, very soon, Ada will see changes.

Mr Second Deputy Speaker: Hon Leader, the angle of your discussion is a bit controversial. Everybody here will have wished to hear the roads in his or her constituency mentioned. My constituency was not mentioned and the Hon Minister is laughing.

Question put and Motion agreed to.

Ms Cudjoe: Mr Speaker, on Order Paper Addendum, the item number 8 on page 3.

Mr Second Deputy Speaker: Is the Report ready?

Ms Cudjoe: Mr Speaker, the Report is ready. We are in a hurry to fix our roads.

Mr Second Deputy Speaker: I do not have the Report so I cannot call it.

Ms Cudjoe: They are bringing copies but it has been uploaded on our consoles so Hon Members should watch their consoles.

Mr Second Deputy Speaker: Very well. The Hon Minority Chief Whip has okayed it. So, we will turn to page 3, the Motion numbered 8.

BILLS — SECOND READING**Road Maintenance Trust Fund Bill,
2025**

**Minister for Roads and Highways
(Mr Kwame Govers Agbodza)**

(MP): Mr Speaker, I rise to *move*:

That the Road Maintenance Trust Fund Bill, 2025 be now read *a Second* time.

Chairman of the Committee (Mr Isaac Adjei Mensah): Mr Speaker, I beg to second the Motion and in so doing, I respectfully present your Committee's Report but I beg to request—

Mr Second Deputy Speaker: Hold on, let me listen to the Hon Minority Chief Whip?

Mr Annoh-Dompreh: Mr Speaker, with respect, the Chairman cannot second. This is Second Reading in line with Order 105. He should be speaking in support of the Motion and present the Report. You cannot second at the Second Reading.

Mr Second Deputy Speaker: Very well. Hon Members we are all learning. So, Chairman, please support the Motion.

Chairman of the Committee (Mr Isaac Adjei Mensah): Thank you, Mr Speaker. I rise to support the Motion moved by the Hon Minister and in so doing present your Committee's Report.

Mr Speaker, in presenting the Report, there are minor issues that I need to get corrected. In line 10 on clause 8.2, *delete* “nomination or” as seen in the Report.

Mr Speaker, having said that, I want to make reference to the referral to the Committee. The Committee did meet and considered the Bill as such just as we considered the urgency of the Bill. Mr Speaker, we realised that our roads are in the state that we need to ensure that they are properly managed and properly sought after. This Bill will seek to bring sanity and ensure that there is sustainable funding for our roads across the country. And as Colleagues were commenting during the urgency presentation, we have to ensure that we have appropriate funding and sustainability in this sector.

Mr Speaker, the justification for this Bill, the proposed Road Maintenance Trust Fund Bill is that it is necessary to provide a dedicated and sustainable source of funding for the regular maintenance of Ghana's road network. This is undisputable and this is unchallenged. The current system is inadequate, leading to rapid road deterioration, increased accidents and high vehicle operating costs. Mr Speaker, in concluding, I respectfully submit that this Report be accepted and that the Road Maintenance Trust Fund Bill, 2025 be adopted. Thank you, Mr Speaker.

Introduction

The Road Maintenance Trust Fund Bill, 2025, was presented to Parliament and read the first time by the Hon Minister responsible for Roads and

Highways, Mr Kwame Governs Agbodza on Thursday, 24th July, 2025. The Bill was subsequently referred by the Rt Hon Speaker to the Committee on Roads and Transportation for consideration and report in accordance with Article 103 (3) of the 1992 Constitution and Orders 165 and 253 of the Standing Orders of Parliament.

Following the referral, the Committee met with the Hon Minister responsible for Roads and Highways and officials of the Ministry on Friday, 25th July, 2025 to consider the referral. The Committee hereby presents this report to the House in accordance with Article 106 (5) and Orders 166 and 215 of the Standing Orders of the House.

Acknowledgement

The Committee is grateful to the Hon Minister, and officials of the Ministry of Roads and Highways for attending upon the meeting.

Reference Documents

The Committee referred to the following documents during its deliberations:

- i. The 1992 Constitution of Ghana;
- ii. The Standing Orders of Parliament of Ghana; and
- iii. The Road Fund Act, 1997 (Act 536).

Background

Ghana's road infrastructure is critical to national development because it enables connectivity to business, education, health, and other essential services. Despite its importance to national development, efforts to maintain roads are plagued with persistent challenges. These challenges include irregular financing, inadequate accountability for released funds, disparities in regional investment, and weak integration of digital asset management systems. As a result, road conditions continue to deteriorate, vehicle operating costs have risen, and public safety has been adversely affected.

In view of the challenges faced, the Road Fund Act, 1997 (Act 536) was enacted in 1997 to establish the Road Fund to finance routine and periodic maintenance and the rehabilitation of public roads. Over the years, the Road Fund has faced institutional and legal challenges, including inequitable disbursements, vulnerability to lawsuits, garnishment of the bank accounts of the Fund as well as weak transparency and accountability.

In order to address the challenges, the Bill seeks to overhaul and enhance the financing and oversight of road maintenance by establishing the Road Maintenance Trust Fund which is designed as a ring-fenced, performance-linked vehicle for financing routine, periodic, emergency, and minor

rehabilitation works on public roads, bridges and associated infrastructure.

Purpose of the Bill

The purpose of the Bill is to establish the Road Maintenance Trust Fund to provide sustainable financing for the maintenance and rehabilitation of public roads, bridges and related infrastructure in the country.

Provisions of the Bill

The Road Maintenance Trust Fund Bill, 2025 contains a total of Fifty-Seven (57) Clauses:

Clauses 1 to 3 provide for the Road Maintenance Trust Fund.

Clauses 4 to 12 provide for the governance of the Fund.

Clauses 13 to 21 deal with the administration of the Fund.

Clauses 22 to 29 provide for financial matters of the Fund.

Clause 30 provides for the classification of road maintenance activities.

Clauses 31 to 34 deal with the allocation and disbursement of funds.

Clauses 35 to 37 deal with the planning and contracting framework.

Clauses 38 and 39 deal with matters on oversight and accountability.

Clauses 40 to 49 outline the offences under the Bill and their correlative penalties.

Clauses 50 to 57 cover miscellaneous matters.

Justification for the Bill

The proposed Road Maintenance Trust Fund Bill, 2025 is necessary to provide a dedicated and sustainable source of funding for the regular maintenance of Ghana's road network. The current system is inadequate, leading to rapid road deterioration, increased accidents, and high vehicle operating costs. Establishing the Fund will ensure timely maintenance, protect existing road investments, reduce long-term repair costs, and support economic growth through improved transport efficiency. The Bill promotes transparency, accountability, and long-term planning in road infrastructure management.

Additionally, the Bill seeks to introduce a modern, performance-based governance framework grounded in geo-referenced diagnostics, traffic data, and socio-economic impact assessments. The disbursement from the Fund will be linked to independently verified outputs and administered through integrated digital systems such as the Ghana Integrated Financial Management Information System (GIFMIS) and the Road Asset Management System.

Observations

The Committee, having carefully examined the Bill, made the following observations:

Urgency of the Bill

Following the presentation of the Bill, the Rt Hon Speaker directed the Committee to determine the urgency of the Bill. The Committee subsequently met and unanimously determined that the Bill is of an urgent nature and should be taken through all the stages in one day in accordance with Article 106(13) of the Constitution and Order 160(3&4) of the Standing Orders of the House. The House subsequently adopted the report on the urgent nature of the Bill.

Financial Impact Analysis

The Committee was informed that the Road Maintenance Trust Fund Bill, 2025 will not require significant additional resources from the consolidated fund.

The establishment of the Road Maintenance Trust Fund, as proposed in the Bill, presents a financially prudent and sustainable approach to addressing Ghana's persistent road maintenance challenges. Currently, the country faces a growing road infrastructure deficit due to delayed and inadequate maintenance, which has resulted in escalating repair costs, deteriorating road safety, and reduced economic efficiency.

The committee further noted that the financial impact analysis demonstrates that the Fund will create an expected and ring-fenced source of revenue potentially from levies on fuel, road user charges or vehicle-related fees dedicated solely to routine and emergency maintenance. This approach is expected to reduce the fiscal burden on the Consolidated Fund over time and ensure greater transparency and accountability in road sector financing.

Additionally, the Bill promises significant long-term cost savings. Regular maintenance is far less expensive than road reconstruction and helps preserve previous capital investments in road infrastructure. Improved road conditions will reduce vehicle operating costs for transport operators and commuters, enhance access to markets, particularly in rural and agricultural areas, and contribute to national productivity.

The Committee further notes that the implementation of the Fund will generate employment through maintenance contracts, while also restoring public confidence in the management of road infrastructure.

In light of these economic, social, and fiscal benefits, the Committee strongly recommends that the House considers the Road Maintenance Trust Fund Bill, 2025, as a critical and urgent intervention deserving immediate passage.

Clause 4 - Board of Trustees

The Committee in its deliberations noted that the proposed structure for appointing the Chairperson of the Board of Trustees under clause 4 of the Road Maintenance Trust Fund Bill, 2025, raises concerns about potential conflicts between the sector Minister and the Board Chairman. According to the Committee, past experiences in similar governance arrangements have led to friction, undermined effective oversight and affected the smooth implementation of the Fund's objectives.

The Committee unanimously agreed to retain the conventional appointment procedure and proposed that the appointment process should involve ministerial nomination or consultation to ensure coherence and avoid institutional conflict to promote effective governance, the Committee recommends a clear delineation of roles between the Minister and the Board and that the appointment process and reporting lines should be structured to promote collaboration, accountability, and functional harmony.

Proposed Amendments

The Committee after its deliberations proposed the following amendments to the Bill:

- i. Clause 4 - Amendment proposed- subclause (1) paragraph (d), after subparagraph (ii), insert

- ii. “(iii) Roads and Highways”

- iii. Clause 4 - Amendment proposed- subclause (1), paragraph (g), delete and insert as follows:

- iv. “(g) three other persons nominated by the President, at least two of whom are women.”

- v. Clause 8 - Amendment proposed- subclause (3), delete “seven” and insert “eight”

- vi. Clause 22 - Amendment proposed- paragraph (h), delete

Conclusion

The Committee after thoroughly examining the Road Maintenance Trust Fund Bill 2025, recommends that the House adopt its Report on the Road Maintenance Trust Fund Bill, 2025 in accordance with Article 106(13) of the 1992 Constitution of the Republic of Ghana and Order 160 of the Standing Orders.

Respectfully submitted.

Mr Second Deputy Speaker: Yes, Hon Members, before I invite the Ranking Member to speak, indulge me to acknowledge our children who have come from various points of the country to come and witness what is going on in the Chamber. The first school at the public gallery is Humanity Intellectual

Academy. They are being led by Dr Waheed Musah, he is the principal and the school is located in the Pru East constituency and they are 15 in number.

Do we have their MP here?

So, you have to welcome them. Very well. You can resume your seat.

Mr Emmanuel Kwaku Boam: Mr Speaker, Dr Waheed is a very industrious son of our land and has been here. In actual sense, the school is not located in Pru-East, but he is from Pru-East and the school is in Greater Accra here. So, he has done well for Pru-East and everywhere he goes, the light shines. Thank you very much, Dr Waheed. *[Hear! Hear!]*

1.44 p.m.

Mr Second Deputy Speaker: Then the school is supposed to be located in one of the constituencies in Accra.

Very well. You are welcome. The second school is Wa Technical Institute. They are being led by Wilfred Tiher, who is a teacher and the school is located in the Wa Central constituency and they are 25 in number.

So, you came all the way from Wa? *[Guests responded]*

When did you set off? You are welcome. Your Member of Parliament, who is a Minister, is not here.

Yes?

Ms Cudjoe: Mr Speaker, the Minister is on a different assignment.

Mr Second Deputy Speaker: Yes, I know.

Ms Cudjoe: We welcome all his students from Wa. They are all welcome.

Mr Second Deputy Speaker: So, you are most welcome. You may resume your seat now.

[Students of Wa Technical Institute were acknowledged]

Mr Second Deputy Speaker: The third school is Brent-Walker Montessori School and they are here with the leader, Mavis Donkoh, who is the headmistress. The school is located in the Awutu Senya East Constituency and they are 50 in number. I believe their Member of Parliament is not here currently. So, you are also welcome. You may resume your seat.

[Pupils from Brent-Walker Montessori School were acknowledged]

Mr Second Deputy Speaker: The fourth school is Essentials Haven School Complex. They are here with their leader, Tetteh Jonathan, who is a teacher. The school is located in the Bortianor Ngleshie Amanfro Constituency. They are 61 in number. So, that is your Member of Parliament.

Hon Member, I hope you take good care of them. So, you are welcome and you may resume your seat now.

[Pupils of Essentials Haven School Complex were acknowledged]

Mr Second Deputy Speaker: The fifth school is Christian Advantage Preparatory JHS. They are here with their leader, Owusu Boadu Kwabena, who is the administrator. The school is located in the Oforikrom Constituency. I think the Member is not here yet. They are 65 in number. You are also welcome. You may resume your seat now.

[Pupils of Christian Advantage Preparatory JHS were acknowledged]

Mr Second Deputy Speaker: The last school is Asafo Presby Basic School. They are here with their leader, Twum Ampofo Thomas, who is the headmaster. The school is located in the Abuakwa South Constituency. I think Dr Agyemang is here. They are 60 in number. Dr Agyemang, I hope you take good care of them. Very well. So, you are all welcome and we wish you well. You may resume your seat.

[Pupils of Asafo Presby Basic School were acknowledged]

Mr Second Deputy Speaker: Yes, Leader?

Ms Cudjoe: Mr Speaker, the Member of Parliament for Bortianor-

Ngleshie Amanfro is here. Let them see you.

Mr Second Deputy Speaker: Yes, he waved at them.

Mr Felix Akwetey Okle: Bortianor, we are fully represented here and I will make you feel very good. *[Hear! Hear!]*

Mr Second Deputy Speaker: Very well. Member of Parliament for Abuakwa South, do you want to say something?

Dr Kingsley Agyemang: Thank you very much, Mr Speaker. It is very instructive to know that that stretch of the road, Apedwa-Asafo—I am sure it will be captured in the Bill that we are laying now. So, I welcome you all to Parliament.

Thank you very much.

Mr Second Deputy Speaker: Hon Members, we return to the Motion that has been moved and seconded. So, now it is before the House for consideration.

Yes, Ranking Member?

Ranking Member of the Committee (Mr Kennedy Nyarko Osei): Thank you, Mr Speaker, for the opportunity to add a few words to the Report which has been presented by my Chairman.

Mr Speaker, this Report contains details or the rationale and the purpose or justification for this Bill to be passed by

this House. Previously, under the Road Fund Act, sector Ministers had been using their discretion in the disbursement of the Road Fund. Many times, they did so at the detriment of the rural constituencies or the districts. Most of the money, almost about 80 per cent, is spent in the capital cities, neglecting the rural communities.

Mr Speaker, this Bill seeks to ensure that we bring equity and fairness in the sharing of the Road Fund. With this Bill, there will be a sharing formula where Members of this House will be assured of a certain allocation to their districts or to their constituencies. I believe, like we have been doing for Ghana Education Trust Fund (GETFund) and National Health Insurance Scheme (NHIS), this is the time this House also needs to advert our mind to the management of this Fund. So, when we are able to pass this Bill, we will now cease to also have the power, because any time the Minister is seeking to appropriate any of the Fund, he will come to this House and this House will now approve the formula for sharing.

The Minister has already indicated that 40 per cent will be allocated to the various districts or constituencies, while 60 per cent will be utilised by the agencies under the Ministry. I think, for a start, it is a good thing. I want to encourage all Members to support this particular Bill.

Mr Speaker, we have gone through the Bill. We have taken time to consider the Bill. Mr Speaker — *[Interruption]* —

you have not been called by Mr Speaker. Hon Member, please, I have the floor.

Mr Second Deputy Speaker: Hon Ranking Member, why are you worried? You have the floor.

Mr Osei: Mr Speaker, so I believe we need to do it. We have taken time to consider all the various clauses in the Bill. We have done enough winnowing on the Bill. We have seen that there is not much amendment to be done to this Bill. There are only four amendments, so there are not many problems with this Bill.

Mr Speaker, I want to urge the House that we should be able to consider this Bill and pass it, so that they can form the Board of Trustees to be able to start the disbursement of the Funds.

Mr Speaker, I thank you.

Mr Second Deputy Speaker: Thank you very much. I can now catch the eye of —

Mr Patrick Boamah (NPP — Okaikwei Central): Mr Speaker, lately, when we hear the figure 60-40, we have to be very careful and alert, because in the Ranking Member's submission, he mentioned that the Minister said he was going to apply some 60-40 arrangement for constituencies and districts. It does not find any expression in the Report. Where is it in the Report? The Minister is here and this is a house of records. It is nowhere in the Report.

Mr Speaker, I know you have a copy of the Report on your table. Where is it in the Report, Ranking Member? What has the Ranking Member discussed with the Minister and the Chairman that we do not know? Mr Speaker, we need to know, because it is very serious. This document will go into the *Hansard*, and I cannot find any 60-40 arrangement, like it was done in the —

Mr Second Deputy Speaker: Is he proposing or is he speaking to the fact that it is something that has been captured by the Report?

Mr Boamah: The two of them – the former Ranking Member for the Committee on Road and Transportation, who is now the Minister for Roads and Highways, and the longest-serving Chairman of the Committee on Roads and Transportation, we do not know the arrangement, but we need to know. Hon Suhiyini is also there. I am not looking in his direction, but we need to know.

1.54 p.m.

Mr Second Deputy Speaker: Hon Patrick Boamah, my question is whether the Ranking Member is now proposing that we incorporate it in the Report or is he speaking to the fact that the Report has captured the 40-60 arrangement.

Mr Boamah: Mr Speaker, this is a matter of policy and the Ranking Member is in opposition.

Mr Second Deputy Speaker: Let me hear from the Ranking Member on whether he is now proposing this.

Mr Osei: Mr Speaker, it is something that I am proposing and I made that proposal in this House and the Minister that, once we are going to use a formula in determining the disbursement of that, then it should be 40-60 for a start, so that the Members can have the 40 and our constituencies or districts will also benefit from the Road Fund. That is what I am saying. It is in the purview of the House to accept or reject whatever proposal I am making.

Mr Second Deputy Speaker: Very well.

So, Hon Member, he is now making a proposal to the House. It is not something that is in the Report of the Committee.

Anyway, let me go to Hon Edem.

Mr Eric Edem Agbana (NDC — Ketu North): Thank you, Mr Speaker, for the opportunity to contribute to this very important Bill, which is the Road Maintenance Trust Fund Bill, 2025.

Mr Speaker, across the length and breadth of our country, the story is the same; our roads are deteriorating and constituents are always calling on us to ensure that we fix the road infrastructure in our communities. It is for this reason that I support this Bill because this Bill presents a structured financing model for

maintaining roads that are constructed in our communities.

Mr Speaker, one aspect of the Bill which is of interest to me is the fact that when we look at a justification for the Bill, it is that a digital platform will be provided to ensure the equitable distribution of funds in this Bill to ensure that communities are allocated enough resources based on the economic impact of roads that are in those communities and for Members of Parliament from constituencies that are largely producing food for our country. When one comes to my constituency, Ketu North, we are the biggest producers of rice as a district and we produce the best quality rice. But when it comes to Weta, Avalavi, Afife and all those communities where the best rice in Ghana is produced, the road infrastructure in those areas is very terrible.

So, knowing that this Fund will make allocation of funds based on the economic impact of those roads, I am certain that this Bill will set the tone for all those roads to be maintained properly and new ones constructed. I call on the honourable House to waste no time in approving this this particular Bill, so that we have legislation that will properly regulate how we maintain roads in this country and how resources are allocated for the construction of roads.

Mr Speaker, I humbly submit.

Mr Alhassan Tampuli Sulemana (NPP— Gushegu): Mr Speaker, ordinarily, I would not have made any

comments about this because the Ranking Member and the Chairman have already said everything about how important this Bill, as far as our road infrastructure is concerned. But Mr Speaker, what the Minister failed to do was to have labelled this appropriately, as we have done for One District, One Factory (1D1F); One Village, One Dam (1V1D). This one is one constituency, one road; he should have labelled it appropriately, so that, at least, it will go in his name. One day, we will remember him as the Minister for Roads and Highways who brought this.

Mr Speaker, one other thing that I think is very important, especially when the Committee was considering the Bill, is the fact that there is adequate provision in the Bill for the maintenance of traffic signals. That has been a major challenge for us and, largely, most of the time, when we find these traffic signals not functioning, we do not find any agency taking responsibility for it. Sometimes, we are told the district assembly is responsible for it and other times we are even told that the National Road Safety Authority (NRSA) is supposed to be maintaining those traffic signals.

Some are saying the Ministry of Roads and Highways and some say the Ministry of Transport. So, Mr Speaker, I am very confident that, with the passage of this Bill, there will be clarity as far as where to lay the responsibility in maintaining road traffic signals in this country. Sometimes, other agencies or district assemblies will construct the roads and, probably, not put traffic lights

there. I think that the Ministry should, as a matter of urgency, ensure that this becomes fully their burden, so that, at any point in time when we have need to call on somebody to remedy any malady, as far as the traffic signals are concerned, we know where to go.

Mr Speaker, with these few words, I would end here and hope that we take this Bill as it is advertised as a certificate of urgency and then do justice to it.

Mr Second Deputy Speaker: Hon Members, I am inclined to take one more from each Side. Today, we have a tall order of things to do, so let me go to Mr Chiwitey; then, I go to Dr Kabiru.

Mr Andrew Dari Chiwitey (NDC — Sawla-Tuna-Kalba): Mr Speaker, I appreciate the opportunity to make a very brief comment on your Committee's Report.

Mr Speaker, what I like about this Bill is that, under the justification for the Bill, paragraph two, if you may permit me to read:

“Additionally, the Bill seeks to introduce a modern performance-based governance framework grounded in geo-referenced diagnostic traffic data and socioeconomic impact assessment.”

Mr Speaker, this would be a perfect thing to do. One fact is also that all of us seated here need roads, including those in the Gallery. We need roads to our

houses, villages, and communities. And Mr Speaker, the road sector is one of the most important sectors that we have to govern very well. That is why I see this Bill to be very important in giving us that constant funding to maintain our roads.

The culture of maintenance in Ghana is a big problem, so if we have this source of funding that will have a Bill to govern it, then we are certain that, at any point in time, we will have some money to maintain our roads. For that matter, it would be an equitable system in such a way that the people in Sawla-Tuna-Kalba, Adaklu, and Ada will not be denied. We will all get our fair share. So, Mr Speaker, it is something that all of us must support without any doubt.

Once again, I thank you and I pray that this Bill, when in use, will help with our maintenance culture and we would have our roads well-maintained to save us from traffic accidents, increasing spare parts costs, and unnecessary deaths.

Mr Speaker, I thank you for the opportunity. God bless Ghana and God bless the person who came up with the idea that we should have this and that is H. E. John Dramani Mahama.

Mr Second Deputy Speaker: I will give the last slot to Dr Kabiru.

Dr Abdul Kabiru Tiah Mahama (NPP — Walewale): Mr Speaker, the Road Maintenance Trust Fund Bill comes to this House with a rationale.

The rationale is to provide sustainable ring-fenced funding sources for the maintenance of our roads.

Mr Speaker, they also mentioned to this House that the predecessor of the Road Fund was bedeviled with several lawsuits and that the intended purpose of that particular Fund has come under strict questions. I would first want to urge the Minister that we do not throw the baby away with the bath water. We must have a look at the Road Fund again to see what we can do to ensure that it is also fit for purpose, as much as we consider this proposed Bill solely dedicated to the maintenance of the road.

Mr Speaker, I speak on this issue rather passionately because my Friend from Manhyia South, Lawyer Baffour Awuah, has all the time complained to me about the several bad roads at the seat of the Otumfuo in his constituency. My Friend from Offinso North also complains every day.

In fact, Mr Speaker, if you would remember, a Question was filed to the Minister for Roads and Highways on roads at Akumadan, Akenkenso, among others. I brought Questions to this House on the roads in Wale Wale. It means that this particular proposed Fund is at the heart of and of concern to every Member in this House. Much more so, those on the other Side because that is the only thing that can justify their inclusion. Many of them will lose their seats in their constituencies because of bad roads. If they do not want Members of this House to lose their seats in their constituencies,

they must do something about the road situation.

Mr Speaker, I am making this point because, just about a year ago, the major road between Nalerigu and Walewale was washed off around the bridge. Since then, it has not been fixed properly. They have done some work, but the bridge is still susceptible to flooding, that if there is any flooding, the connectivity between Walewale and Nalerigu will not be there. This is also important.

Mr Speaker, I will join other Colleagues to say that while we will go into the details of the Bill and propose amendments, if there are any, the overarching goal is to ensure that we do not have potholes. It is to ensure that we do not have bridges cut off. It is to ensure that every constituency gets a fair share of the national cake. Yesterday, when the Minister mentioned the roads to be constructed, for the North East Region for example, there was not even one road mentioned and for the Ashanti Region, only 13 per cent of those particular roads.

Mr Speaker, I think that the Minister has to revise his statement on those roads because to say that those are his priority roads, but the concentration of which is only limited to some few regions, is unfortunate. But we will support him on this. While we support him, he should make sure that in line with my senior Brother, Hon Tampuli, every constituency should, must and we want his promise that it shall happen that we would all get one motorable roads in our constituency.

With these few words, Mr Speaker, I thank you very much for the opportunity and we support the Bill.

Mr Second Deputy Speaker: Hon Members, let me now revert to Leadership. If you did not get my attention on this particular Bill, you will get my attention on the next one because we have a lot to do today.

Alhaji Habib Iddrisu: Mr Speaker, I will yield to Hon Nyindam and the Chairman is not listening while they debate; he is just moving around. He should sit and listen, so that next time, he can incorporate some of these concerns into what he is doing—

Mr Second Deputy Speaker: Hon Habib, the Minister himself is seated quietly taking notes.

Yes, Hon Nyindam?

Mr Matthew Nyindam (NPP — Kpandai): Mr Speaker, I thank you for the opportunity and I thank Leadership for yielding and giving me the opportunity to also make my voice heard on this matter.

Mr Speaker, the first issue I want the Minister to address when he gets the opportunity, has to do with the conflict they identified under the Board of Trustees. According to the Reports, it has been one of the challenges that the previous Administration faced. There was a turf war or a cold war between the two Leadership and that has actually

affected the progress and work of the Fund.

Reading through, I realised that although this has been identified, they still want to agree to the old convention and made some proposal, which I think it is a very loose proposal. I do not see why if they identified a problem, they did not propose an amendment to make sure that we cured that friction at the end of the day. So, I want to draw the attention of the Minister to that.

I also want to add my voice to the fund, just like previous speakers have said. It is true that they have identified that it is less expensive to maintain our roads than to construct new ones and for that matter, they intend to use this fund purely to maintain our roads. There are a lot of roads that, today, have totally been deteriorated because of lack of maintenance. Most of the roads we see today are due to lack of maintenance. To some extent, if one journeys on some roads, the huge traffic one will see on those roads is just because some portions of the roads have not been maintained.

If we are to give this fund to them — and just like he has said, it is easier to maintain than to build new roads — I would urge the Minister to focus on maintenance and it should not just be limited to one region. It should cut across, so that our roads are maintained all the time. If we keep maintaining our roads promptly and swiftly, we would not be challenged with the kind of roads that we have today.

Mr Speaker, so, I want to support him. We are all here to support him; we all know the importance of roads. We all know how viable our economy could grow, if we have good roads.

Mr Speaker, not to take too much of your time, I would like to thank you and to urge the Minister to strictly abide by the rules that this fund is supposed to be used for maintenance of our roads.

Mr Second Deputy Speaker: Yes, Majority Leadership?

Ms Cudjoe: Mr Speaker, when my Colleague from the other Side spoke, I heard him crying for the Walewale roads. Mr Speaker, let us put the Question, so that we can hurry up and do the Walewale roads.

Mr Second Deputy Speaker: Minister, before I invite you, when we look at the Bill, it talks about road maintenance. For me, I am personally interested in this Bill because when we look at our roads that are deteriorating, it starts with a small pothole, then the next day, by the time you pass there, it has become a manhole and eventually, it results in the deterioration of the entire road.

So, Minister, the entire House is behind you. Please, equip your maintenance department, so that any pothole that is developing is quickly attended to. We are in a country where we do not have the resources to build new roads. Therefore, if we are able to get one road, we do not have to allow that

road to deteriorate to the point that it does not become a road again. So, with this Road Maintenance Trust Fund Bill, which would eventually be an Act, we hope that no road that has been built will be deteriorated to the extent that we will have to spend another money to design the road and build the road again.

So, together in the House, we support you with this Bill. We hope that with the emergence of this Bill, the roads of Ghana would see a new face. We all support you in this direction. If you could say something before we put the Question.

Mr Agodza: Mr Speaker, I thank you for the opportunity. I want to take the opportunity to thank Colleagues. Mr Speaker, I must say that I have received total support from both Sides of the House in the formulation and preparation of this Bill and I would like to thank Colleagues.

2.14 p.m.

Mr Speaker, issues of road are a concern for everybody. Everything we do in our country in terms of activities hinge on roads. In terms of needs, there is no doubt that on the minds of every Ghanaian, roads come very prominent.

Mr Speaker, I must take the opportunity to clarify a few things. Starting from yesterday, Big Push is not a constituency-specific programme. It is a national programme to first of all, interconnect our regions and address significant traffic bottlenecks across the

country. Indeed, the projects will go through certain constituencies, but those were not the main considerations. So, what the Minister for Finance did yesterday by mentioning roads was quite clear.

There are Big Push Projects as outlined by the President and since then, the President has directed that other projects should be added. These are projects that have been started previously but have stalled. It is not too long ago that we saw people demonstrate around Ofankor and other places. None of those projects have any dedicated source of fund. If we leave them the way they are, they might never be completed or they will just deteriorate.

The President directed that we innovate all those contracts onto Big Push so that we can prioritise their funding and complete them.

So, what we heard yesterday was not an attempt to list all projects that are being done under the Ministry and I must say that since President Mahama's Government took over, we never asked any contractor to terminate work or stop work while we do any investigation, as it happened in 2017. I went around the country encouraging all contractors to continue working and we will pay them eventually.

Mr Speaker, since my very good Friend, Dr Kabiru Mahama mentioned—In the selection of the Big Push Project, every single region in our country is touched by Big Push. So, it is not

actually correct to say that North East was not touched. One of the roads goes through Nakpanduri to Gbintri; so just to make sure that I do not leave any gap for any speculation, there is no region in Ghana that is not touched by the Big Push Project.

Mr Speaker, just to focus on the Bill, I think Colleagues have said it all. What we are unable to do largely in our country, is maintenance. Because it looks more politically attractive for one to say, I have built new road.

Mr Speaker, not too long ago, —I am not trying to go back, when an announcement was made in this House that we have constructed 10,800 kilometres of new roads. In fact, if that was the case, we should not be here. But the reality is that we do not spend enough maintaining the roads within our corridors.

Mr Speaker, if we check the Ministry, the bulk of money we spend is within three or four regions: Greater Accra, Ashanti and Eastern regions. We spend almost 60 to 70 per cent of our road Budget in these areas. Take one interchange; by the time we finish one interchange in Accra, it would have constructed many kilometres of road into farming areas to bring productivity. But because we in Accra have microphones in front of us at radio stations and television stations, we shout the loudest, ignoring the farmers in the communities that grow rice, cashew, cocoa, and other things.

Mr Speaker, this deal is basically trying to restructure the way the Road Fund works. Indeed, in the past, a Minister for Roads and Highways could decide that in 12 months, a district or constituency could only benefit from five kilometres of reshaping. A Minister for Roads and Highways could decide because he has the power. I am happy to hand over part of that power to Parliament to determine that every district in 12 months must have a certain level of road maintenance activity, and those activities determined within that district. That is what this deal is about.

So it is no longer the prerogative of a Minister for Roads and Highways to decide by himself alone which district benefits from maintenance across the country. So, while the allocations might not be able to fix all the problems, every district will have the determination to be able to do something about that bad section of road within their community.

Mr Speaker, it is going to be formula-based. But I must warn; this is not going to be the regular formula like the Ghana Education Trust Fund (GETFund) and Road Fund.

Because today, GETFund awards contracts and other things. The Road Fund will not; it is outlawed from awarding road contracts. Road Fund will only pay for activities that are determined by the agencies under the Ministry of Roads and Highways. So, no one would allow Road Fund to start awarding road projects. They are only a fund to pay for activities that are carried

out either by Highways, Feeder Roads, and Urban Roads. That is one.

Mr Speaker, the Road Fund also suffered over the years with extremely bad financial management. That is, people go and collateralise Road Fund and take money for 10 to 15 years. So anytime the time is due for the Minister for Finance to put money in the Road Fund account, that fund is rather spent paying for the interest of loans they have taken. We have outlawed any attempt by Road Fund to collateralise any section of that money. The money must entirely be spent on road activities of that particular year. So, Road Fund will no longer have the ability to borrow money or to collateralise. That is not the intent of the Road Fund. Let us live within our means. That is what this Bill is also about.

Mr Speaker, we have also decided to criminalise certain activities that we all know have been creating problems. So, from now, anybody making decisions as to how Road Fund is spent, even if the person is a technocrat who provided falsified data based upon which decisions are made, in this law, the person can be surcharged and punished.

So, there is a new penalty regime for those who take advantage by the virtue of their positions to actually misconduct themselves. This law will criminalise all those activities as well. We believe that Road Fund, as it exists today, one will notice that it just exists as an entity under the Chief Director of the Ministry of Road and Highways.

We are creating a fund that will have its own management structure, its own board of trustees, and will be accountable to the people's representative in Parliament. We believe that when we do this right, it is just the beginning, as one Colleague said. As time goes on, we can improve on it to make sure that the maintenance a culture that we lack on our roads, we Members of Parliament together with our stakeholders, would have a say as to how we address issues of maintenance of roads in our communities. Mr Speaker, hopefully, this should improve the condition of our roads in our communities.

Mr Speaker, I want to end here by thanking Colleagues for the support so far. A Colleague already said that we have deliberately decided not to spend even whatever has been deposited in the Road Fund account currently, waiting for this. As a Minister for Roads and Highways, I would have been the first to be happy to pay contractors but I can guarantee that I have never paid anybody, not because I did not want to pay, because I want this law to be in place so that we can start the accountability from now; not to do the wrong thing a bit before we all get brought into line.

Mr Speaker, I believe this Bill is for all of us. It is the beginning of our collective decision that the nature of the roads around us is not good, and we are determined to do something about it, and then we can all work together to make our roads better from now going forward.

Mr Speaker, with these few words, I thank Colleagues for this, and I hope when we come to the Consideration Stage—We have gone through this stage twice already. The Committee has helped so far.

The last thing I want to address is the 60:40 my very good Friend, Mr Yaw Boamah, talked about. In fact, the sharing formula actually came during a fringe discussion at the Committee. So, if one hears the respected Ranking Member comment about it, he was commenting on a fringe discussion, and I think it is not a bad suggestion that we should determine the formula. The 60:40 is not a bad idea.

Mr Speaker, thank you very much for the opportunity.

Question put and Motion agreed to.

Road Maintenance Trust Fund Bill, 2022 accordingly read a Second time.

2.24 p.m.

Mr Dafeamekpor: Mr Speaker, we intend to take Motion number nine, but the indications are that the GNPC Work Programme Report is ready. That is, the referral made to the Committee on Energy; they have done their work and they are ready. So, I pray that we take the laying of the Report and then we can come back and deal with the consideration contained in Motion numbered 9 for the Road Maintenance Trust Fund Bill.

Mr Speaker, let the record reflect that I have extensively engaged, my Brothers. Not just the arrowhead, but his able Deputy who is more acidic. I have engaged them on this matter.

Mr Second Deputy Speaker: Hon Majority Chief Whip, I know you are saying that lightly, but I want you to withdraw that statement.

Mr Dafeamekpor: Mr Speaker, I withdraw that part.

Mr Second Deputy Speaker: Very well.

Mr Dafeamekpor: The Deputy who is stronger and we have engaged and have agreed that we lay the report from the Committee of Energy on the GNPC 2025 Work Programme.

Mr Speaker, it is more urgent because in 2024, somehow, we could not ratify their Work Programme and 2025 is already midway. So, it is quite urgent that we do that. So, my two Brothers will rise up and second this one without any further comment.

Mr Annoh-Dompreh: Mr Speaker, this is a temptation that we will not yield to. We will not yield to his invitation to treat; we will depart from that path and in the spirit of patriotism and the love of our country, we are ready to do business. So, we are ready to take the Motion on the GNPC Work Programme and so shall it be.

Mr Second Deputy Speaker: Leader, did you see how the Deputy Minister was looking at you?

Mr Annoh-Dompreh: As for the Deputy Minister, he is a gentleman and he is not as harmful as somebody that I know.

Mr Dafeamekpor: Mr Speaker, it is just to encourage you to make progress. That is all.

Mr Second Deputy Speaker: Hon Members, we will now turn to Page 1 on the Order Paper *Addendum* and then do take the presentation of Papers. We call on the Chairman of the Committee on Energy but if he is not here, the Vice Chairman—

PAPERS

By the Vice Chairman of the Committee on behalf of the Chairman—

Report of the Committee on Energy on the Work Programme of the Ghana National Petroleum Corporation (GNPC) for the year 2025.

Mr Patrick Yaw Boamah: Mr Speaker, if I can make this application to move the Motion numbered 10 on today's Order Paper.

Mr Second Deputy Speaker: Is the Leadership in agreement?

Mr Annoh-Dompreh: There should be no objection to that.

Mr Second Deputy Speaker: Very well.

Hon Members, let me invite you back to the main Order Paper. Page 4; the item numbered 10—Motion by the Chairman of the Subsidiary Legislation Committee.

MOTIONS

(Environmental Protection (Air Quality Management) Regulations, 2025

Chairman of the Committee (Mr Patrick Yaw Boamah): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee on Subsidiary Legislation on the Environmental Protection (Air Quality Management) Regulations, 2025.

Mr Speaker, I will proceed to present the Committee's Report where we met the Minister responsible for Environment, Science, Technology and Innovation and deliberated on the importance of this Regulation.

Mr Speaker, the scope of the Committee's mandate is stated on Page 2, paragraph 4.0 and the background of these Regulations are as follows:

Air pollution is a critical environmental and public health concern with far-reaching implications. According to Dr Maria Neira, Director of

Public Health, Environmental and Social Health of the World Health Organisation, she stated that when air quality improves, health costs go down, productivity goes up and life expectancy increases. Mr Speaker, we went through the pre-laying consideration and the purpose of regulations is stated at page 4, paragraph 6.0 and the Instrument is intended to significantly enhance air quality across the country by ensuring strict compliance with standards set out in the Ghana Standards for Environmental and Health Protection.

Mr Speaker, in conclusion, in light of the observation of the Committee, the Committee is satisfied that the Instrument meets the legal requirements as specified in relevant provisions of the Constitution and Standing Order 204 of this House and that it is of great importance to state that the Regulations will enhance air quality across the country.

I accordingly recommend to the House to adopt the Report and endorse the coming into force of the Environmental Protection (Air Quality Management) Regulations, 2025 in accordance with Article 11(7) of the 1992 Constitution.

Introduction

The Environmental Protection (Air Quality Management) Regulations, 2025 was laid by the Hon Minister responsible for Environment, Science, Technology and Innovation, Dr Murtala Muhammed Ibrahim on 24th June, 2025. The

Instrument was laid in accordance with Article 11(7) of the Constitution and Order 100 of the Standing Orders of Parliament.

In accordance with Order 220(3) of the Standing Orders, the Rt Hon Speaker referred the Instrument to the Committee on Subsidiary Legislation for consideration and report. The Committee presents its Report to the House.

Deliberations

The Committee met and considered Environmental Protection (Air Quality Management) Regulations, 2025. In attendance to consider and deliberate on the draft Instrument were the Chief Director for the Ministry of Environment, Science and Technology, Ms Suweibatu Adam, the Chief Executive Officer of the Environmental Protection Authority (EPA), Prof Nana Ama Klutse, the technical team from the Authority and officials of Office of the Attorney-General and Ministry of Justice.

The Committee expresses its profound gratitude to the Chief Director of the Ministry of Environment, Science and Technology and the team of officials from the Offices of the Environmental Protection Authority and Attorney-General's Department for attending upon the Committee to assist with the deliberations.

Reference Documents

The Committee referred to the following documents during its deliberations inter alia:

a. The 1992 Constitution of the Republic of Ghana;

b. The Standing Orders of the Parliament of Ghana;

c. The Environmental Protection Act, 2025 (Act 1124); and

d. The Environmental Protection (Air Quality Management) Regulations, 2025.

e. Report of the Stakeholder Engagements on the Draft Environmental Protection (Air Quality Management) Regulations, 2025.

The Scope of the Committee's Mandate

The Committee was guided by the provisions of Article 11(7) of the 1992 Constitution and Standing Order 220(4) in considering the referral. These provisions enjoin the Committee to determine whether a Regulation under consideration:

- a. is in accordance with the provisions of the Constitution or the Act under which the Order, Rule or Regulation is made;
- b. contains any matter which in the opinion of the Committee should

more appropriately be dealt with in an Act of Parliament;

- c. contains imposition of any tax;
- d. directly or indirectly bars the jurisdiction of the courts;
- e. gives retroactive effect to any of the provisions in respect of which the Constitution or the parent Act does not expressly give any such power;
- f. involves expenditure from the Consolidated Fund or public revenues;
- g. appears to make an unusual or unexpected use of powers conferred by the Constitution or the Act under which the Order, Rule or Regulation is made;
- h. appears to have been unjustifiably delayed in its publication or in laying the Order, Rule or Regulation before Parliament; and
- i. for any reason, in its form or purpose, calls for clarification.

Background

Air pollution is a critical environmental and public health concern with far-reaching implications. According to Dr Maria Neira, Director of Public Health, Environmental and Social Determinants of Health at the World Health Organisation (WHO), “When air

quality improves, health costs go down, productivity goes up, and life expectancy increases.” Clean air, she emphasises, is not only a cornerstone of good health but also a fundamental human right. This underscores the profound impact of air pollution on both human health and the environment.

In Ghana, the growing population and rising levels of affluence are contributing to the deterioration of air quality. As a result, the nation is experiencing increasing exposure to air pollutants, leading to a surge in pollution-related diseases and disorders. Air pollution, by its nature, is not confined by geographic boundaries; it is both a national and transboundary problem that demands urgent and coordinated action.

Globally, many countries have recognized the dangers of air pollution and have taken proactive steps to address it. Ghana, in line with this global momentum, is committed to improving air quality to safeguard public health and environmental sustainability. In response to the escalating challenge, the Environmental Protection Authority (EPA), in collaboration with the Ghana Standards Authority, has developed the Ghana Standards for Environmental Quality (Air Quality). These standards are aligned with international protocols and are aimed at regulating the environment, with particular attention to emissions from motor vehicles and industrial sources.

To operationalise these standards, the EPA has prepared a draft Air Quality Management Regulations. This legal instrument is intended to facilitate the effective implementation of the Ghana Standards for Environmental and Health Protection — Requirements for Ambient Air Quality and Point Source or Stack Emissions (GS1236). When enforced, the regulations will provide a structured framework for ensuring strict compliance, thereby improving air quality across the country and ultimately protecting the health and well-being of all Ghanaians.

Purpose of the Legislative Instrument

The Instrument is intended to significantly enhance air quality across the country by ensuring strict compliance with the standards set out in the Ghana Standards for Environmental and Health Protection - Requirements for Ambient Air Quality and Point Source or Stack Emissions (GS1236). Specifically, it mandates adherence to fence line air quality thresholds, ambient air quality benchmarks, and point source or stack emission limits.

Furthermore, it promotes robust monitoring and reporting mechanisms for undertakings, facilitates the establishment of a nationwide air quality monitoring network. More importantly it supports the development and implementation of a comprehensive National Air Quality Framework, and seeks to regulate and reduce emissions from motor vehicles, industry and other sources. Also, the Regulations seek to

ensure compliance with motor vehicle emission standards as specified in GS1236.

Pre-Laying Consideration of the Instrument

In accordance with its standard practice, the Committee held a pre-laying session with Ministries, Departments, and Agencies (MDAs) and other relevant stakeholders to review the draft legislative instrument. The pre-laying session which was attended by Chief Director of Ministry of Environment, Science, Technology and Renovation and her technical team sought to examine the proposed instrument. The session afforded the Committee the opportunity to offer recommendations for amendments prior to the formal laying of the Instrument.

This engagement was necessary because, pursuant to Article 11(7) of the Constitution, a legislative instrument cannot be modified once it has been laid before Parliament. The pre-laying session, therefore, provides a vital opportunity for the Committee to refine and modify the Instrument thereby ensuring consistency with stated objectives and compliance with legal standards and all relevant legal provisions.

Observations

In the course of its deliberations the Committee made the following observations:

Compliance with law

The Committee is of the considered view that the Instrument satisfies the legal imperatives provided in article 11(7) of the 1992 Constitution, and does not contravene any provision of the Constitution, the parent Act or any other existing legislation.

In addition, the Committee observed that the Environmental Protection (Air Quality Management) Regulations, 2025 does not impose any form of taxation. The Committee also notes that the Instrument contains no express provision authorizing expenditure from the Consolidated Fund or any other public funds.

Having considered the provisions of the Instrument, the Committee is of the opinion that the Instrument neither directly nor indirectly ousts the jurisdiction of the Courts. Furthermore, the Instrument does not operate retrospectively to impose limitations on or adversely affect personal rights of persons.

Stakeholder Engagements

The Committee was presented with a report on engagements held with stakeholders detailing contributions provided to enrich the instrument. The stakeholder engagements brought together officials from the Ministry of Environment, Science and Technology, EPA and civil society organisations. It offered opportunity for recommendations made by stakeholders

to be incorporated into the draft Instrument.

Protection of Public Health

The Committee observed that the proposed Regulations aims at enhancing air quality in Ghana and recognises the importance in protecting public health and the environment. It also contains a comprehensive framework that aligns with the Ghana Standards for Environmental and Health Protection (GS1236). The GS1236 sets out enforceable thresholds for fence line air quality, ambient air quality, and point source or stack emissions. These provisions are essential for curbing pollution levels, particularly in urban and industrial areas where air quality concerns are most acute.

The Committee recognises the continues establishment of industries in various parts of the country and the need for Government to take adequate steps to ensure that citizens are protected from air pollution to promote healthy living conditions.

Regulation of Activities

The Committee further notes that the Regulations also demonstrate a forward-looking approach by enacting mandatory rigorous monitoring and reporting obligations for all undertakings. This requirement will ensure accountability and transparency in the management of emissions by industries and other contributors to air pollution. By compelling regular data collection and disclosure, the Regulations provide EPA

with the tools needed to enforce compliance and take timely corrective action when the standards are breached.

Establishment of Air Quality Monitoring Network

The Committee further observes the importance of provisions establishing a nationwide air quality monitoring network. This initiative will enable Government to obtain real-time data across various regions, identify pollution hotspots, and assess trends over time.

The availability of reliable air quality data is foundational to evidence-based policymaking, and will greatly enhance the country's capacity to respond to environmental health threats.

Implementation of National Air Quality Framework

The Committee commends the development and implementation of a National Air Quality Framework. This strategic framework will serve as a coordinated plan to guide emission reduction efforts, harmonise regional actions, and ensure that stakeholders - from government agencies to the private sector- are working collaboratively toward common air quality goals. It also positions Ghana to meet its international commitments on climate and environmental sustainability.

Conclusion and Recommendation

In light of these observations, the Committee is satisfied that the

Instrument meets the legal requirements as specified in relevant provisions of the Constitution, and Order 220(4) of the Standing Orders of Parliament. And that it is of great importance to state that the Regulation will enhance air quality across the country.

The Committee, accordingly, recommends to the House to adopt its Report and endorse the coming into force the “**Environmental Protection (Air Quality Management) Regulations, 2025**” in accordance with Article 11(7) of the 1992 Constitution.

Respectfully submitted.

**Vice Chairman of the Committee
(Nana Agyei Baffour Awuah):**

Mr Speaker, I rise to second the Motion.

Mr Speaker, having seconded the Motion, I wish to state that this is a very proactive step by the Environmental Protection Agency. Given the expansion that is currently going on in terms of our energy facilities, particularly oil and gas. Mr Speaker, there is therefore the need for us to take proactive steps to protect the environment and reduce pollution.

Mr Speaker, this therefore answers that need or responds to it and so I urge the House, Mr Speaker, very respectfully to support this cause.

Thank you very much.

Question proposed.

Mr Awuah: Mr Speaker, I am not just the Member for Manhyia South in this case. I am also the Vice Chairman of the Subsidiary Legislation Committee.

Mr Second Deputy Speaker: Wonderful. Let me listen to Hon Tampuli.

Mr A.T. Sulemana (NPP — Gushegu): Mr Speaker,

I would like to put in a few reflections on the Report that has been ably laid by the Chairman of the Subsidiary Legislation Committee. Mr Speaker, this Regulation is long overdue especially having regard to the fact that we started commercial production of crude oil in 2007.

2.34 p.m.

We discovered in 2007 and started commercial production in 2010 thereabouts.

Mr Speaker, sometime in 2010, one of the international oil companies was engaged in an amount of spillage. When the matter was brought to the attention of the EPA, a look at the EPA regulations at the time, or currently, Environmental Regulations L.I. 1652, and the Environment Protection Agency Act (EPA), 1994 (Act 490) itself, showed that there was a deep lacuna as far as the enforcement regime is concerned.

So, Mr Speaker, back and forth, the Minister at the time, the late Hanny-Sherry Ayittey, wrote to the company

and tried to use the EPA Act to enforce the law as far as the spillage is concerned and exact some punishments. Mr Speaker, I recall that at the time, I was associated with a law firm, but I was not then practising. The firm wrote a letter to the Minister at the time, and the long and short of it was that when *quo warranto* was mounted, the Minister was found wanting, because the law does not give the Minister the power to impose such punishments on the company. They had to engage in some backdoor negotiation to be able to get some kind of a solution.

But, Mr Speaker, much as this regulation is welcoming, we also have to look at it in terms of whether or not it is exhaustive in dealing with matters associated with environmental protection as far as the upstream is concerned. Mr Speaker, I have not had the benefit of seeing a copy of the regulations, but I am not too sure if the Chairman of the Committee can assist us on whether some matters have come up before, especially with respect of discharge of hazardous waste.

I remember that reference was made to the Bamako Convention, which dealt with the African response, and also the Basel Convention, which dealt with the global situation. Mr Speaker, at the time, Ghana was signatory to these conventions, but we had not domesticated them into our laws. I want to urge the Minister responsible to consider having all of these conventions domesticated into our laws, so that we deal with the situation end to end.

Mr Speaker, with these few words, I want to indicate my approval for the House to adopt these Regulations pursuant to the draft that has been laid before this House. I thank you, Mr Speaker.

Mr Second Deputy Speaker: Thank you very much. Yes? Nobody is here. I will call the Minister for Education.

Minister for Education (Mr Haruna Iddrisu): Mr Speaker, thank you. May I, with respect, refer you to page 6 of your Committee's Report, paragraph 7(1). Having listened to the last Member and Mr Speaker, your good self, paragraph 7(1) reads:

“The Committee is of the considered view that the Instruments satisfy the legal imperatives provided in Article 11(7) of the 1992 Constitution...”

It is my firm belief, that in that paragraph, must be the recognition of the parent Act which is driving these Regulations.

So, to the Chairman of the Committee and Members of the Committee, Article 11 satisfies the constitutional mandate that the Instrument be laid before Parliament and it be laid. I have seen it in the next paragraph; I see reference to parent Act in the third line, but they must be specific. This is Parliament, and we say it is a house of records. They must put in Act 1124 of this year. This is because before they come to the satisfaction of

the constitutional imperative, they must have satisfied the legal requirements in their own Report, paragraph 4, and Mr Speaker, I refer to it:

“(b) contains any matter which, in the opinion of the Committee, should more appropriately be dealt with in an Act of Parliament.”

Then we add paragraph 4 (a):

“is in accordance with the provision of the Constitution or the Act under which the Order, Rule or Regulation is made”.

So, the Act is Act 1124. The Committee ought to recognise it in its Report.

Then, Mr Speaker, finally, page 5. I need your guidance on this one. Page 5, second paragraph:

“This engagement was necessary because pursuant to Article 11(7) of the Constitution, a legislative instrument cannot be modified once it is laid before Parliament.”

I am not sure —[*Interruption*]— Absolutely; so, help me. And even with that, the authority is a Supreme Court ruling on the matter, not reference to Article 11(7). It is a Supreme Court which —[*Interruption*]— So they should say so, that they cannot add nor subtract from it. That is why they do a pre-laying consideration, but not to say Article 11(7).

Mr Speaker, with this comment, I support that the Regulations be adopted by the House. I thank you.

Mr Second Deputy Speaker: Very well. Now, Leadership. Minority Chief Whip?

Minority Chief Whip (Mr Frank Annoh-Dompreh): Mr Speaker, let me hurriedly commend the Chairman of the Committee on Subsidiary Legislation. I practically could feel his passion to get this Business dispensed off today. That speaks volumes of his commitment to it.

Mr Speaker, not to rehash the nuance involved in this Report, but facts might be told that the concerns, globally, in terms of environment is evolving. Right from the Paris Agreement down the lane to the 1997 Kyoto Protocol that was passed, concerns about greenhouse gas emission, and particularly, pollution of the environment and air quality has come up strongly as an important concern and a narrative that the world should be showing concerns about.

Now, in developing countries, we have often undermined and taken lightly, the effects of air pollution on our health, and fossil fuel is adding on. Europe is departing from it, and now, even China, with greatest respect, who has often been described as involving a lot of the usage of fossil fuel has, as of last year, invested over billions of dollars in renewables. So, the world is departing from fossil fuel, all because of its effect on our health. It is becoming increasingly clear

that if nothing is done, the world today and tomorrow will be riskier for humanity to live in.

Concerns about ratings of countries, especially in the context of carbon credit. Countries which are able to adopt and domesticate these international conventions into their domestic regulations and legal regimes are standing a better step to plough in the benefits of the carbon credit and what accrues to other countries who are positioning themselves well.

We passing this regulation posits Ghana well. Mr Speaker, just last week, a relationship between Ghana and Switzerland in the area of carbon credit fetched Ghana over US\$1.6 million, and it is free money, low-hanging fruit that can easily be accessed by developing countries. I am particularly happy that these Regulations will be passed.

But what is critical is the enforcement. When I looked at the Report, in the area of engagement, stakeholder consultation, I did not see any consultation done with the Minister of Transport. This is because we have an existing policy on Electric Vehicles (EVs).

2.44 p.m.

These electric vehicles have an interface with air quality and air pollution. I am looking at the enforcement and the Minister for Transport is critical in the enforcement of this Regulation.

So, I guess we need to create a better awareness beyond the EPA and get all relevant authorities to be on board in the enforcement of this Regulation. But it is a big push and big credit to Ghana in terms of our environmental ratings and I believe that there is a lot more that we can benefit after the passage of this Report.

Mr Speaker, I thank you for the opportunity.

Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor): Mr Speaker, let me add my voice to the call for the adoption of this Report.

Mr Speaker, particularly, if we look at page 8, paragraph 8.0 of the Report, which is of course the conclusion, they summed up all the issues as follows:

“The Committee is satisfied that the Instrument meets the legal requirements as specified in relevant provisions of the Constitution, and Order 220(4) of the Standing Orders. And it is of great importance to state that the Regulation will enhance air quality across the country.”

Mr Speaker, on the totality of this observation, let me urge the House that we adopt this, so that the air quality of this country, spanning from Hamile to Pusiga, Pusiga to Keta, Keta to Elubo and to Kumawu will be enhanced.

Mr Speaker, I thank you for the opportunity.

Question put and Motion agreed to

Mr Boamah: Mr Speaker, with your kind permission, I would like to seek your leave to move Motion 11.

Mr Second Deputy Speaker: Yes, let us hear you, but be brief. We have so many things to do today.

MOTION

Report on the Environmental Protection (Effluent) Regulations, 2025

Chairman of the Committee (Mr Patrick Yaw Boamah): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee on Subsidiary Legislation on the Environmental Protection (Effluent) Regulations, 2025.

Mr Speaker, in so doing, I present the Report of the Committee.

Introduction

The Environmental Protection (Effluent) Regulations, 2025 was laid by the Hon Minister for Environment, Science and Technology, Dr Murtala Muhammed Ibrahim, on 24th June, 2025. The Instrument was laid in accordance with Article 11(7) of the Constitution and Order 100 of the Standing Orders of Parliament.

In accordance with Order 220(3) of the Standing Orders, the Rt Hon Speaker referred the Instrument to the Committee on Subsidiary Legislation for consideration and report. The Committee met on the referral and presents its Report to the House.

Deliberations of the Committee

The Committee met and considered the Environmental Protection (Effluent) Regulations, 2025. In attendance to consider and deliberate on the draft Instrument were the Director Legal, Environmental Protection Authority (EPA), Ms Abena Ayensu, officials from Environmental Protection Authority, and Office of the Attorney-General and Ministry of Justice.

The Committee expresses its profound gratitude to the Director Legal, EPA, and her team and officials from the Office of the Attorney-General's Department for attending upon the Committee to provide clarifications to the Regulations.

Reference Documents

The Committee referred to the following documents during the deliberations:

- a. The 1992 Constitution of the Republic of Ghana;
- b. The Standing Orders of Parliament of Ghana;

- c. The Environmental Protection Act, 2025 (Act 1124);
- d. The Environmental Protection (Effluent) Regulations, 2025; and
- e. Report of the Stakeholder Engagements on the Draft Environmental Protection (Effluent) Regulations, 2025.

Scope of the Mandate of the Committee

The Committee was guided by the provisions of Article 11(7) of the 1992 Constitution and Standing Order 220(4) in considering the referral. These provisions enjoin the Committee to determine whether a Regulation under consideration:

- a. is in accordance with the Constitution or the Act under which it is made;
- b. contains any matter which should more appropriately be dealt with in an Act of Parliament;
- c. contains imposition of any tax;
- d. directly or indirectly bars the jurisdiction of the courts;
- e. gives retrospective effect to any of the provisions in respect of which the Constitution or the Act does not expressly give that power;

- f. involves expenditure from the Consolidated Fund or public revenues;
- g. appears to make an unusual or unexpected use of powers conferred by the Constitution or the Act pursuant to which the Regulations were made;
- h. appears to have been unjustifiably delayed in its publication or in laying it before Parliament; and
- i. for any reason, in its form or purpose, requires clarification.

Background

Effluent discharge in particular, has been a long-standing environmental concern in Ghana, especially as industrial and urban growth continue to intensify. Many manufacturing facilities, processing plants and institutions generate wastewater that, if not properly treated, can contaminate surface and ground water sources, harm aquatic life and pose significant health risk to communities. In response to this challenge, the Environmental Protection Authority (EPA) has historically monitored effluent discharges under broad environmental guidelines. However, the absence of a consolidated and enforceable regulatory framework made it difficult to standardize compliance across various sectors.

In dealing with the above, the Authority has developed a draft effluent discharge regulation to enable the implementation of the provisions in the Ghana Standard for Environmental Protection - Requirements for Effluent Discharge (GS 1212). The Ghana Standard specifies the requirements for sector specific effluent quality and also gives guidelines for discharge into the environment.

Furthermore, the Authority in collaboration with the Ghana Standard Authority, has developed the Ghana Standards for Environmental Quality (Air Quality, Effluent Discharge, Noise and Motor Vehicle Emissions) in line with international protocols. The standards are to regulate the environment and protect the public from air pollution, motor vehicles emissions, effluent and noise pollution. These initiatives are aimed at ensuring the effective control of effluent discharges and protect public health, aquatic life and water resources.

The development of the draft Regulations has been participatory and consultative. A technical stakeholder meeting was convened on 23rd October 2023 to review the zero-draft of the Regulations. The meeting brought together experts from academia, industry, civil society and relevant public institutions to provide technical insights and ensure that the draft reflected the realities of effluent management in Ghana. Their feedback was essential in refining the technical content of the draft to ensure that it was practical, science

based and responsive to sector specific needs.

Purpose of the Legislative Instrument

The purpose of the legislation is to

- i. control effluent discharges into the environment and protect the environment from pollution and promote public health;
- ii. ensure that the release and discharge of harmful substances from an activity into the environment comply with the requirements specified in the Ghana Standards for Environment Protection — Requirements for Effluent Discharge (GS 1212) as may be revised from time to time; and
- iii. collaborate with key stakeholders in the control of effluent discharges into the environment in order to protect the environment and public health.

Pre-Laying Consideration of the Instrument

The Committee, in accordance with established practice, held a pre-laying session with the technical team from the Ministry, led by Ms Suweibatu Adam and officials of the Attorney-General's Department to examine the draft instrument. The session afforded the Committee Members and stakeholders

the opportunity to offer recommendations for amendments prior to the formal laying of the Legislative Instrument on the floor of the House.

The pre-laying session provides a critical window for refining the instrument to ensure its alignment with national objectives and legal standards. This is because the 1992 Constitution does not permit modifications to a Legislative Instrument once laid before Parliament unless Parliament by a vote of not less than two-thirds of all Members, annul the Regulation before the expiration of twenty-one Sitting days.

Stakeholder Engagements

The Committee observed that the EPA held stakeholder consultations on the draft Instrument. Participants from academia, relevant manufacturing industries, and the Office of the Attorney-General and Ministry of Justice took part in the engagement. The stakeholder consultations provided opportunities for collaboration and sharing of information by industry to improve the provisions of the draft Regulations.

Observations

Compliance with Law

The Committee thoroughly reviewed the Environmental Protection (Effluent) Regulations, 2025 and concludes that the Instrument is legally sound and complies with Constitutional requirements as it

does not impose any tax nor interfere with the jurisdiction of the court. It also conforms with the provisions of article 107(b) of the 1992 Constitution and does not operate retroactively to impose any limitations or adversely affect the personal rights or liberties of persons.

Protection of the Environment

The Committee noted that the Regulations does not only satisfy the legal requirements but serves as a basis for the protection and preservation of the integrity of the environment. This is because the existential threat to the environment would lessen as the Regulations seek to control the discharge of waste that contaminates drinking water sources, harm aquatic life and disrupt the ecosystem

Protection of Public Health

The Committee observed that most communities rely on our water bodies for drinking, bathing and fishing. Most often, these effluent discharges contain harmful substances such as heavy metals and toxic chemicals which can lead to oxygen depletion in water, habitat destruction and bioaccumulation of toxins in food chains. Therefore, the regulations will help protect public health and ensure that industrial, agricultural and municipal waste are treated before release into the waterbodies to prevent the spread of waterborne diseases.

Ensuring use of Cleaner Technologies

The Committee took note of the presence of clear effluent standards in the Regulations which require a person who uses water in the operations to adopt resources use and efficiency and cleaner production options that complies with the requirements of the Ghana Standards for Environmental Protection (GS 1212). Regulations 8 provides that

“A person who uses water in the operations of the person shall adopt resource use efficiency and cleaner production options, including

- (a) water use reduction and water use efficiency;
- (b) reuse of treated wastewater; and
- (c) prevention, minimization and control measures”

The Committee observed that these provisions seek to encourage industries to invest in cleaner technologies to recycle wastewater. It noted that the effective implementation of these provisions would lead to a reduction in the overall environmental footprints and ensure that economic growth balances with ecological development.

Stakeholder Collaborations

The Committee observed that the Regulations encourage collaboration with key stakeholders, including industry actors, environmental agencies, and local communities. Such

partnerships are essential for ensuring effective enforcement and compliance, and fostering a shared responsibility in the management of effluent discharges.

The Committee is happy to note that the promotion of shared responsibility would create avenues for dialogue and cooperation, and provide a holistic approach to environmental protection that incorporates technical expertise, regulatory oversight, and community engagement.

Conclusion and Recommendation

The Committee recognises the importance of the Regulations towards Ghana's effort in achieving sustainable environment, protect public health, and meeting national and international obligations for pollution control. Upon entry into force, the Regulations will not only strengthen institutional capacity, but also ensure that economic development does not come at the expense of environmental and general well-being.

The Committee, accordingly, recommends that the House adopts its Report and endorse the coming into force, the Environmental Protection (Effluent) Regulations, 2025 in accordance with article 11(7) of the 1992 Constitution.

Respectfully submitted.

Mr Second Deputy Speaker: Hon Members, the Chairman has moved the Motion. Is the Vice Chairman here? Any

Member of the Committee may second the Motion.

Mr Kwabena Okyere Darko-Mensah (NPP — Takoradi): Mr Speaker, I rise to second the Motion.

Question proposed.

Mr Second Deputy Speaker: Do I go ahead and put the Question?

Question put and Motion agreed to.

Mr Boamah: Mr Speaker, may we take the Motion numbered 12 on today's Order Paper. Mr Speaker, this is Government Business. If the Majority Chief Whip is opposed to Government Business, let him say so.

Mr Second Deputy Speaker: Yes, the Motion numbered 12.

Mr Dafeamekpor: Mr Speaker, how can I be opposed to Government Business? All I am saying is that as Chairman of the Subsidiary Legislation Committee, he should apprise Leadership properly, so Leadership can be aligned in terms of the sequence.

2.54 p.m.

Mr Frank Annoh-Dompreh: Mr Speaker, the respected Chairman engaged me and when I was seeking to engage him, he was also engaged somewhere. Actually, the Chairman engaged me and he also stated the sequence or the chronology. Fact be told, for the recor

**Environmental Protection
(Management of Ozone Depleting
Substances, Halocarbons,
Halocarbons Alternatives and their
Product) Regulations, 2025**

Chairman of the Committee (Mr Patrick Yaw Boamah): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee on Subsidiary Legislation on the Environmental Protection (Management of Ozone Depleting Substances, Halocarbons, Halocarbons Alternatives and their Product) Regulations, 2025.

Mr Speaker, I ask that the *Hansard* captures the entire Report as having been read as I move to the conclusion.

Introduction

The Environmental Protection (Management of Ozone Depleting Substances, Halocarbons, Halocarbon Alternatives and their Products) Regulations, 2025 was laid by the Hon Minister for Environment, Science, Technology and Innovation, Dr Murtala Muhammed Ibrahim, on 24th June, 2025. The Instrument was laid in accordance with Article 11(7) of the Constitution and Order 100 of the Standing Orders of Parliament.

In accordance with Order 220(3) of the Standing Orders, the Rt Hon Speaker referred the Instrument to the Committee

on Subsidiary Legislation for consideration and report. The Committee met to deliberate on the Legislative Instrument and presents its Report to the House

Deliberations of the Committee

The Committee met and considered the Environmental Protection (Management of Ozone Depleting Substances, Halocarbons, Halocarbon Alternatives and their Products) Regulations, 2025. In attendance to consider and deliberate on the draft Instrument were the Hon Minister for Environment, Science, Technology and Innovation, Hon Murtala Muhammed Ibrahim, the Chief Executive Officer of the Environmental Protection Authority, Prof Nana Ama Klutse, and officials from the Office of the Attorney-General and Ministry of Justice.

The Committee expresses its profound gratitude to the Hon Minister and the team from the Authority and the Office of the Attorney-General and Ministry of Justice for attending upon the Committee to provide clarifications on the provisions of the Regulations.

Reference Documents

The Committee referred to the following documents during the deliberations;

- a. The 1992 Constitution of the Republic of Ghana;

- b. The Standing Orders of Parliament of Ghana;
- c. The Environmental Protection Act, 2025 (Act 1124);
- d. Environmental Protection (Management of Ozone Depleting Substances, Halocarbons, Halocarbon Alternatives and their Products) Regulations, 2025;
- e. Management of Ozone Depleting Substances (ODS) and Products Regulations, 2005 (LI 1812); and
- f. Report of the Stakeholder Engagement on the Draft Environmental Protection (Management of Ozone Depleting Substances, Halocarbons, Halocarbon Alternatives and their Products) Regulations.

The Scope of the Mandate Committee

The Committee was guided by the provisions of Article 11(7) of the 1992 Constitution and Standing Order 220(4) in considering the referral. These provisions enjoin the Committee to determine whether a Regulation under consideration:

- a. is in accordance with the provisions of the Constitution or the Act under which the Order, Rule or Regulation is made;
- b. contains any matter which in the opinion of the Committee should more

appropriately be dealt with in an Act of Parliament;

- c. contains imposition of any tax;
- d. directly or indirectly bars the jurisdiction of the courts;
- e. gives retroactive effect to any of the provisions in respect of which the Constitution or the parent Act does not expressly give any such power;
- f. involves expenditure from the Consolidated Fund or public revenues;
- g. appears to make an unusual or unexpected use of powers conferred by the Constitution or the Act under which the Order, Rule or Regulation is made;
- h. appears to have been unjustifiably delayed in its publication or in laying the Order, Rule or Regulation before Parliament; and
- i. for any reason, in its form or purpose, calls for clarification.

Background

In recognising the global imperative to address stratospheric ozone depletion, Ghana signed the Montreal Protocol on Substances that Deplete the Ozone Layer on 16th September, 1987. The Protocol entered into force on 1st January, 1989 marking the commitment of Ghana to the

international effort to phase out the production and consumption of ozone-depleting substances (ODS), such as chlorofluorocarbons (CFCs), hydrochlorofluorocarbons (HCFCs), and halons.

Since its inception, the Montreal Protocol has undergone five major amendments—namely, the London (1990), Copenhagen (1992), Montreal (1997), and Beijing (2000) Amendments—each expanding the scope of controlled substances or revising phase-out schedules to strengthen the protection of the ozone layer. The most recent and significant amendment is the Kigali Amendment, which Ghana ratified in 2019. This amendment is notable for being the first to include hydrofluorocarbons (HFCs) on the list of controlled substances.

To give effect to its obligations under the Protocol, Ghana enacted the Management of Ozone Depleting Substances (ODS) and Products Regulations, 2005 (LI 1812). This legislative instrument prohibits the import and export of controlled substances and products listed in Schedules 1 and 2, unless a permit is obtained from the relevant Agency. The Kigali Amendment necessitated the inclusion of additional substances not previously covered under LI 1812, prompting a review and update of the regulatory framework to ensure comprehensive compliance.

In this regard, the Attorney General's Department prepared an initial draft of the revised regulations, incorporating the requirements of the Kigali Amendment. A stakeholder consultation and review meeting were convened on Wednesday, 15th December, 2021 to solicit feedback to further refine the draft by the Office of the Attorney General and Ministry of Justice. This consultative approach underscores Ghana's commitment to a transparent and participatory legislative process in the management of ozone-depleting substances and the mitigation of climate change impacts.

In effect, the enactment of this Regulation would help Ghana achieve sustainable environmental management, protect public health, and meet national and international obligations for pollution control.

Purpose of the Legislative Instrument

Essentially, the purpose of this Instrument is to manage the ozone depletion substances, halocarbons, halocarbon alternatives and the products of the ozone depleting substances in the country. The aim was to ensure effective control over the release, servicing, importation and reporting of these substances. It was also to establish standards for the training of refrigeration practitioners, record-keeping, labelling, disposal and the adoption of internationally recognised colour coding for controlled substances and products.

Additionally, the Regulation seeks to promote awareness of the environmentally sound management of controlled substances and products. It also seeks to regulate controlled substances and controlled products, used in cooling appliances as refrigerant agent or contained in certain fire extinguishing equipment and other related applications and user sectors.

Furthermore, this Instrument seeks to address issues related to the commercial use of controlled substances and controlled product as well as the maintenance, handling and disposal of appliances containing controlled substances.

Consequently, the Regulation will not only strengthen institutional capacity but also ensure that economic development does not come at the expense of environmental and human well-being.

Pre-Laying Consideration of the Instrument

In accordance with its standard practice, the Committee held a pre-laying session with the Ministries, Departments, and Agencies (MDAs) and other relevant stakeholders to review the draft Legislative Instrument. The pre-laying session which was attended by Chief Director of Ministry of Environment, Science, Technology and Renovation and her technical team sought to examine the proposed instrument. The session afforded the

Committee the opportunity to offer recommendations for amendments prior to the formal laying of the Instrument.

This engagement was necessary because, pursuant to Article 11(7) of the Constitution, a legislative instrument cannot be modified once it has been laid before Parliament. The pre-laying session, therefore, provides a vital opportunity for the Committee to refine and modify the Instrument thereby ensuring consistency with stated objectives and compliance with law.

Observations

Compliance with Law

The Committee is of the considered view that the Instrument satisfies the legal imperatives provided in Article 11(7) of the 1992 Constitution and does not contravene any provision of the Constitution, the parent Act or any other existing legislation.

In addition, the Environmental Protection (Air Quality Management) Regulations, 2025 does not impose any form of taxation. The Committee also notes that the Instrument contains no express provision authorizing expenditure from the Consolidated Fund or any other public funds.

Having considered the provisions of the Instrument, the Committee is of the opinion that the Instrument neither directly nor indirectly ousts the jurisdiction of the Courts, and it does not

operate retrospectively to impose limitations on or adversely affect personal rights of persons.

Stakeholder Collaborations

The Committee observed that the Regulation encourages collaboration with key stakeholders, including industry actors, environmental agencies, and local communities. Such partnerships are essential for ensuring effective enforcement and compliance. It also helps foster a shared responsibility in the management of the discharge harmful substances. Hence, the Regulation supports a holistic approach to environmental protection that incorporates technical expertise, regulatory oversight and community engagement.

Discharge of Harmful Substances

The Committee noted that without robust regulatory frameworks, progress made over the decades to heal the ozone layer could be reversed. A critical component of the Regulation requires that all discharges of harmful substances from any activity into the environment must comply with law.

It was disclosed that Ozone-Depleting Substances such as CFCs (Chlorofluorocarbons) and halons break down ozone molecules in the stratosphere that shields life on earth from harmful radiations. The Committee opined that without proper management

of ozone depleting substances, ozone depletion may lead to increased skin cancers and cataracts in humans, reduced agricultural yields and cause harm to marine ecosystems.

Accordingly, the Committee urges the Authority to promote transparency and accountability in the discharge of harmful substances by monitoring and regulating the discharge of harmful substances across the various sectors.

Decision and Recommendation

Having acknowledged the importance of the Regulations in the Management of Ozone Depleting Substances (ODS), halocarbons and their alternatives, the Committee recognises that preserving the ozone layer would help mitigate climate change, protect the ecosystem and protect public health. It would also enhance the ability of Ghana to meet global environmental commitments.

The Committee, accordingly, recommends to the House to adopt its Report and endorse the coming into force of the Environmental Protection (Management of Ozone Depleting Substances, Halocarbons, Halocarbon Alternatives and their Products) Regulations, 2025, in accordance with Article 11(7) of the 1992 Constitution.

Mr Second Deputy Speaker: Hon Members, the Motion has been moved. Is there any Member of the Committee to second the Motion?

Mr Kwabena Okyere Darko-Mensah (NPP — Takoradi): Mr Speaker, I rise to second the Motion.

Question proposed.

Minority Chief Whip (Mr Frank Annoh-Dompreh): Mr Speaker, a Regulation on ozone depleting substance could not have come at a better time. Mr Speaker, not to rehash what I said earlier in respect of the Motion numbered 10; that is the crux of the matter.

Depletion of the ozone layer brings in its wake, climate change, effects on flora and fauna and its attendant effect, particularly, even on the ocean. The rise in temperature all emanates from the depletion of the ozone layer. So, a Regulation to control substances that deplete and affect the ozone layer could not have come at a better time.

Again, I doff my hat to the Chairman and Ghana is doing something right and will become a destination that will be attractive to the international community, especially in the area of environmental conservation.

Mr Speaker, having said this, I encourage Members to support the adoption of this Report.

Question put and Motion agreed to.

Mr Boamah: Mr Speaker, Motion numbered 13, with your kind leave.

Environmental Protection (Environmental Assessment) Regulations, 2025

Chairman of the Committee (Mr Patrick Yaw Boamah): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee on Subsidiary Legislation on the Environmental Protection (Environmental Assessment) Regulations, 2025.

Mr Speaker, I ask the *Hansard* to capture the Report as having been read in its entirety while I move to the conclusion.

Introduction

The Environmental Protection (Environmental Assessment) Regulations, 2025 was laid by the Hon Minister for Environment, Science and Technology, Dr Murtala Muhammed Ibrahim, on 24th June, 2025. The Instrument was laid pursuant to Article 11(7) of the Constitution and Order 100 of the Standing Orders of Parliament.

In accordance with Order 220(3) of the Standing Orders, the Rt Hon Speaker referred the Instrument to the Committee on Subsidiary Legislation for consideration and report.

Deliberations of the Committee

The Committee met to consider the draft Environmental Protection (Environmental Assessment) Regulations, 2025 in accordance with article 11(7) of the Constitution and Orders 100 and 220 (4) of the Standing Orders of Parliament.

In attendance to consider and deliberate on the draft Instrument were the Hon Minister for Environment, Science, Technology and Innovation, Dr Murtala Muhammed Ibrahim; the Chief Director, Ms Suweibatu Adam; the Chief Executive Officer of the Environmental Protection Agency, Prof Nana Ama Klutse, and officials from the Office of the Attorney-General and Ministry of Justice.

The Committee expresses its profound gratitude to the Hon Minister and officials from the Office of the Attorney-General and Ministry of Justice for their attendance and contributions during the deliberations.

Reference Documents

The following documents were referred to by the Committee during its deliberations:

- a. The 1992 Constitution of the Republic of Ghana;
- b. The Standing Orders of the Parliament of Ghana;

- c. The Environmental Protection Act, 2025 (Act 1124);
- d. Environmental Assessment Regulations, 1999 (L.I. 1652);
- e. The Draft Environmental Protection (Environmental Assessment) Regulation, 2025; and
- f. Report of the Stakeholder Consultations on the Draft Environmental Protection (Environmental Assessment) Regulation.

Scope of the Mandate of the Committee

The Committee was guided by the provisions of Article 11(7) of the 1992 Constitution and Standing Order 220(4) in considering the referral. These provisions enjoin the Committee to determine whether a Regulation under consideration:

- a. is in accordance with the Constitution or the Act under which it is made;
- b. contains any matter which should more appropriately be dealt with in an Act of Parliament;
- c. contains imposition of any tax;
- d. directly or indirectly bars the jurisdiction of the courts;

- e. gives retrospective effect to any of the provisions in respect of which the Constitution or the Act does not expressly give that power;
- f. involves expenditure from the Consolidated Fund or public revenues;
- g. appears to make an unusual or unexpected use of powers conferred by the Constitution or the Act pursuant to which the Regulations were made;
- h. appears to have been unjustifiably delayed in its publication or in laying it before Parliament; and
- i. for any reason, in its form or purpose, requires clarification.

Background

Ghana is continuously faced with severe environmental devastation due to activities of illegal mining, air and water pollution, waste mismanagement, climate change and destruction of habitat. Recognising the short-and long-term threat of these activities on the ecosystem, it is imperative that stringent measures be imposed to tighten the legal regime.

Accordingly, pursuant to the enactment of the Environmental Protection Act, 2025 (Act 1124), the Hon Minister responsible for Environment,

Science, Technology and Innovation in the exercise of the powers contained under Section 43 of Act 1124 presented the draft Regulations to Parliament. The draft Legislative Instrument seeks to amend the Environmental Assessment Regulations, 1999 (L.I. 1652) and align its provisions with the objectives of the Environmental Protection Act, 2025.

When passed into law, the draft Legislative Instrument would regulate, emerging environmental issues relating to climate change, e-waste, pesticides and hazardous substances, industrial and consumer chemicals, while enabling coordination of activities between bodies concerned with practical and technical aspects of protecting the environment. It also seeks, among other things, to regulate the category of undertakings in respect of which environmental assessment is required, and control the type, quality and concentration of substances that may be released into the environment.

Purpose of the Regulation

The objectives of the Regulations, as outlined under Regulation 1 of the draft Legislative Instrument are to:

- (a) protect the environment by preventing, minimising, offsetting or compensating for the negative environmental impacts of an undertaking through the environment assessment process;

- (b) promote sustainable development by balancing natural resource utilisation, socio-cultural dimensions of development and economic growth;
- (c) mainstream climate change, biodiversity, pollution control and other emerging issues into the environmental assessment process;
- (d) promote and integrate public participation into the environmental assessment process by providing the opportunity for communities and stakeholders to express concerns and contribute to decision-making at every stage of the process; and
- (e) facilitate sustainable decision-making process of the Authority.

Pre-laying Consideration of the Instrument

In accordance with the established practice of the Committee, a pre-laying session was held with the technical team from the Ministry, led by Ms Suweibatu Adam and officials of the Office of the Attorney-General and Ministry of Justice to examine the draft instrument. The session afforded the Committee the opportunity to offer recommendations for amendments prior to the formal laying of the Legislative Instrument on the floor of the House.

The pre-laying session provides a critical window for refining the instrument to ensure its alignment with national objectives and legal standards. This is because the 1992 Constitution does not permit modifications to a Legislative Instrument once laid before Parliament unless Parliament by a vote of not less than two-thirds of all Members, annul the Regulation before the expiration of twenty-one Sitting days.

Stakeholder Engagement

The Committee took note of the comprehensive report on stakeholder engagement held by the Authority to solicit contributions of the public which have been incorporated into the draft instrument. The Committee applauds the efforts made at enriching the draft Legislative Instrument.

Observations

Compliance

The Committee noted that the Legislative Instrument conforms with the provisions of the Article 11(7) of the 1992 Constitution and Order 220(4) of the Standing Orders. Accordingly, the exercise of the power of the substantive Minister, under Section 43 of Act 1124, complies with and satisfies the procedural requirements imposed by law.

Environmental Practitioners

The Committee observed that paragraph (j) of Section 43 of the Environmental Protection Act, 2025 (Act 1124), which relates to certification of environmental management practitioners, has been provided as part of the cross-references in the enacting clause, and sought an explanation on whether the instrument seeks to regulate practitioners. Section 43(j) provides that:

“The Minister may in consultation with the Board, by legislative instrument, make Regulations for:

- (j) certification of environmental management practitioners.”

The Committee was informed that paragraph (j) of section 43 was included as a matter of policy. It was explained that though the Authority intends to present a separate instrument targeted at regulating the activities of practitioners in the near future, the references to paragraph (j) in the enacting clause of the draft Regulation is to limit the preparation and submission of environmental reports to only persons certified as environmental practitioners, thus its inclusion in the enacting clause of the Regulation.

The Committee urges the Authority to expedite action and present to Parliament, the Legislative Instrument that will regulate activities of the

environmental management practitioners to ensure sanity within the space.

Trans-Boundary Environmental Impact

The Committee raised concern about the possible conflict of laws situation that may arise with the wording of Regulation 2(2), which seeks to extend the application of the instrument beyond the jurisdiction of the country where the need for international collaboration arises.

It was explained that Regulation 2(2) is intended to protect trans-boundary environmental impact. Accordingly, sub-regulation 2 would enable any potential cross-boundary assessments for countries involved to develop a process of harmonisation in dealing with any trans-boundary environmental impact.

The Committee was further informed that the sub-regulation would also align with the Regional Environmental Assessment Regulations being developed by ECOWAS to provide a framework to (that will) regulate potential trans-boundary environmental impact.

The Committee commends the Authority for its effort in ensuring that the Legislative Instrument conforms with emerging regional and international legal frameworks on cross boundary collaborations aimed at mitigating adverse environmental impact on the ecosystem.

Environmental Permits

On whether the draft Regulations provides clarity as to which agricultural undertakings would require environmental permits, the Committee was informed that the Regulation is targeted mainly at commercial farmers. However, subsistence farmers who form part of an out-grower plantation may require permit.

It was revealed that the permits are scaled differently into micro, minor, small, medium and large-scale impacts, therefore the situation is not likely to arise. The Authority also assured the Committee that in order to ensure clarity regarding which agricultural undertakings should be permitted, it would publish sector-specific guidelines detailing a particular agricultural sector undertaking that requires a permit.

The Committee urges the Authority to adhere to the timely publication of the sector-specific guidelines and make them accessible to all stakeholders in order to ensure clarity in the application of the law.

Appeal Against a Decision of the Authority

The Committee noted that the Authority is statutorily mandated to establish a redress mechanism to specifically address grievances pertaining to environmental and social performance. This mechanism is required to operate in a timely and

transparent manner, thereby ensuring that all affected parties are afforded a clear and effective avenue for the lodging and resolution of complaints.

It was also disclosed that the Authority was obliged to provide a comprehensive account of the performance of this redress mechanism within its annual report, thereby promoting both accountability and transparency in its operations.

Consequently, the draft Legislative Instrument mandates the Minister to appoint a panel within fourteen days of the receipt of a complaint. The composition of this panel, as prescribed in sub regulation (3)(a) of Regulation 43, is intended to ensure a balanced and expert review of the complaint, drawing upon a diverse range of expertise and perspectives.

The Committee urges both the Authority and permit holders to adhere strictly to these reporting obligations to enhance transparency and strengthen public scrutiny.

Reclamation Bond

The Committee observed that a person responsible for an undertaking in respect of which a reclamation plan is required, is mandated to submit an estimated cost of reclamation for approval by the Authority and post a reclamation bond based on the approved cost within, six months from the commencement. The Committee noted

that this provision is not deterrent enough.

Posting a bond six months after commencement and the consequent payment of an administrative penalty is inadequate punishment to prevent violations of the provisions having regard to the devastation on the ecosystem. In this regard, the Committee was of the view that priority should be given to measures aimed at preventing the devastation of the ecosystem rather than the payment of administrative penalties.

To this end, the Committee recommends a modification of Regulation 40 (2) (b) that imposes an obligation on persons responsible for an undertaking to post a bond based on the approved cost estimate before the commencement of operations.

The Committee also recommends the criminalisation of failure to post a bond before commencement, to prevent potential breaches of the law.

Decision and Recommendation

The Committee acknowledges the critical importance of enacting the Environmental Protection (Environmental Assessment) Regulations, 2025 having regard to the continuous degradation of the environment and how it negatively impacts the ecosystem. It is the considered view of the Committee that the promulgation of these Regulations

will serve as a vital instrument in promoting sustainable development. It will also ensure a balance between extraction, the utilisation of natural resources and the promotion of economic growth.

In view of the above, the Committee accordingly recommends that the House adopt its Report and endorse the coming into force of the Environmental Protection (Environmental Assessment) Regulations, 2025, in accordance with Article 11(7) of the 1992 Constitution.

Mr Second Deputy Speaker: Any Member of the Committee to second the Motion?

Mr Kwabena Okyere Darko-Mensah (NPP — Takoradi): Mr Speaker, I rise to second the Motion and in doing so, I would like to make some comments.

Mr Speaker, if we look at page 9 of the Report, it talks about the “Reclamation Bond”. It is very important that this reclamation bond is popularised, so that Ghanaians know that it exists.

Secondly, I believe that it is time we line up these reclamation bonds with the assemblies because if we look at the devastation from especially *galamsey*, we need to have ready funds to be able to do these things. All over the world, when mines are being done, they are reclaimed. The big mines even create bigger holes than the small mines.

Unfortunately, the reclamation bonds are not accessible by the district assemblies, so even though their areas are devastated, they do not seem to have money to hire bull dozers to reclaim these lands. When these lands are reclaimed, within two years, they can re-grow and I believe that we have to start looking at that side of the mining industry to make sure that we support the reclamation bonds being sent to the Assemblies to support them to do this type of work locally.

With these few words, Mr Speaker, I beg to second this Motion.

Question proposed.

Mr Haruna Iddrisu: Mr Speaker, this is for the Chairman of the Committee to provide further explanation if you permit it.

Mr Second Deputy Speaker: Chairman of the Committee, please, listen.

Minister for Education (Mr Haruna Iddrisu) (MP): Mr Speaker, it is for the Chairman of the Committee to provide further elucidation on paragraph 5(1), line (4), and it reads:

“... recognising the short- and long-term threats of this activity”

Is that what the Hon Minister wanted to say? Is it a “threat” or “damage”? Because the Hon Minister has conceded

that illegal mining, air and water pollution, waste management and destruction of the habitat—I have a difficulty with the word “threat” because the issue goes beyond threat. It is talking about activities on—Whatever it is, I just want an explanation.

Mr Speaker, then I end it there, paragraph 5(2), line (4), the draft legislative instrument seeks to amend the environment assessment Regulation. Are you amending or repealing—All right, you are amending.

Thank you.

Question put and Motion agreed to.

Mr Second Deputy Speaker: Hon Yaw Boamah, I would take your last Motion.

Mr Boamah: Rightly so.

**Environmental Protection
(Refrigeration and
Air Conditioning Certificate)
Regulations, 2025**

Chairman of the Committee (Mr Patrick Yaw Boamah): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee on Subsidiary Legislation on the Environmental Protection (Refrigeration and Air Conditioning Certificate) Regulations, 2025.

Mr Speaker, I will entreat the *Hansard* as having been read in its entirety and ask that this House adopts the Report.

Introduction

The Environmental Protection (Refrigeration and Air Conditioning Certification) Regulations, 2025 was laid by the Hon Minister for Environment, Science and Technology, Dr Murtala Muhammed Ibrahim, on 24th June, 2025. The Instrument was laid in accordance with Article 11(7) of the Constitution and Order 100 of the Standing Orders of Parliament.

In accordance with Order 220(3) of the Standing Orders, the Rt Hon Speaker referred the Instrument to the Committee on Subsidiary Legislation for consideration and report. The Committee met on the referral to deliberate on the Legislative Instrument and presents its Report to the House.

Deliberations of the Committee

The Committee met and considered the Environmental Protection (Refrigeration and Air Conditioning Certification) Regulations, 2025. In attendance to consider and deliberate on the draft Instrument were the Hon Minister for Environment, Science and Technology, Dr Murtala Muhammed Ibrahim; the Chief Executive Officer of Environmental Protection Authority (EPA), Prof Nana Ama Klutse, and officials from the Office of the Attorney-General and Ministry of Justice.

The Committee expresses its profound gratitude to the Hon Minister and the officials from the Office of the Attorney-General and Ministry of Justice and the EPA for attending upon the Committee to provide clarifications to the Regulations.

Reference Documents

The Committee referred to the following documents during its deliberations;

- a) The 1992 Constitution of the Republic of Ghana;
- b) The Standing Orders of Parliament of Ghana;
- c) The Environmental Protection Act, 2025 (Act 1124);
- d) The Management of Ozone Depleting Substances and Products Regulations, 2005 (LI 1812); and
- e) The Environmental Protection (Refrigeration and Air Conditioning Certification) Regulations, 2025.

The Scope of the Committee's Mandate

The Committee was guided by the provisions of Article 11 (7) of the 1992 Constitution and Standing Order 220(4) in considering the referral. These provisions enjoin the Committee to

determine whether a Regulation under consideration:

- a) is in accordance with the Constitution or the Act under which it is made;
- b) contains any matter which should more appropriately be dealt with in an Act of Parliament;
- c) contains imposition of any tax;
- d) directly or indirectly bars the jurisdiction of the courts;
- e) gives retrospective effect to any of the provisions in respect of which the Constitution or the Act does not expressly give that power;
- f) involves expenditure from the Consolidated Fund or public revenues;
- g) appears to make an unusual or unexpected use of powers conferred by the Constitution or the Act pursuant to which the Regulations were made;
- h) appears to have been unjustifiably delayed in its publication or in laying it before Parliament; and
- i) for any reason, in its form or purpose, requires clarification.

Background

Ghana affirmed its commitment to global environmental protection by

signing the Montreal Protocol in 1987, which came into force in 1989 to regulate Ozone-Depleting Substances (ODSs). The Protocol, enhanced through five key amendments—including the Kigali Amendment ratified by Ghana in 2019—expanded its scope to include high global warming potential substances like Hydrofluorocarbons (HFCs), linking ozone protection with climate action. Ghana further reinforced its obligations by incorporating the Kigali provisions into national law via the Management of Ozone Depleting Substances and Products Regulations, 2005 (LI 1812), demonstrating its dedication to upholding international environmental standards.

As part of the country's unwavering commitment to upholding global environmental standards, the Environmental Protection Authority (EPA), with support from the German Agency for International Cooperation (GIZ), has enacted a comprehensive regulation aimed at strengthening oversight in the Refrigeration and Air Conditioning (RAC) sector. This Regulation establishes a robust framework for the qualification, certification, and registration of RAC technicians, thereby promoting environmentally sound practices and enhancing compliance with international climate obligations.

The enactment of this regulation into law will play a critical role in safeguarding human life and property from potential hazards associated with the installation, repair, maintenance, and operation of refrigeration and air-

conditioning (RAC) equipment. These risks, often stemming from substandard workmanship, particularly in the handling of flammable refrigerants, underscore the urgent need for a regulated and professionally certified RAC workforce.

Purpose of the Legislative Instrument

The Legislative Instrument seeks to regulate emissions of refrigerants from the refrigeration and air conditioning sector, to:

a. prevent ozone depletion and respond to climate change and the effect of climate change on the environment and human health;

b. provide for the requirements, procedures and practices to ensure that the standards for refrigeration and air conditioning: installation, testing, maintenance, servicing, decommissioning, and disposal are complied with;

c. ensure the safe handling of equipment and refrigerants that are approved by the Authority in accordance with the Montreal Protocol on Substances that Deplete the Ozone Layer;

d. ensure that emissions from refrigeration and air conditioning installation, testing, maintenance, servicing, decommissioning and disposal do not impact the environment and public health; and

e. ensure compliance with the Code of Practice for Refrigeration and Air Conditioning Systems and Heat Pump

(GS 1383) as may be reviewed from time to time.

Pre-Laying Consideration of the Instrument

The Committee, in accordance with established practice, held a pre-laying session with the technical team from the Ministry, led by Ms Suweibatu Adam and Officials of the Attorney General's Department to examine the draft instrument. The session afforded the Committee Members and stakeholders the opportunity to offer recommendations for amendments prior to the formal laying of the Legislative Instrument on the floor of the House.

The pre-laying session provides a critical window for refining the instrument to ensure its alignment with national objectives and legal standards. This is because the 1992 Constitution does not permit modifications to a Legislative Instrument once laid before Parliament unless Parliament by a vote of not less than two-thirds of all Members, annul the Regulation before the expiration of Twenty-One (21) Sitting days.

Observations

Compliance with Law

The Committee is of the considered view that the Instrument satisfies the legal imperatives provided in article 11(7) of the 1992 Constitution, and does not contravene any provision of the Constitution, the parent Act or any other existing legislation.

In addition, the Environmental Protection (Refrigeration and Air Conditioning Certification) Regulations, 2025 does not impose any form of taxation. The Committee also notes that the Instrument contains no express provision authorizing expenditure from the Consolidated Fund or any other public funds.

Having considered the provisions of the Instrument, the Committee is of the opinion that the Instrument neither directly nor indirectly ousts the jurisdiction of the Courts, and it does not operate retrospectively to impose limitations on or adversely affect personal rights of persons.

Accessibility of Illiterate Practitioners

The Committee observed that the licensing regime provided under the Regulations has been structured in tiers and in a manner outlining different levels of licenses that corresponds to practitioners' qualifications and literacy. For example, Level One licenses have been designated for individuals who may not be able to read or write but possess the requisite technical skills and experience to carry out refrigeration and air conditioning work.

The Committee commends the categorization of the licensing regime to accommodate all and sundry, and recommend proper administration of the tiered approach to ensure inclusivity,

while maintaining professional standards across the sector.

Comprehensive framework

The Committee observed that the Regulation establishes clear requirements, procedures, and practices that ensures compliance with reputable standards in the installation, testing, maintenance, servicing, decommissioning, and disposal of refrigeration and air conditioning systems.

The Committee is of the view that this comprehensive framework will enhance operational safety and environmental responsibility within the sector and also promote standardisation of industry practices across the country, guaranteeing improve efficiency and accountability in industry practice.

Safe Handling of Equipment

It was noted that the Regulation is repleted with enhance provisions on safe handling of equipment and refrigerants, which provisions stand to significantly reduce environmental and health risks associated with the improper handling of Ozone-Depleting Substances.

The Committee is happy to note that these provisions reinforces compliance with the Code of Practice for Refrigeration and Air Conditioning Systems and Heat Pump (GS 1383). It also ensures that evolving best practices are incorporated into industry operations.

Decision and Recommendation of the Committee

Having carefully examined the proposed Regulation aimed at controlling emissions from the refrigeration and air conditioning sector, the Committee finds that the Instrument is a progressive and necessary measure aimed at curbing the release of harmful refrigerants which contributes to ozone layer depletion and exacerbates the effects of climate change. In essence, the Regulation aligns with the international obligations of Ghana, under the Montreal Protocol, demonstrating a strong commitment to environmental protection and sustainable development.

In the light of these observations, the Committee accordingly recommends to the House to adopt its Report and endorse the coming into force the Environmental Protection (Refrigeration and Air Conditioning Certification) Regulations, 2025, in accordance with Article 11(7) of the 1992 Constitution.

Proposed Amendments by the Committee During the Pre-Laying Session

During the pre-laying engagement, the Committee proposed the following amendments to the draft instrument:

Regulation 6(5) - The provision should be linked explicitly to grounds that may warrant the revocation of a member of the Committee, ensuring clarity and fairness in the removal process.

Regulation 7(5) - The term “consensus” should be replaced

with “majority” to provide a more practical and operational decision-making threshold.

Regulation 11(7) - The word “Commission” should be deleted and replaced with “Authority” to reflect the correct institutional reference.

Regulation 12(1)(a) - The number “five” should be amended to “seven” to ensure broader representation or participation, as appropriate.

Regulation 31(a) - (v) - Correct the internal reference from “ii” to “iii”, ensuring consistency and accuracy within the subparagraph.

Throughout the Regulations - Delete the “s” from “Heat Pumps”, so it reads as “Heat Pump” consistently across the entire instrument. This correction is consequential and should be applied wherever the term appears.

Mr Kwabena Okyere Darko-Mensah (NPP — Takoradi): Mr Speaker, I rise to second the Motion.

Question proposed.

Mr Second Deputy Speaker: Hon Members, I guess we all appreciate the Motion, so I would go ahead and put the Question.

Question put and Motion agreed to.

Mr Boamah: Mr Speaker, let me thank you for giving us the opportunity because the Committee has been very

diligent on this. Let me put this on record that Government was expecting some inflows from the World Bank and we had to carry through these Regulations as part of the Development Policy Operators (DPOs), so our Colleagues on the other Side must be happy with us for bringing into fruition these Regulations.

Mr Second Deputy Speaker: They are happy; everybody is happy.

Mr Boamah: Mr Speaker, the Majority Chief Whip is not happy, from his comments.

Mr Second Deputy Speaker: Hon Dafeamekpor, this is not an invitation to—

Mr Dafeamekpor: No, Mr Speaker. Let the records bear me out that I am very happy that the distinguished Chairman of the Subsidiary Legislation Committee is doing his duty under law—*[Laughter]*—day and night, and we are happy. We thank the Chairman for the fact that all these Reports have been brought to the Floor for adoption.

Mr Second Deputy Speaker: Thank you very much and I would urge all Chairpersons of Committees to, please, take a cue from what the Chairman for the Subsidiary Legislation has done. We have a lot of reports and we urge you to do well to bring some of these Reports for the Plenary to consider.

So, Hon Chairman of the Committee on Subsidiary Legislation, the House is also happy with what you have done.

Yes, Leadership?

Mr Dafeamekpor: Mr Speaker, may we take the Report of the Committee on Energy on the GNPC work programme on the Order Paper *Addendum*, the item numbered 2.

Mr Second Deputy Speaker: Very well. Is the Chairman here?

Mr Dafeamekpor: Mr Speaker, the Chairman is unavoidably absent, so the Vice Chairman is able, present and willing.

Mr Second Deputy Speaker: Hon Members, let me invite you to the item listed 2 on the Order Paper *Addendum*—Motion and it would be taken by the Vice Chairman of the Committee on Energy.

Vice Chairman, you have the floor now.

Mr N. T. Mahama: Mr Speaker, I want the Hansard to capture 9.0, Financial Requirement for 2025.

Mr Second Deputy Speaker: Vice Chairman, please, move the Motion first before you attach the Report of the Committee.

MOTION

Suspension of Standing Order 104(1)

Vice Chairman of the Committee (Mr Naser Toure Mahama) on behalf of the Chairman of the Committee: Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a motion shall not be debated until at least two sitting days have elapsed after the notice to move the motion is given,

the motion for the adoption of the Report of the Committee on Energy on the Work Programme of the Ghana National Petroleum Corporation (GNPC) for the year 2025 may be *moved* today.

First Deputy Minority Whip (Alhaji Habib Iddrisu): Mr Speaker, I rise to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

3.04 pm.

Mr Second Deputy Speaker: Yes, now, Vice Chairman, you would take the substantive Motion in the item numbered 3.

This is where after the Motion, you would read, submit or present the Committee's Report. So, move the Motion and present the Committee's Report.

Mr Naser Toure Mahama: Mr Speaker, I want the *Hansard* to capture 9.0 — Financial Requirements for GNPC for 2025. The total expenditure of GNPC for the 2025 financial year is projected to be US\$1.403.89 million against total revenue of US\$ 1.283.69 million. This creates a funding gap of 120.20 million.

Mr Second Deputy Speaker: Chairman, we are all learning. So, you move the Motion, then after the Motion, you beg to present the Committee's Report.

Alhaji Habib Iddrisu: Mr Speaker, let me just relate to my Colleague. Alhaji, Motion 3 on page 2 of the Order

Paper *Addendum*. So, you can elect to read whatever is there, the entire thing, before you present the Report.

MOTION

Report of the Committee on Energy on the Work Programme of the Ghana National Petroleum Corporation (GNPC) for the year 2025

Chairman of the Committee (Mr Naser Toure Mahama): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee on Energy on the Work Programme of the Ghana National Petroleum Corporation (GNPC) for the year 2025.

Introduction

The 2025 Work Programme of the Ghana National Petroleum Corporation (GNPC) was laid in Parliament on 24th July, 2025 by the Deputy Minister for Energy and Green Transition, Hon Richard Gyan-Mensah in accordance with Section 7(3) (b) of the Petroleum Revenue Management Act, 2011 (Act 815) as amended.

The Rt Hon Speaker subsequently referred the Work Programme to the Select Committee on Energy for consideration and report pursuant to Orders 97(5) and 252 of the Standing Orders of the House

Report of the Committee on the Work Programme of GNPC for the year

Deliberations

The Committee met with the Hon Deputy Minister for Energy and Green Transition, Mr John Sanni and considered the Work Programme. A technical team from GNPC led by the Ag Chief Executive Officer, Mr Kwame Ntow Amoah, also attended the meeting.

The Committee expresses its profound appreciation to the Deputy Minister and his team from the Ministry as well as Officials from GNPC for attending upon the Committee and assisting in the deliberations

Reference Documents

The Committee referred to the following documents during its deliberations:

- i. The 1992 Constitution of the Republic of Ghana;
- ii. The Standing Orders of Parliament;
- iii. The Petroleum Revenue Management Act, 2011 (Act 815);
- iv. The Petroleum Revenue Management (Amendment) Act, 2015 (Act 893);
- v. The Petroleum (Exploration and Production) Act, 2016 (Act 919);

- vi. The Ghana National Petroleum Corporation Act, 1983 (PNDCL 64);
- vii. The Budget Statement and Economic Policy of the Government for the 2025 Financial Year;
- viii. The Petroleum Hub Development Corporation Act, 2020 (Act 1053);
- ix. The 2023 Work Programme of the Ghana National Petroleum Corporation;
- x. The 2024 Work Programme of the Ghana National Petroleum Corporation; and
- xi. The 2025 Work Programme of the Ghana National Petroleum Corporation.

Background Information

GNPC was established in 1983 pursuant to the Ghana National Petroleum Corporation Act, 1983 (PNDC Law 64). GNPC is mandated by its enabling enactment to undertake the exploration, development, production and disposal of petroleum in the country (Section 2(1) of PNDCL 64).

Per Section 10 of the Petroleum (Exploration and Production) Act, 2016 (Act 919), GNPC is a necessary party to all petroleum agreements entered into with international oil companies and

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holds the interests of the State in all petroleum blocks.

GNPC is enjoined to ensure that the country derives optimal benefits from the exploitation of its petroleum resources, the development of national capabilities along the entire petroleum value chain and the conduct of petroleum activities in such a manner that minimises adverse impact on the environment and the people of Ghana.

A portion of petroleum revenue is ceded under the Petroleum Revenue Management Act, 2011 (Act 815) to fund the activities of GNPC.

Accordingly, Section 7(3)(b) of Act 815 requires Parliament to approve the activities of GNPC for each year. In accordance with the regulatory requirement, the Hon Minister is to lay the 2025 Work Programme of GNPC to the House for approval.

Vision, Mission and Strategic Objectives of GNPC

The vision of GNPC is to become a global Oil and Gas Exploration and Production Company whose operations will have a profound impact on the quality of life of the people of Ghana.

The mission of GNPC is to lead the sustainable exploration, development, production and disposal of the petroleum resources of Ghana, by leveraging the

right mix of domestic and foreign investments in partnership with the people of Ghana.

The strategic objective of GNPC is to become a strong and efficient oil and gas exploration and production operator with significant financial independence by 2030.

Medium-Term Priority Areas (2021-2026)

GNPC has undertaken to pursue the following prioritised targets:

- i. Work towards increasing reserves and optimising production;
- ii. Building capacity and raising standards;
- iii. Securing Financial Sustainability;
- iv. Integrating Environmental, Social, and Governance Standards and Reporting and Green Energy;
- v. Establishing Compliance and Operational Standards;
- vi. Attracting international major players such as Shell, BP, CNOOC, and Exxon Mobil;
- vii. Fostering a strong organisational culture; and
- viii. Building strong stakeholder relationships.

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Performance of GNPC in 2024

The operational performance of GNPC and its Partners in 2024 is summarised as follows:

Petroleum Business

Together with its Partners, GNPC achieved the following under its Petroleum business operations in 2024:

- i. Exported a total of 32.80 Bcf of gas, averaging 89.61 MMScf/d (representing 94.33% performance against target);
- ii. Achieved Crude oil production of 31.85 MMbbls, averaging 87,019 bopd (98.94% performance);
- iii. Ghana Group lifted 6 parcels of crude oil;
- iv. Drilled and completed 4 development wells (J68-P, J69-P, J70-WI and J71-P);
- v. Acquired and processed 1,040-line km of 2D seismic data in the Southern sector; and
- vi. Successfully secured a strategic partner (Tristar Upstream Oil and Gas Limited) through GNPC Explorco.

Gas Business

GNPC achieved the following targets under its gas business operations in the year 2024:

- i. An amount of US\$1.00 million has been allocated for payment of outstanding invoices;
- ii. Invited prospective candidates to tender in order to procure the EPCIC contract in respect of Tema City Gate Project;

Capital Projects

The Corporation achieved the following milestones under its capital projects in 2024:

- i. Successfully commissioned the Operational Head Office building (Energy House) in Takoradi on 1st August 2024;
- ii. Completed 30 per cent of civil and structural works at the Accra Head Office; and
- iii. Achieved an overall completion rate of 87.46 per cent and Furniture has been procured to furnish the administration section of the building.

GNPC Energy Base and Logistics Hub

In keeping with its core mandate, GNPC developed a strategic scope of work and issued an Expression of Interest (EOI) to procure a consultant to

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conduct feasibility studies regarding the Corporation's Energy Base and Logistics Hub.

Outlook for 2025

GNPC plans to undertake the following programmes in 2025:

Development and Production Projects

GNPC plans to undertake the following development and production projects in 2025:

Greater Jubilee Field

Regarding production activities on the Greater Jubilee Field, GNPC and its Partners will undertake the following activities:

- i. Lift five (5) parcels of Crude Oil;
- ii. Drill four (4) development wells and complete (2) ongoing wells;
- iii. Achieve 100.00 MMScf/d of gas export;
- iv. Achieve 74,500 bopd of crude oil production; and
- v. Continue with reservoir engineering studies, well maturation exercise and production surveillance for efficient Jubilee Field subsurface management.

Tweneboa-Enyenra-Ntomme (TEN) Field

On the Tweneboa-Enyenra-Ntomme Field, GNPC and its Partners will undertake the following activities:

- i. Lift One (1) parcel of crude;
- ii. Drill two (2) development wells, complete two (2) ongoing wells;
- iii. Achieve 5.36 MMScf/d of gas export;
- iv. Produce 17,892 bopd of crude oil production; and
- v. Continue fabric maintenance, asset integrity improvement campaign and engineering projects to further improve facility performance.

Sankofa Gye-Nyame (SGN) Field

Regarding the Sankofa Gye-Nyame (SGN) Field, GNPC and its Partners have committed to execute the following activities:

- i. Produce 24,245 bopd of crude oil production;
- ii. Lift two (2) parcel of crude oil (CAPI);
- iii. Export 200 MMScf/d of gas export; and

- iv. Perform fabric maintenance, asset integrity improvement Campaign and subsea network inspection to improve facility efficiency and achieve facility uptime of 95 per cent.

Tano Cape Three Point Block Project

On the Deep Water Tano Cape Three Point Block Project, the GNPC and its Partners will undertake the following activities:

- i. Commence Engineering Procurement, Construction, Installation and Commissioning (EPCIC);
- ii. Complete seismic reprocessing activities for the entire DWT/CTP contract area; and
- iii. Acquire additional interest of 3 per cent in the block.

Decommissioning of Saltpond Field

On the decommissioning of the Saltpond Field, the Corporation intends to continue dismantling and removal of the Mr Louie platform. An amount of US\$10.06 Million has been allocated for this project.

Exploration and Appraisal Projects

On exploration and appraisal projects, GNPC will undertake the following activities:

Voltaian Basin Project

On the Voltaian Basin project, GNPC and its Partners plan to undertake the following activities:

- i. Drill one (1) exploratory well through GNPC Explorco;
- ii. Geological Field Mapping;
- iii. Oil Spill Modelling (basin-wide);
- iv. Fluid & Rock Sample Analysis; and
- v. Pore-Pressure Validation.

GNPC Block 1 Project – Tano Basin

- i. Obtain Petroleum Agreement (PA) ratification from Parliament; and
- ii. Acquire 1,200 sq.km 3D seismic data to analyse leads and prospects.

GNPC Energy Base and Logistics Hub Project

On the Energy Base and Logistics Project, the Corporation shall acquire land for the project and related permits.

Gas Business Project

Gas Evacuation Enclave Roads

With regards to the Gas Evacuation Roads, a budgetary allocation of

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US\$5.00 million has been earmarked for the settlement of outstanding certificates.

Integrated Energy Plan Development

Under the Integrated Energy Plan Development project, GNPC shall conduct feasibility studies for low carbon project.

Non-Petroleum Capital Projects

GNPC plans to undertake the following non-petroleum capital projects in 2025:

Accra Head Office Project

- i. Achieve 90 per cent completion of the structural frame of the 18-storey office structure and the structural frame of the Auditorium; and
- ii. Achieve a cumulative 45 per cent of physical level completion

Takoradi Operational Head Office

GNPC intends to undertake the following key projects in 2025:

- i. Loan repayment;
- ii. Design and construction of security fencing;
- iii. Road works in and around the facility; and
- iv. An amount of US\$8.86 million has been allocated in 2025 for the activities.

Research and Technology (RAT) Centre

The Corporation intends to achieve a 93 per cent cumulative completion level for phase 1 (Building and Civil Works), achieve 85 per cent completion of the Data Centre, complete and commission 3D Visualization Facility, procure and install an initial fluid laboratory, and secure strategic partner for the RATC project. An amount of US\$16.89 million has been allocated for this project in 2025.

Works on Landed Property

GNPC intends to replace and install two passenger lifts, replace the existing firefighting system, replace water and sewage system, roof waterproofing and associated works, safety improvement on the 7th floor open terrace and ancillary works. A total amount of two million United States Dollars and four cents (US\$2.04 million) has been allocated to fund the above-mentioned projects.

Beach Road Facility

The Corporation plans to complete redevelopment of the Beach Road Facility in 2025 and has allocated an amount of US\$ 0.90 million to fund the project.

Digital Transformation

Under this programme, the Corporation shall execute the following projects:

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- i. Combine business management practices and technology by integrating information with the organisation's core business processes to achieve specific business objectives; and
- ii. Implementation of the SAP solution by competent in-house solution architects and provision of training to a selection of staff certification in various modules.

Cybersecurity Projects

The Corporation intends to implement a zero Trust Solution, Database Security, Data Protection from Ransomware, Hardware upgrades, Microsoft DSE (Dedicated Support Engineer) with an amount of about US\$2.66 million.

Local Area Network (LAN) Upgrade

GNPC plans to expand its existing backup solution to include all aspects of its infrastructure, including cloud solutions. An amount of US\$1.21 million has been earmarked for this project.

Data, Artificial Intelligence (AI) and Business Intelligence, IT Security Upgrade

Under GNPC's digital transformation agenda, the Corporation intends to develop AI and Machine Learning (ML) technologies and training programs. An amount of about US\$0.60 million has been allocated to fund the project.

Corporate Social Investments (CSI)

Through the GNPC Foundation, the Corporation will continue to implement its social investment programmes in education and training, economic empowerment, and environment and social amenities in 2025. An amount of US\$ 8.64 million has been allocated to undertake these activities.

Support for Ghana Boundary Commission

GNPC will continue to support the Ghana Boundary Commission to ensure the effective execution of the Commission's mandate. An amount of US\$0.53 million has been earmarked to provide technical and financial support to the Ghana Boundary Commission in 2025.

Financial Requirement for 2025

The total expenditure of GNPC for the 2025 financial year is projected to be US\$1,403.89 million against total revenue of US\$1,283.69 million. This creates a funding gap of US\$120.20 million.

GNPC intends to finance the gap through the estimated cash balance brought forward, collection of GoG and other receivables, and other related debts and term loans. Details of the funding requirements of GNPC for its 2025 activities as against 2024 is as follows:

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2025 Funds Requirement

	Budget 2025	Budget 2024
Crude Oil price per barrel	\$74.70	\$75.44
Expected Number of Cargoes	8	9
<u>REVENUE</u>	US\$m	US\$m
<u>Equity Financing</u>	155.69	215.94
Jubilee Field	60.75	112.71
TEN Field	24.02	34.28
SGN Field	70.92	68.95
<u>Net Share of Carried and Participating Interest</u>	44.23	81.24
Jubilee Field	29.30	74.80
TEN Field	4.28	5.63
SGN Field	10.65	0.81
TOTAL OIL REVENUE	199.92	297.18
TRAINING GRANT	3.85	4.85
Training Grant	3.85	4.85
MISCELLANEOUS INCOME	12.82	12.06
Services to Subsidiaries	12.00	12.00
Sundries	0.82	0.09
TOTAL REVENUE	216.59	314.13

	Budget 2025	Budget 2024
<u>EXPENDITURE</u>	US\$m	US\$m
DEVELOPMENT & PRODUCTION COST	199.94	251.49
Jubilee	69.77	71.68
Tweneboa Enyenra & Ntomme - DWT	38.99	47.03
OCTP (ENI) Sankofa- Gye Nyame Complex	81.12	77.26
Saltpond Field Decommissioning	10.06	55.53
EXPLORATION & APPRAISAL PROJECTS	-	19.72
Voltaian Basin Project	-	18.69
GH-WB-01 Block	-	1.03
GAS BUSINESS PROJECT	-	1.00
Tema City Gate Gas Project	-	1.00
MIDSTREAM & OTHER PROJECTS	5.00	31.73
Gas Evacuation Enclave Roads	5.00	20.00
Petroleum Hub	-	1.00
GNPC Energy Base	-	7.98
Engineering Assets & Integrity Mananagement	-	2.75

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	Budget 2025	Budget 2024
	US\$m	US\$m
CAPITAL PROJECTS	60.42	57.17
Corporate Offices	39.98	25.00
Research and Technology Centre	8.83	15.00
Works on Landed Properties	3.04	2.60
Digital Transformation	8.57	14.57
NON OPERATING EXPENDITURE	8.84	35.00
GNPC Foundation	8.64	25.00
Boundary Projects	0.20	2.00
Africa Energy Bank		8.00
OPERATING EXPENDITURE	57.60	64.33
Personnel Emoluments	32.20	28.00
Admin Capital	5.74	9.00
General Expenses	19.66	27.34
TOTAL EXPENDITURE	331.79	460.44
NET POSITION BEFORE FINANCING	(115.20)	(146.31)

	Budget 2025	Budget 2024
	US\$m	US\$m
GAS BUSINESS		
REVENUE FROM GAS BUSINESS	1,060.09	1,252.93
Jubilee	264.29	249.01
TEN	-	172.64
Sankofa Gye Nyame	703.44	776.52
GNPC Gas Management Income	92.37	54.76
		-
GAS BUSINESS COST	1,055.52	1,247.89
Gas Processing Fee - Jubilee	137.42	147.16
Gas Processing Fee - TEN	-	17.62
Sankofa Gye Nyame - Commodity	718.76	913.00
Transportation - GNGC	101.83	78.77
Transportation - WAPCo	85.86	75.53
Gas Management Services	9.78	10.22
Financing Charges	1.87	5.58
Gas Business Net Margin	4.57	5.04
Total Net Position - Oil & Gas	(110.62)	(141.27)

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	Budget	Budget
	2025	2024
	US\$m	US\$m
Total Net Position - Oil & Gas	(110.62)	(141.27)
Financed By:		
	2.00	8.00
Projected Cash Balance C/fwd	2.00	8.00
Project Financing	45.00	50.00
Corporate Head Office (CHO) Anchor Tenancy	15.00	-
Bank Loan Facility	30.00	50.00
Receivables:	64.06	83.40
LNG SBLC Fees	9.60	-
HSBC Continental Europe	2.97	-
OCTP Escrow	25.30	33.85
Tema Oil Refinery	14.78	19.77
Enclave Roads	11.41	15.27
GNGC Offshore Pipeline	-	12.83
ECG - Interest & Commission on Guarantees	-	1.68
Total	111.06	141.40
NET POSITION AFTER FINANCING	0.43	0.12

Observations

The Committee made the following observations during the deliberations.

Data License Revenue from the Voltaian Basin

The Committee observed that GNPC has made significant investment amounting to approximately US\$147 million in acquiring and processing geological data from the Voltaian Basin to establish the presence of a working petroleum system. It noted with

satisfaction the Corporation's strategy to recoup this expenditure through a data licensing arrangement with the Petroleum Commission, under which GNPC is entitled to 70 per cent of the revenue over the next three years. For 2025, GNPC projects to earn US\$US7 million from this arrangement. The Committee commended this innovative revenue mobilisation approach and urged GNPC to intensify its marketing of the data to interested oil companies while ensuring that the proceeds are properly accounted for.

Completion of Corporate Head Office

The Committee noted that GNPC has earmarked US\$1.8 million in 2025 to procure long-lead items needed to complete its corporate head office. This is part of a total estimated requirement of US\$9 million. The Committee commended this forward planning, especially in light of concerns that delays could result in cost overruns through price escalations and project variations. Members encouraged GNPC to ensure strict project management and fiscal discipline in the execution of this final phase of construction.

Support to the Ghana Boundary Commission

The Committee acknowledged GNPC's increased budgetary allocation of US\$500,000 to support the work of the Ghana Boundary Commission. This is a significant improvement from the initial US\$200,000 allocation and is in response to the growing importance of clarifying Ghana's territorial boundaries with neighbouring countries such as Togo and Burkina Faso, particularly in view of upcoming drilling activities in the Voltaian Basin. The Committee expressed its full support for this collaboration, stressing the strategic importance of clear boundary demarcations in preventing future cross-border disputes over hydrocarbon resources.

Safeguards against Falling Oil Prices

The Committee noted that GNPC's 2025 budget is predicated on a benchmark crude oil price of \$74.70 per barrel, consistent with projections by the Ministry of Finance. However, Members expressed concern over recent downward trends in global oil prices and the potential impact on the Corporation's projected revenue. GNPC indicated that its main safeguard in the event of price shocks would be to scale down expenditure. While this contingency is noted, the Committee urged GNPC to consider adopting more proactive risk management tools such as hedging instruments and expenditure prioritisation frameworks—to cushion against volatility and ensure operational continuity.

Conclusion and Recommendation

Together with its Partners, GNPC plans to perform development and production activities across the Greater Jubilee Field, TEN Field and SGN Field. GNPC will further continue exploration activities on the Voltaian Basin, continue decommissioning of the Saltpond Field alongside its midstream and capital projects. The Corporation has planned to accomplish these critical projects based on a total budget requirement of US\$1,403.89 Million.

The Committee deems the execution of the above projects by GNPC in 2025 as critical to sustaining the country's oil and gas production and exploration.

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In that regard, the Committee recommends to the House to adopt this report and approve the 2025 Work Programme of GNPC in accordance with Section 7(3)(b) of the Petroleum Revenue Management Act, 2011 (Act 815) as amended.

Respectfully submitted.

Mr Second Deputy Speaker: Hon Members, the Chairman has moved the Motion. Yes, the Deputy Ranking Member is here. So, Deputy Ranking Member?

Deputy Ranking Member (Mr Isaac Boamah-Nyarko): Mr Speaker, I rise to second the Motion and in doing so, just a few comments. Mr Speaker, we have engaged GNPC thoroughly. We visited their offices on two occasions and if you look at the Reports, they have a flagship programme, which is the Voltaian Basin. Mr Speaker, the Voltaian Basin covers about 40 per cent of the total landmass of Ghana. The Northern Region, North-East, Savannah, Oti, Volta, Bono East, Eastern and Ashanti Regions. The good news is that, Mr Speaker, phase 1 to 4, 2(d) seismic data of all this total mass have already been completed.

Mr Speaker, a total amount of US\$22.18 million was spent from 2021 to 2024. Mr Speaker, this year, they require an additional US\$1.13 million to undertake few very important activities before they could start exploratory drilling in the second quarter of next

year. They intend to do the oil spill modelling. They also intend to do fluid and rock samples analysis. Now, because this is their major flagship programme for this year, we advise them that they should keep to their stated date of exploratory drilling because they have extended the date on two occasions. This time round, we have pleaded with them that approving this particular amount of US\$1.3 million should be enough in addition to the US\$22.18 million that has already been spent, it should be enough for them to go into drilling in the second quarter of next year. Now, they also have a Research and Technology Centre, which we also visited. We visited with the other Colleagues.

Mr Speaker, all over the world, most petroleum companies or petroleum corporations have what they call a laboratory, a very modern laboratory. It is located on the Spintex Road. We visited the place. It started its operations in 2018. So far, Mr Speaker, it is close to about 40 per cent complete. The intent is to ensure that by the close of the year, at least the laboratory should start working but by and large, Mr Speaker, I want to commend the GNPC for the good work they have done. They have been very open with us in our interactions as a Committee, and I hope that approving this particular budget or work programme for them will enable them to complete a lot of the things that they have said in their report.

Mr Second Deputy Speaker: Thank you very much. Hon Members, the

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Motion to the work programme has been moved and seconded. It is now before the House for consideration.

Mr Dafeamekpor: Mr Speaker, by way of a guide, may we take one from each Side and Leadership and then put the question.

Mr Second Deputy Speaker: Yes, Hon Member for Takoradi?

Mr Kwabena Okyere Darko-Mensah (NPP — Takoradi): Thank you, Mr Speaker, for this great opportunity. Mr Speaker, in contributing to the Report of GNPC, there are a few issues I have noted and I want us to look at.

Mr Speaker, the first one is on page 11, paragraph 8.7, corporate social responsibility. Mr Speaker, you know that GNPC has been doing a very good job in that area for a very long time. Unfortunately, they seem to have been far back in terms of payment and a lot of the contractors are crying for payment.

Mr Speaker, I have seen that they have made a provision of US\$8.64 million for that purpose. Mr Speaker, some of the projects they are doing, especially the roads in the Ejura area of the Western Region that they have procured, are still being left undone.

Mr Speaker, a lot of the Astroturf that they have procured, they still need to pay the contractors and I believe that now that they have made provision for

US\$8.7 million, this figure, first and foremost, is very small. It cannot take care of a lot of the big projects they take on and I believe that we might have to do something about it so that they are able to pay.

Mr Speaker, the other issue has to do with the support for the Petroleum Hub. Last year, they made a provision of 1 million for it. This year, they have taken everything away. No amount of money has been allocated for the Petroleum Hub. Mr Speaker, the Petroleum Hub is one of the major game-changing activities that Government need to do to generate jobs for the youth of this country, especially the people of Jomoro. Mr Speaker, if that project is done, it will create over 780,000 jobs for the young men and women in this country and I believe that we need to find a way to make a location for the Petroleum Hub to be able to start some work so that Anthony Aubynn and his team can start some projects on that area.

Mr Speaker, I have also seen that they have made some good provision for the Ghana Boundary Commission, and I am in full support of it. Mr Speaker, I was part of the first team that went to International Tribunal for the Law of the Sea (ITLOS) and then I have also done some work with the Boundary Commission when I was the Regional Minister. Their work is very important, and I believe that increasing it from 200,000 to 500,000 is worthwhile, and that should support the work they are doing.

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Last but not least, the caution that they have been given, that their expected revenue per barrel is \$74, should be looked at, because currently the pricing is around \$65 and I believe that they also have to be looking at it in the long term.

With this view, Mr Speaker, I support that we look at it and support them.

Mr Second Deputy Speaker: Thank you very much. Yes, Hon Member for, is it Evalue-Ajomoro-Gwira?

Mr Kofi Arko Nokoe (NDC — Evalue-Ajomoro-Gwira): Mr Speaker, thank you for the opportunity to comment on the work programme for GNPC for 2025.

Mr Speaker, we know the important role GNPC plays with regards to ensuring that the hydrocarbons of this country are put to optimum use. We met a committee and I was very happy especially with the allocation made to the GNPC Foundation.

3.14 p.m.

Mr Speaker, we know that in the 2024 work plan of the GNPC Foundation, there are a lot of projects that are still outstanding. We are talking about Astroturf and so many of them. I have a project in my Constituency that is a problem, but an amount of US\$8.64 million has been allocated, and the assurance is that they will see to it and ensure they complete all outstanding

projects before they look to the future of other ones.

Mr Speaker, I am also happy about the decomposition of the Salt Pond Basin, because we know the pollution that these things cause, and so I was very happy that an allocation has been made, and GNPC has given assurance that they will see to the decomposition in order to ensure that we have good environmental reports.

In order to save time, Mr Speaker, I believe GNPC is in good shape, especially with the data. We know how much it costs to invest in data, and the idea to sit down with the Petroleum Commission so that all the money that has been put in by GNPC would be recouped is also a good deal.

So, Mr Speaker, I thank you for the opportunity, and I ask the House to support this Motion.

Mr Second Deputy Speaker: I now turn to Hon Annoh-Dompreh.

Mr Frank Annoh-Dompreh (NPP — Nsawam/Adoagyiri): Speaker, I rise to speak in support of the adoption of the Report. And just a few observations, because I see on page 10 of 19, an earmarked amount for the Beach Road Facility, which the GNPC has programmed to execute. I find that quite important.

However, when we proceed to page 11 of 19, my Senior Colleague spoke to

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GNPC's decision to prosecute some Corporate Social Responsibility (CSR), but the provision there is not detailed enough. All of us have been aligned with the corporate social interventions of GNPC over the years, and it has been impressive and admirable. To just put there that they are going to do programmes in education, training, economic empowerment, and environment is not enough. I thought that the Committee should have got more elucidation, and that should have been captured by this Report.

For instance, in the area of environmental sustainability and conservation, I am sure the GNPC can do a lot more, and also reduce poverty in our countryside. They should be hoping to do more in our countryside. This provision is not encompassing enough, and I thought that they could have elucidated on what the intent of this provision is.

Support for the Ghana Boundary Commission is laudable. I think last year we passed the Boundary Commission Bill into an Act, and the challenge faced by the Boundary Commission has always been liquidity and support, particularly. So, for GNPC to set out to support the Boundary Commission is a laudable activity, and we should support them to sustain that.

On page 9 of 19, item 8.4 talks about integrated energy plan development, and clearly, the GNPC shall go into feasibility studies for low-carbon projects. It also feeds into our Nationally

Determined Contributions (NDCs) as a country, our environmental narrative. But again, the Report is skeletal. They could have added some flesh to it, because to say they are going to go into carbon projects is big. We should have been told in the Report what the GNPC—Because this is the work programme, we cannot just say that we are going to go into carbon projects. That is not enough, and I thought that the Committee could have gotten more details from their outfits.

This is not, even though I support the adoption of the Motion, probably we could adopt it, consequent on GNPC coming back with some more details, especially on the corporate social responsibilities in the area of environment, what are they going to do.

Then, in the area of concern about the integrated energy plan, Mr Speaker, the temperature rise in our country and our decision as a country to meet the NDCs were also adopted by the Paris Agreement. All these corporate bodies are supposed to support government activity, and GNPC should be doing this.

So I support it, but I guess the GNPC should come back with more details in terms of what they can do in the carbon sink project and also corporate social responsibilities. I think, having said this, I encourage Members to support the adoption of the Report.

Thank you, Mr Speaker.

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Mr Second Deputy Speaker: Thank you very much, Hon Members.

Question put and Motion agreed to.

Resolved:

That this honourable House adopts the Report of the Committee on Energy on the Work Programme of the Ghana National Petroleum Corporation (GNPC) for the year 2025.

Mr Annoh-Dompreh: Mr Speaker, the Available Leader should speak. He is often at the back, giving all manner of comments. Now, he is in Leadership. He should put on his microphone and call the Business on the Order Paper *Addendum*. When the Majority Chief Whip was departing—I am helping him. He should sit down and listen—[*Uproar*—Who told them it is their Business?

Mr Speaker, when the Majority Chief Whip was departing, he had indicated Business that should be transacted. I am trying to guide him, and he would listen.

Mr Alexander Roosevelt Hottordze: Mr Speaker, if it pleases you, let us take some of the Bills. [*Pause*]

Mr Dafeamekpor: Mr Speaker, may I plead that we take Motion on the Consideration Stage of the Road Maintenance Trust Fund Bill.

Mr Second Deputy Speaker: All right, let me cede the seat to the First Deputy Speaker.

3.24 p.m. — [HON FIRST DEPUTY SPEAKER, MR BERNARD AHIAFOR, IN THE CHAIR]

Mr Dafeamekpor: Mr Speaker, the indication is that we need to take *Addendum 2* before we take the Business on *Addendum 3*.

Mr Speaker, that would be Motions numbered 1 and 2.

Mr First Deputy Speaker: Yes, Majority Chief Whip, *Addendum 2*?

Mr Dafeamekpor: Mr Speaker, we would take *Addendum 2*.

Mr First Deputy Speaker: Very well.

Mr Dafeamekpor: Mr Speaker, may I seek your leave to get the Minister for Roads and Highways to respectfully take this on behalf of the Minister for Finance?

Mr First Deputy Speaker: Yes, Hon Minority Chief Whip, the application is for the Minister for Roads and Highways to take the Motion for the Minister for Finance.

Mr Annoh-Dompreh: Mr Speaker, I have no objection.

Mr First Deputy Speaker: Yes, Hon Minister for Roads and Highways, the Motion numbered 1 on Order Paper *Addendum 2*

MOTION

Rescission of the Energy Sector Levies (Amendment) Bill, 2025

Minister for Roads and Highways (Mr Kwame Govers Agbodza) (MP) *on behalf of the Minister for Finance:* Mr Speaker, I beg to *move*:

That this honourable House rescinds its decision taken on Thursday, 24th July, 2025, in respect of the Third Reading of the Energy Sector Levies (Amendment) (No.2) Bill, 2025.

Mr First Deputy Speaker: Hon Members, the Motion for rescission has been moved accordingly, any seconder?

Chairman of the Committee (Mr Isaac Adongo): Mr Speaker, I rise to second the Motion.

Question put and Motion agreed to.

Mr First Deputy Speaker: Hon Members, now the Bill is back at Consideration Stage. That is the item numbered 2 on the Order Paper *Addendum 2*.

Hon Members, the Energy Sector Levies (Amendment)(No.2) Bill, 2025 is at the Consideration Stage.

BILL — CONSIDERATION STAGE

Energy Sector Levies (Amendment) (No.2) Bill, 2025

Clause 1 — First Schedule of Act 113(5) amended.

Chairman of the Committee (Mr Isaac Adongo): Mr Speaker, I beg to move that row 3, second column, line 3, after “diesel” *insert* “marine gas oil”

Question put and amendment agreed to.

Mr First Deputy Speaker: Hon Members, the second proposed amendment also standing in the name of the Chairman of the Committee.

Mr Adongo: Mr Speaker, I beg to move that row 4, second column, line 4, after “diesel” *insert* “marine gas oil”.

Question put and amendment agreed to.

The Schedule as amended ordered to stand part of the Bill.

The Long Title ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, the item numbered 3, on the Order Paper *Addendum 2*, Motion.

Minister for Finance?

Mr Dafeamekpor: Mr Speaker, the Minister for Finance is unavoidably absent. Fortuitously, his Deputy is here. So, let me pray you to let him take this on behalf of his Minister.

Mr First Deputy Speaker: Yes, Minority Chief Whip

Mr Annoh-Dompreh: Mr Speaker, we have always been cooperative. The Deputy Minister is friendly. But, while he is mounting that application, he knows that the application must come with a reason the Minister for Finance is not here. So, please, profess reasons for the absence of the Minister, and then we will consider whether to agree or not.

Mr Dafeamekpor: Mr Speaker, I used our language. The language used on the Floor is “unavoidably absent”.

Mr Speaker, that is the language that I deployed. That language is a term of art.

Mr First Deputy Speaker: Hon Members, I take it that the Whips are talking. So, once the Whips are talking, I presume permission should be granted.

Mr Annoh-Dompreh: I see that my Colleague is distressed. I need to have mercy on him. So, on that score, we will agree.

Mr First Deputy Speaker: Very well. Deputy Minister?

Mr Dafeamekpor: Mr Speaker, let the records bear me out that I have just spoken to the Minority Chief Whip on the other Side.

Mr First Deputy Speaker: Very well. Yes, Hon Deputy Finance Minister, you may move the Motion numbered 3 on the Order Paper *Addendum 2*.

BILL — THIRD READING

Energy Sector Levies (Amendment) (No.2) Bill, 2025

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP) *on behalf of the Minister for Finance:* Mr Speaker, I beg to move:

That the Energy Sector Levies (Amendment)(No.2) Bill, 2025, be now read the Third time.

Chairman of the Committee (Mr Isaac Adongo): Mr Speaker, I second the Motion.

Question put and Motion agreed to.

The Energy Sector Levies (Amendment) (No.2) Bill, 2025 – *read the Third time and passed.*

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, we may now take Order Paper *Addendum 3* which actually contains only the proposed amendments. So, we would take the Order Paper *Addendum*, the item numbered 9.

3.34 p.m.

Mr First Deputy Speaker: Hon Majority Chief Whip, are we taking the items on the Order Paper *Addendum* or the item numbered 9 on the main Order Paper?

Alhaji Habib Iddrisu: Mr Speaker, we are taking the item numbered 9 on the Order Paper *Addendum* because the Motion, the Road Maintenance Trust Fund Bill, 2025 at Consideration Stage, is on the Order Paper *Addendum*.

Mr First Deputy Speaker: Yes, I have seen it. We have the Order Paper *Addendum* and Order Paper *Addendum* 3. Now, the item numbered 9 on the Order Paper *Addendum* is Road Maintenance Trust Fund Bill, 2025 at Consideration Stage.

So, Hon Members, Road Maintenance Trust Fund Bill, 2025 at Consideration Stage and it is the item numbered 9 on the Order Paper *Addendum*. The Order Paper *Addendum* 3 just seeks to capture the amendments of Committee.

Mr Dafeamekpor: Mr Speaker, exactly so.

BILLS — CONSIDERATION STAGE

Road Maintenance Trust Fund Bill, 2025

Clause 1 and 2 ordered to stand part of the Bill.

Clause 3 — Functions of the Fund

Mr First Deputy Speaker: Chairman of the Committee?

Mr Isaac Adjei Mensah: Mr Speaker, there is no proposed amendment.

Mr First Deputy Speaker: Hon Members, it is for the consideration of the House; is there any proposed amendment?

Dr Abdul Kabiru Tiah Mahama: Mr Speaker, Clause 3(1)(b) I beg to move, after “transparency”, *insert* “cost effective”.

Mr Speaker, the essence of the Bill is to ensure that we have our rules properly fixed. But much of the core of the problem is the fact that the cost of road rehabilitation is an issue for the country and the Ministry. So, to be guided by the fact that we are allocating resources to ensure equity, efficiency, transparency and cost-effective determined by the Minister. So, I am proposing that we add cost-effective.

Mr First Deputy Speaker: Dr Kabiru, what is the difference between efficiency when it comes to allocation of resources and cost-effectiveness?

Dr Mahama: Mr Speaker, efficiency is looking at the timeliness and the use—But it does not address the issue of cost. Efficiency, by any stretch of the imagination, does not include cost-effectiveness.

Mr First Deputy Speaker: The word efficiency is not used in isolation. It is used when it comes to the allocation of resources. That is why I am asking how one allocates resources in an efficient manner that will not be cost-effective?

Dr Mahama: The essence of this proposed clause is to ensure that we allocate resources to implementing agencies using a formula-based system that ensures that the allocation of these resources is efficient, equitable, transparent and I was proposing, which I sincerely feels that it should also take into consideration, the efficiency of the cost, not just technical efficiency, operational efficiency but the cost aspects.

Mr First Deputy Speaker: I do not see this to be talking about technical or operational—It is in relation to allocation of resources. So, if I put money in your pocket and you are requested to use the money efficiently, then it means you are to use the money in a very cost-effective manner. But it is for the consideration of the House.

Dr Mahama: Mr Speaker, I yield. I think we can continue.

Mr First Deputy Speaker: Very well.

Ing Surv Maxwell Kwame Lukutor: Mr Speaker, the item numbered 3(1)(i) and (ii), monitoring of the execution of road maintenance works, if we look at the headnote itself, that is:

“(i) establish systems for the receipt of feedback from citizens, including a public dashboard and mobile platforms for the purposes of...

(ii) monitoring of...”

So, I think if it would not harm the construction, we could just delete the “of” and make it “monitoring the execution of road maintenance works.”

Mr First Deputy Speaker: Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, I support the present amendment.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, Dr Kabiru?

Dr Mahama: Mr Speaker, I beg to move, clause 3(n), *delete*.

It reads:

“...contribute to public safety and economic efficiency to improve conditions of public roads, bridges, and related infrastructure.”

Mr Speaker, this is more of an output of the functions of the Board or the Fund. It is not a function so-called. It is an outcome of the intervention. So, if we put it as a function, how to achieve that becomes problematic. It is more or less an outcome: an output of the implementations of the functions of the Board. I also propose that we delete that whole sub-clause and, maybe, the Office of Legislative Drafting can re-align.

Mr First Deputy Speaker: So, is it your proposal that clause 3(n) be deleted?

Dr Mahama: Mr Speaker, rightly so.

Mr First Deputy Speaker: It is for the consideration of the House.

Dr Mahama: Mr Speaker, the harm it causes is that the Board is supposed to be measured by its functions and if we cannot measure a function of the Board, it is difficult to hold the Board answerable for non-performance of its function. So, by this particular rendition, it sounds like an output or outcome of the function of the Board. But if we keep it, how do we measure that the Board is reneging or failing in the performance of its function?

3.44 p.m.

It is difficult to do with the current rendition and I think that it will be better achieved in the performance of the function of the Board, rather than making it stand as a function properly so-called to be performed. Otherwise, we must have in contemplation, how we can measure and hold the board answerable for the failure to perform that function.

Mr First Deputy Speaker: But look at clause 2 of the Bill. How different is it from the (n) that we are seeking to be deleted, if that cannot be the function of the Authority? Clause 2 of the Bill, the Object of the Fund, is that not what is translated in the end?

Dr Mahama: Mr Speaker, the object, more or less, tells us about the mission, and the functions are those deliverables you will use to fulfill the mission. Now, if you read the clause under consideration, it is an output or an outcome; it is, more or less, the object. If we want it to stand as an object, then we should bring it to the object function, but for the functions of the Board, properly so-called, I do not think that we should put this as part of the function.

Mr First Deputy Speaker: How do you bring it as an object function? Because for the Board, it is stated here, clause 3(1) that “To achieve the object under section 2,” that is clause 2, “the Fund shall (n) contribute to public safety and economic efficiency through improved conditions of public roads, bridges, and related infrastructure;”, which is captured in the object and they are asking that the Maintenance Trust Fund, to be able to achieve the object as stated in clause 2, among what it is going to do, is the (n) and you are asking that the (n) be deleted.

Dr Mahama: Mr Speaker, I am saying that the clause 3(1)(n) is achieved through clause (1)(a), (b), (c), and (d). That is basically the argument I am making. That in the performance of financing, allocation of resources, in ensuring preparation and harmonisation of reports, the Fund is basically contributing to public safety and economic efficiency. That is the point I am making.

I am saying that in the performance of the preceding functions, the Board is working towards the achievement of this and if we put it, how do we say that the board has failed to perform this function? Because the function is supposed to guide accountability, Mr Speaker.

Mr Dafeamekpor: Mr Speaker, clause 3(1), which I will come back to effect some amendments there, is to the effect that:

“To achieve the object under section 2, the Fund shall

(n) contribute to public safety and economic efficiency through improved conditions of public roads, bridges and related infrastructure;”

Mr Speaker, these are deliverable functions; functions that are executable. How is it done? For instance, making Funds available so that road markings are effected on roads; that is a function. Then for bridges reflectors are displayed on bridges, so that at night, motorists on the roads can easily identify a bridge when they are approaching it. Then for related infrastructure, by providing guardrails where we have gullies or valleys where highways run through. So, these are functions that the Fund will have to carry out. It is appropriate and suited to sit under the function of the Fund.

Mr First Deputy Speaker: Hon Members, I intend to put the Question on

the proposal by Hon Kabiru to delete (n) from clause 3 of the Bill.

Question put and amendment negatived.

Mr Dafeamekpor: Mr Speaker, may I propose that the outline nature of clause 3 be looked at. If we take clause 3(1), it has (a) to (q), but we do not have a clause 3(2). I propose that we take the (1) out, so that the whole provision reads 3(a) to (q)

Mr First Deputy Speaker: Yes, I will direct the drafters to capture that accordingly, then I will put the Question on clause 3 as amended.

Mr Dafeamekpor: Mr Speaker, further, to (q), I believe we have a standard provision for drafting the omnibus for (q). It should read:

“perform any other function as the Board may determine”

But not, “any other function ancillary to the attainment of...”, so if the drafters can look at the way we draft omnibus provisions.

Mr First Deputy Speaker: There is a distinction between the functions of the Board and the functions of the Authority or the function of the Trust Fund. When it comes to the functions of the Board and the functions of others, that one is determined by the Board. With this one, it should be, “any other function that is ancillary to the attainment of the object

of the Fund”. Any other function ancillary to the object of the fund.

Mr Dafeamekpor: I disengage; it is alright.

Dr Mahama: Mr Speaker, I propose the deletion of (p) as well because (p) is addressed by (i), so (p) and (i) are the same, in my humble opinion. They are talking about the same thing here and it will just be over flogging a dead horse by the repetition of (p) when (i) is saying the same thing.

Mr First Deputy Speaker: Hon Member, the (i) says,

“establish systems for the receipt of feedback from citizens, including a public dashboard and mobile platform for the purposes of”

To receive feedback. Now, the (p) says:

“facilitate citizens oversight and performance monitoring for public roads, bridges...”

And you said they are the same? Well, I will put the Question.

Dr Mahama: Well, Mr Speaker, you should read in conjunction with sub-paragraphs (i) and (ii) of paragraph (i) and probably that would help us too because the essence of paragraph (i) is in (p). Mr Speaker, humbly.

Mr First Deputy Speaker: Hon Members, I will put the Question on the proposed amendment by Dr Kabiru to *delete* paragraph (p).

Question put and amendment negatived.

Clause 3 ordered to stand part of the Bill.

Clause 4 — Board of Trustees.

Mr I. A. Mensah on behalf of the Chairman of the Committee: Mr Speaker, there is an amendment to that effect. I beg to move, sub-clause (1), paragraph (d), *insert* the following new paragraph, “Roads and Highways”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, Chairman, clause 4(ii)?

3.54 p.m.

Mr I. A. Mensah on behalf of the Chairman of the Committee: Mr Speaker, I beg to move, sub-clause (i), paragraph (g), line (i), *delete* “two” and *insert* “three” and after “least”, *delete* “one” and *insert* “two”.

Mr First Deputy Speaker: Hon Members, it is for the consideration of the House.

Question put and amendment agreed to.

Mr A. T. Sulemana: Thank you, Mr Speaker. Mr Speaker, we have a further amendment to clause 4, (1) (g) “Two other persons”, so now it becomes “Three other persons nominated by the President, at least two of whom will be women”. So instead of one, we are proposing that it should be three, and then the two should be women.

Mr First Deputy Speaker: But that was the amendment carried out by the Chairman of the Committee. That we *delete* “two” and insert “three”. No.

Mr A. T. Sulemana: Very well.

Mr Speaker, I yield. Thank you.

Mr First Deputy Speaker: Yes, Hon Member?

Mr Isaac Boamah-Nyarko: Thank you very much, Mr Speaker. Mr Speaker, from the composition of the Board of Trustees, they are 15 in number, per my count. I have a proposal to delete some of the representation.

Mr Speaker, my first proposal is on (e), “a representative from the Office of the Attorney-General not below the rank of Chief State Attorney, nominated by the Attorney-General”. Mr Speaker, I make the proposal for the deletion of this, firstly because of the numbers on the Board. Also, to the extent that this is a fund, and the functions of the fund as established is to ensure the sustainable financing and maintenance of roads. So, I do not see the real function of getting a

representative from the Attorney-General necessarily to be a member of the Board. That is my first proposal on the deletion. Mr Speaker, I have a couple on the same composition, so if I have your permission to go through all of them before—or you will take them one after the other. I want to seek your guidance.

Mr First Deputy Speaker: Hon Minister?

Mr Agbodza: Mr Speaker, I hear my Hon Colleague, and I can understand why he is saying this. But Mr Speaker, much of what we do at the Ministry is contracting. One of the reasons, in my view, that we waste a lot of resources on roads and never get any road out of it is simply because of the way contracts are written. Indeed, the last time, I was here saying that we paid a contractor US\$30 million for doing no work, and the contractor was asking us to release him out of the contract. This was because of the way the contract was written.

Indeed, we have almost 1,000 court cases against agencies under the Ministry because of the way contracts are written. Today, if there is anything that we need to strengthen in the Ministry, among other things, it is how contracts are written to make them fit for purpose. I think the presence of the Attorney-General and the Minister for Justice on this board, will count. So, we can actually flag contracts that are not fit for purpose right from the beginning, instead of waiting to go to court.

What we were rather saying was that the rendition talked about Office of the Attorney-General. Rather, we said Minister for Justice and Attorney-General to give it the full rendition of what had been gazetted as the appropriate office. So, I would plead with my Colleague to let this stay and rather expand it to include Minister of Justice and Attorney-General's Department.

Mr A. T. Sulemana: Mr Speaker, I shared the same view initially that Hon Boamah-Nyarko just expressed. But reading through the clauses, especially clause 23 and clause 53, clause 23 says that "The monies of the Fund shall not be invested, securitised, or subjected directly or indirectly to any form of financial arrangements." Also, clause 53 provides some kind of immunity from lawsuits and attachments.

Having regard to the fact that the Ministry of Roads and Highways traditionally has not had a legal department, necessarily the Attorney-General becomes the lawyer for the Ministry. It would be very useful at this stage to have a member on the board so that the lawyer will guide the board as they proceed along. This is so that immediately they find some incursions outside of the Act, the lawyer can draw their attention. So, it is on the basis of that one that we allowed this one to stand. Thank you, Mr Speaker.

Mr Boamah-Nyarko: Mr Speaker, I appreciate, of course, the need for a lawyer to be on the board. So ordinarily,

I would have contemplated that the three other persons nominated by the President, the President would be guided by some of these experiences. But for the benefit of the explanation so provided, I will yield and abandon that particular amendment. So, I will go now to my second proposal.

Mr Speaker, it has to do with (iv), which is "private sector road user, nominated by the Minister...". Mr Speaker, if you check the composition of clause 4 (1) (f) (iv), if we take (f) (i), it is "Association of Road Contractors, Ghana, nominated by the Association of Road Contractors Ghana". We go to (ii), "The Ghana Institution of Engineering, nominated by the Ghana Institution of Engineering"; very specific. (iii), "the Ghana Institution of Surveyors, nominated by the Institution of Surveyors"; very specific. But when we go to (iv), we say "private sector road user, nominated by the Minister". I have a difficulty in defining which group of people or association are called private sector road users. We could either identify them as either Ghana Private Road Transport Union (GPRTU) or Ghana Road Transport Coordinating Council (GRTCC), which is a well-established body which works within the confines of the road sector.

So, I will make a proposal that this "private sector road users" be rather replaced by a representative from the GRTCC.

Mr First Deputy Speaker: Then, Hon Member, what will happen to

Progressive Transport Owners' Association (PROTOA)?

Mr Boamah-Nyarko: PROTOA is part of the umbrella body.

Mr First Deputy Speaker: So that is the difficulty with giving the slot to one association. If you get to that particular field, the associations are many. So, the discretion is to the Minister. It is not only GPRTU or PROTOA; they are many. Yes, Hon Minister?

Mr Agbodza: Mr Speaker, as you just said, we have GPRTU, PROTOA and everything. So, what they do is to take it in turns. So, it is not easy to just— If we list all of them, it is also an issue. We leave it this way, and they always find somebody to represent them, so it is not fatal. But we do not want to write GPRTU because it then becomes a *bona fide* position for only GPRTU, but we have many transport organisations. In fact, there is even an Apex transport organisation, but not every transport organisation would want to be under that one as well. So, if my Hon Colleague would bear with us, it is not fatal.

4.04 p.m.

Mr Dafeamekpor: Mr Speaker, I see the mischief the Hon Boamah is pointing to. Because if it says a representative of private sector road users, I am; I am a private sector road user. Who would that representative of me be? We need to be specific. Let us then give the Minister the power to appoint any person who is a road user. It is better than to say that a

private sector road user nominated by the Minister. If we are not talking about association of those categories of people, then we should say an individual, any person that the Minister can appoint. We do not have to even qualify it to be a private sector road user because I see the mischief he is trying to point at. Are we talking of association? Because if it says a representative, then it means we must be a collection. Then a representative can be selected from among that collection. But if we give the Minister a free hand, then in constituting the Board, he can just nominate somebody of some substance to sit on the Board.

Mr First Deputy Speaker: Then it must be recrafted. Because if you look at the (f), it is a representative each of the following and then it says:

“Ghana Institute of Engineers, Ghana Institute of Discipline, private sector road users nominated by the Minister and civil society organisation with expertise”.

I understand it to be that there will be appointment from the collection but as to which actual group, carefully they are not doing that. So that the Minister can have the opportunity. If this time it is Ghana Private Road Transport Union, maybe next time it can be Progressive Transport Owners Association (PROTOA) and then it can be Co-operative; they are all private —

So, it could even be you being appointed.

Mr Dafeamekpor: Mr Speaker, because like you said, all the other categories are referable to associations. So, would it be okay if we qualify with an association of private sector road users?

So, I think that we should take this close up.

Mr First Deputy Speaker: Let me hear from the Ranking Member.

Ranking Member of the Committee (Mr Kennedy Nyarko Osei): Mr Speaker, I have listened to the Chief Whip and Hon Boamah.

Mr Speaker, the rationale behind this particular session is to give the Minister the opportunity to be able to nominate any of these private sector road users. So that you do not legislate and put a particular name in the law, which now ties the Minister's hand. It means always it will be one association that will be benefiting from that. They should rotate it, like the Minister said. You have several of these private road users. I mean there are many so, at least it should be flexible for the Minister to be able to nominate somebody. I do not think this is fatal. We should keep it as it is.

Mr First Deputy Speaker: Yes, and to Majority Chief Whip. You see, if you delete the representative capacity, then you appoint any individual. Then you are not appointing the individual in a representative capacity. They want the

person that the Minister would appoint to represent the private sector road users.

Yes, Majority Leader?

Majority Leader (Mr Mahama Ayariga): Mr Speaker, having listened to the Minister and Colleagues, I think the simplest rendition is “a road user nominated by the Minister”. The reason is that when you say private sector road users, who are private sector road users and who are public sector road users? Should I be driving a government vehicle to be a public sector road user or if I drive my own private vehicle, I am a private sector road user? Should I be driving the vehicle as a commercial vehicle to be a private sector road user? So, I think that the simplest thing is to say a road user.

When you say road user —

Mr First Deputy Speaker: Majority Leader, propose an amendment to the (iv).

Mr Ayariga: My proposed amendment is — every other nomination or category is an institution. Either an institution or a professional association or an economic commercial association. But an ordinary road user is not represented. Every other representative is an institution or a commercial association. But I think the idea is to bring in just an individual. And so, to make it very simple, just say “Road user nominated by the Minister” and all of us are road users. It could be you or any other person. Just so that they can bring

on board at the deliberations of the Board their views on the matter. Otherwise, I just want to understand what you mean by a private sector road user?

Who is a private sector road user?

Mr Darko-Mensah: I believe the idea is private sector road user organisation. So that we take away the individuals and those who are just driving government vehicles. But we should give the flexibility more to the Minister to do that nomination. So, it should be private sector road user organisation so that amongst the Associations, the Minister can pick somebody from there. So, it should be private sector road user organisations.

Mr Alhassan Tampuli Sulemana: Mr Speaker, if you look at the composition of the Board of Trustees, for a Fund, ordinarily one would have expected to see corporate finance experts, investment bankers and so on and so forth; but this is not that type of a Fund. Because if you look at the prohibition on investment, that means that they are not supposed to do much beyond just the management of the Fund. So, you are looking for representatives from various stakeholders. Mr Speaker, the road user is not just an ordinary road user, but a representative of an association or a group so that the person can bring perspectives from *trotro* drivers and tanker drivers and so on and so forth. And they will bring some perspectives to the Board. So, it is not just any ordinary road user, but somebody representing a stakeholder

organisation. I think we should be minded by this. Such provisions in the Drivers and Vehicle Licensing Authority (DVLA) Act, National Road Safety Act, Road Authority Act and so on and so forth —

Mr First Deputy Speaker: How is it captured there?

Mr Sulemana: Mr Speaker, what I see is that the earlier rendition was for us to have private sector road users nominated by Ghana Road Transport Coordinating Council or GPRTU or any other organisation. That one, if you want any of the groups that you want, but normally for DVLA or the existing as we have used GRTCC as the apex body of all the transport associations. So, it is up to the Minister to decide which group. But we are not making this law for the Minister. And so, we can be guided by the precedence that has been set over the years. And we can have regard to the DVLA Act, Road Safety Act —

Mr First Deputy Speaker: Well, the proposal is to say private sector road users organisation.

Mr Sulemana: Private sector road user associations or organisations.

Mr First Deputy Speaker: former Minister, your word is what I am quoting. You use the word “organisations”. Hon Kwabena, you

used the word “organisations” not associations.

4.14 p.m.

Mr Darko-Mensah: We have Yango drivers, Uber drivers among others, so we can nominate along the organisational lines.

Mr First Deputy Speaker: Very well. So, the proposal is after “user”, *insert* “organisations”.

Yes, let me hear from the Hon Minister.

Mr Agbodza: Mr Speaker, the use of the word “private” here is to determine that that individual is independent of the public. Currently, the Ministry of Transport is in the process of legitimising the use of motorbikes as a means of transportation. This Act would collect tolls. The toll collection will be a factor of funds coming into this. In fact, *Okada* riders are more than almost all public servants put together across the country. It is a significant—Of course, even the policemen going to work in Adaklu use *Okada*; that is a fact. I do not know about people in the city, but we in the village, *Okada* is not what we can call a crime, because even the policemen have to use *Okada*. This is because that is the only means of transportation. We are trying to make it as flexible as possible, so that one can determine and say that somebody who is not from—Because everything else is official, engineers and everything. So, we should have an opportunity to bring somebody

who does not fall into any of these categories.

Mr First Deputy Speaker: Yes, that is why they are giving the opportunity to the Hon Minister.

Mr Agbodza: Exactly, so it is not—

Mr Dafeamekpor: Mr Speaker, with the explanation from sponsors of the Bill, I think that Leader’s earlier proposed amendments carry the intendments more that it should be—

Mr First Deputy Speaker: By the example that you have given, that you are a road user. The intendment of the law is not to bring a person like you as a road user.

Mr Dafeamekpor: I agree.

Mr First Deputy Speaker: That is why the word “private”, if you listen to his last comment, is very important. But the proposal of Leader is to delete “private sector” and make it “road users”. Yes, so how does he capture the sense that he is saying, that it is not really targeting the public sector workers, but private sector users of the road?

Mr Dafeamekpor: If we adopt Leader’s proposed amendments, then the Regulation could give a guide that in picking that road user, we may have recourse to some other checklist. It can be done if we provide a guide, because it is a discretion.

Mr First Deputy Speaker: If I happen to be at that Committee on Subsidiary Legislation, I would argue that if the framers of the law intend that it should be private, commercial or public sector, the law would have specified this. So, when it remains road user, you cannot bring a Regulation to tie it down to either private or public sector.

Mr Dafeamekpor: No, Mr Speaker, the Regulation will be providing a guide. It is a guide. Mr Speaker, you have been a master of these things. It is to provide a guide, because it is a discretion. We are mandating him to have the power to nominate.

Mr First Deputy Speaker: So, if the law has given the discretion to the Minister, where will you go and pass Regulation to limit that discretion?

Mr Dafeamekpor: The Regulation will not be limiting. It will be providing a guide, Mr Speaker.

Mr First Deputy Speaker: Well, let us agree on the proposed rendition, I will put the Question and then we can make progress.

Mr Darko-Mensah: Mr Speaker, I think that what Leader said actually captures virtually what I said. But just to make sure that when somebody is reading the law, it is not ambiguous, I believe that we need to put the organisation or we are sure we are taking it away from the normal public sector, so it goes to the private sector organisation, which are road users.

As for the discretion given to the Minister, I do not think that any of us want to take it from the Minister. But it is just that we wanted to put it in quotes, so that people will understand it well. So, I think we should go with a private sector road user organisation.

Mr Osei: Mr Speaker, I think you have guided us enough, and we were going with the road user nominated by the Minister, so it will be so simple for us.

Mr First Deputy Speaker: Very well. Then, somebody should propose the rendition, and let me put the Question on the rendition.

Mr Dafeamekpor: Mr Speaker, that was proposed by the Majority Leader, so “a road user nominated by the Minister”.

I so move.

Mr First Deputy Speaker: Hon Member, what I am expecting to hear is that in the clause, *delete* “private sector”. The new rendition will be “road user nominated by the Minister”.

Question put and amendment agreed to.

Mr Agbodza: Mr Speaker, we made an amendment which did not appear on the Order Paper. Under clause 4(d),

“a representative of each of the Ministries responsible for

(i) Finance,

(ii) Local Government”

There was transport—
[Interruption]—All right, so there is another Order Paper.

Mr First Deputy Speaker: Yes, I can recall there was such an amendment. But it is not captured by the Order Paper. So, Chairman, you may move that amendment.

Mr I.A. Mensah: Mr Speaker, I move that “Transport” be added to clause 4(d). So, it should read:

“a representative of each of the Ministries responsible for

- (i) Finance,
- (ii) Local Government, and
- (iii) Transport”

I so move.

Mr First Deputy Speaker: Hon Members, to tidy up the amendment for the drafters, after finance, *delete* “and” and after local government, you then *insert* “and”, and you bring (iii) Transport.

Chairman of the Committee, is that the intended amendment?

Mr I.A. Mensah: Yes, Mr Speaker, exactly so.

Dr Asamoah: Mr Speaker, looking at the earlier Bills that we have worked on here, is it possible we can merge 4(1) (c) and (d) since it says “a representative

of the Ministry”. We know the ministry will be at the interpretation side. So, instead of picking finance, local government, transport and the parent ministry, which is —[Interruption]—If you have merged it, then I think it is alright.

Thank you.

Mr First Deputy Speaker: Hon Asamoah, I know of a Minister being defined, but not ministries. Very well.

4.24 p.m.

Mr Boamah-Nyarko: Mr Speaker, so I am coming with a new proposal under clause 4

Mr First Deputy Speaker: No, I cited this several times that when an amendment is under Consideration, until that amendment is exhausted, you do not move to another amendment.

Mr Adomako-Mensah: Mr Speaker, same 4(d), a representative of each of the Ministries responsible for Finance, Local Government, Transport, I am proposing a representative from the Ministry of Energy and Green Transition in addition to this.

Mr First Deputy Speaker: Well, let us settle this.

Yes, Hon Member, is it on the proposed amendment?

Question put and amendment agreed to.

Mr Adomako-Mensah: Mr Speaker, I beg to move, after 4(d)(iii), *insert* “(iv) Ministry of Energy and Green Transition”. I so proposal

Mr First Deputy Speaker: Chairman of the Committee, the proposal is to include Ministry of Energy and Green Transition.

Mr Osei: Mr Speaker, I am opposing to the proposal being made by the Hon Member. I do so because, Mr Speaker, he is also proposing another one and already the number of Board of Trustees is about 15 which is too large. We cannot even have an even number. It means we need to add another one to make it 17. We cannot keep on adding to the number to increase it.

Mr Speaker, I just want to know why the Hon Member wants to add the Ministry of Energy and Green Transition to it. He did not give us any reason. He should give us a reason he wants to add, whether it situates well to the operations of the Ministry or not, so he should be able to tell us so that it will guide us to make a decision.

Mr Adomako-Mensah: A representative of the Ministry of Energy and Green Transition used to be on the Board. Now, if you go to 22, the source of funds for the Road Maintenance Trust Fund includes levies on petroleum products. It includes levies on petroleum products and the Ministry of Energy and

Green Transition used to be there. So, I am just proposing that—I do not know why they have taken it out. Why did they take it out? It used to be there. I am proposing an addition of a representation of the Ministry of Energy and Green Transition.

Mr First Deputy Speaker: So, Hon Member, do you not think the presence of the Ministry of Finance will address that? Today, they came to do the Energy Sector Levies (Amendment) (No. 2) Bill, 2025.

Mr Adomako-Mensah: I am sure the Ministry of Finance represents everybody.

Mr First Deputy Speaker: But when they are coming to do that particular Bill, the energy sector is there all right, but that Bill was shepherded by the Ministry of Finance because it is something that has got to do with funding.

Mr Adomako-Mensah: It was shepherded in conjunction with the Committee on Energy. It was a joint Memorandum.

Mr First Deputy Speaker: By our record—

Mr Adomako-Mensah: By our record, respectfully, Mr Speaker, it was a joint Memorandum.

Mr First Deputy Speaker: If it is a joint Memorandum, the Minister for Energy and Green Transition should

have been here to move the Motion. Well, if he insists, I will put a Question.

As many as are in favour of—

Mr Adomako-Mensah: Maybe, Mr Speaker, we can substitute the Office of Attorney-General and bring the Minister for Energy and Green Transition.

Mr A. T. Sulemana: Mr Speaker, let me refer you to Clause 39(2)(b). It provides that:

“The Fund shall, in consultation with the Minister, develop protocols for data sharing with

- (a) the Ministry; and
- (b) the Ministries responsible for
 - (i) Finance;
 - (ii) Local Government;
 - (iii) the Interior; and
 - (iv) Transports”.

So, Mr Speaker, in constituting the Board, we would have regard to these critical stakeholders and because of the unwieldy nature of the number already, we should have included Ministry of the Interior, so that they would have nominated somebody from Motor Transport and Traffic Department (MTTD) to represent the Ministry, but we thought that increasing the number to 16 was becoming way too much. So, the whole idea is for, probably, the Minister to make a proposal for the President to invite somebody from the Ministry of the Interior, in which case somebody from

the MTTD, will be brought in because they need to give some perspectives regarding road traffic accidents and where attention should be directed to.

But I appreciate where my Friend, Collins, is coming from. But in terms of the ESLA, as a matter of fact, the Road Fund levy goes straight into the coffers of the Ministry of Finance, so if we have a Ministry of Finance here, I think that it should suffice and I think we can do away with it for now.

Mr First Deputy Speaker: Hon Collins, will you drop the amendment or should I put the Question?

Mr Adomako-Mensah: I stand by my amendment.

Mr First Deputy Speaker: Very well.

Hon Members, I am putting—

Mr Osei: Mr Speaker, the Hon Member, in his submission, wrongly accused me that I am the one who removed the Ministry of Energy and Green Transition from the Bill. I am not the sponsor of the Bill. So, for my Colleague to accuse me wrongly—

Mr First Deputy Speaker: It did not go into the record.

Mr Osei: But, you know, he has made a valid request, which I want the Minister, who is here, to look at carefully. If, previously, the Ministry of Energy was sitting on the Board and

they would not sit on the Board in this new Bill, then his request or his proposal that we should substitute the Office of the Attorney-General and Ministry of Justice and replace it with the Ministry of Energy and Green Transition, which previously sat on the same Board of the Road Fund, but this time around, have been deleted completely from there— The Minister is here and I want the Minister to tell the House why he thinks that the Office of the Attorney-General should be on the Board but not the Ministry of Energy and Green Transition.

Mr Adomako-Mensah: Mr Speaker—

Mr First Deputy Speaker: Hon, you have made your point and I want to put a Question on the point that you have reached.

Mr Adomako-Mensah: My senior Colleague suggested that I responded directly to him. I just want that to be clear—

Mr First Deputy Speaker: I indicated that that is not part of our record.

Mr Adomako-Mensah: Thank you, Mr Speaker.

Mr First Deputy Speaker: Hon members, I am putting the Question first on the proposal made by Hon Collins Adomako-Mensah that we should add a representative from the Ministry of Energy and Green Transition.

Question put and Motion negatived.

4.34 p.m.

Ing Surv Lukutor: Mr Speaker, clause 4(f)(ii) reads, “the Ghana Institution of Engineering...”. I propose that we *delete* “Engineering” and replace it with “Engineers”, so that it reads “the Ghana Institution of Engineers”.

Mr First Deputy Speaker: You have to check that terminology correctly, whether it is “Ghana Institution of Engineering” or “Ghana Institution of Engineers”. What do we have?

Mr Agbodza: Mr Speaker, it is Ghana Institution of Engineering.

Mr First Deputy Speaker: So, the terminology, as contained, in the Bill is correct.

Hon Members, we have had enough on clause 4, so I intend to put the Question.

Clause 4 ordered to stand part of the Bill.

Clause 5 — Functions of the Board of Trustees

Ing Surv Lukutor: Mr Speaker, we have no advertised amendments.

Mr Dafeamekpor: Mr Speaker, there were two proposed amendments to clause 4. I was on my feet.

Mr First Deputy Speaker: What is your proposed amendment to clause 4?

Mr Dafeamekpor: Mr Speaker, there are two proposed amendments to clause 4. Clause 4(1)(a), the indication is that the Minister or his representative should be the chairperson, so the phrase, as it is, “a chairperson” has to be amended to reflect that.

Then two, I agree that we draft in singular, but the proposed amendment carried to clause 4(1)(g), “three other persons nominated by the President, at least two of whom is a woman” is grammatically incorrect.

Mr First Deputy Speaker: For that one, I will direct the drafters to tidy it up.

Mr Dafeamekpor: Mr Speaker, coming back to clause 4(1)(a), it should read,

“(1) The governing body of the Fund is a Board of Trustees consisting of

(a) the Minister as chairperson or his representative”

This is the amendment that I intend to carry.

Mr First Deputy Speaker: That is the proposed amendment and it is for the consideration of the House.

Mr Daniel Nana Addo-Kenneth: Mr Speaker, respectfully, I thought you had put the Question and it has already been done.

Mr First Deputy Speaker: Go and read our Standing Orders about the Consideration Stage and why the mace is tilted at the Consideration Stage, then you can get back to ask your question.

Mr Addo-Kenneth: Mr Speaker, you made the ruling; there have been several times where once you put the Question and someone wants to—

Mr First Deputy Speaker: You see, when we are presiding over the House, the Rules give discretion to whoever is chairing. Sometimes, you need to be very careful in challenging the exercise of a discretion.

Mr Addo-Kenneth: Thank you, Mr Speaker.

Mr Speaker, with respect, I did not seek to challenge; I only sought to draw your attention. We are here for your education; I take a cue.

Mr First Deputy Speaker: Hon Members, once again, I will implore our First-time Members of Parliament to get an understanding of why at the Consideration Stage of a Bill, the mace is tilted. The meaning is that the Rules are relaxed and when the Rules are

relaxed, it is at the discretion of the person presiding.

Yes?

Mr Francis-Xavier Kojo Sosu: Mr Speaker, you are absolutely correct. Beyond the fact that the Rules are relaxed, it is trite that Parliament is also a master of its own rules and that is why I support your position.

Mr Speaker, I rise to support the amendment proposed by our abled Majority Chief Whip.

Mr First Deputy Speaker: Hon Members, I intend to put the Question on the amendment proposed by— Yes, Hon Tampuli?

Mr Alhassan Tampuli Sulemana: Mr Speaker, this proposed amendment had been tabled at the Committee level and there was a back and forth as far as the propriety of that proposal is concerned. It has to be put on record that the issue that was raised was that one needs some kind of continuity, some certainty and institutional grounding as the chairman of the board. The issue that was raised was that there comes a time when the Minister may be reshuffled, so if we have three Ministers during a tenure, then we are likely to have three board chairmen. But if we have one chairman, chances are that if the Minister leaves, the board chairman remains, then we would have some amount of continuity and progression of work.

So, Mr Speaker, the idea is that we insulate the Minister who is likely to

swear in the Board Chairman from himself being sworn in; by who, I do not know. But I think the practice is that normally, either the Minister nominates or proposes somebody to become the Board Chairman.

Mr First Deputy Speaker: Are you sure the Minister is the one who administers the oath of a board? Is it not the case that they normally bring in a High Court judge to administer the oath?

Mr A. T. Sulemana: No, it is the Ministers. When I was a Deputy Minister, I swore in a lot of boards, Mr Speaker.

Mr First Deputy Speaker: I have been guided accordingly.

Alhaji Habib Iddrisu: Mr Speaker, I do not think there is anything wrong with the Minister chairing it. There are many government institutions that the Minister responsible for that sector chairs. If we go to the Ghana Investment Fund for Electronic Communications (GIFEC), the Minister for Communication is the one who chairs it.

I was a staff of the Ghana Free Zones Board and the Minister for Trade, Agribusiness and Industry is the chairman of the Ghana Free Zones Board. So, if the Minister is to chair it— Because this is very important and we are trying to cure something. The previous Road Fund, because someone else was chairing it, not the Minister, there was a problem.

The Minister who supervises every road activity should be able to have that opportunity to be able to look at that. At the end of the day, the Minister appears here to answer Questions related to roads. The Minister supervises whatever we do in terms of the roads, so he should be able to supervise. Someone else should not be calling the shots if we get to the stage of payment. Left to me alone, I think the Minister being the chairperson of the Fund, should be the right way.

Mr First Deputy Speaker: Hon Members, I think we have taken enough views on this. I intend to put the Question. Hon Tampuli, I will not hear you on this issue again. Yes, Hon Member.

Mr Nana Agyei Baffour Awuah: Mr Speaker, very respectfully, I support the position of my Brother, Hon Tampuli.

Mr Speaker, it is very important that we grow institutional memory and culture. The possibility of constant reshuffling of the Minister by the President would mean that making the Minister chair the board could possibly, truncate the growth of institutional culture and memory and destabilise the Fund.

Mr Speaker, where we have a board chair, separate and independent of the Minister, guaranteed a term of four years, like most state institutions, would ensure that continuity and culture. So, I know that my Brother, the Minister for Roads, will not be happy with me

because he looks forward to chairing the board.

Mr First Deputy Speaker: Hon Member, in making laws, we do not make laws for any individual, so withdraw your statement that he will not be happy with you.

Mr Baffour Awuah: Mr Speaker, you do not seem to be in a good place today, so I will withdraw it.

Mr First Deputy Speaker: Very well.

Mr Baffour Awuah: You do not seem too kind today; I will withdraw it, Mr Speaker.

Mr First Deputy Speaker: Very well; withdraw it.

4.44 p.m.

Mr Baffour Awuah: Mr Speaker, very respectfully, I think that consistent with the laws governing most state agencies, where the boards have chairpersons independent of the Minister, I think that it would be appropriate in the circumstance to go along that path.

Mr First Deputy Speaker: What do you say to Ghana Investment Fund for Electronic Communications (GIFEC) board?

Mr Baffour Awuah: Mr Speaker, that is why we have to depart—

Mr First Deputy Speaker: What do you say to Free Zones board?

Mr Baffour Awuah: That is the reason why we have to depart. The inconsistencies do not inure to the benefit of such institutions.

Mr First Deputy Speaker: Hon Members, I intend to put the Question.

Yes, Alhaji Suhuyini?

Alhaji Alhassan: Mr Speaker, I just want to draw our attention to the Memorandum that accompanied this Bill.

Mr Speaker, if we look at the Memorandum that accompanied this Bill, under paragraph 3, it says that, in other words, we are not establishing a fund. A fund already exists. We are seeking to improve the operations of a fund. So paragraph 3 tells us what we are expected to; it reads,

“Over the years, the Road Fund has faced institutional and legal challenges, including inequitable disbursements, vulnerability to lawsuits, garnishment of the bank accounts of the Fund as well as weak transparency and accountability.”

So we are simply seeking to improve the existing fund, so that it will be more transparent, it will be more accountable, it will ensure equity.

Mr Speaker, if that is the case, if we look at the existing Fund, under Section 5 of Act 536, the membership of the Board, it says that,

“(1) There is hereby established a management board for the Fund which shall be known as the Road Fund Management Board.

(2) The Board is composed of

(a) the Minister responsible for Roads and Transport or the representative of the Minister as the chairman.”

That is what the existing law says.

Mr Speaker, in view of the Memorandum and what we are seeking to improve, how does taking the Minister out as Chairman improve transparency, accountability and equity? All we are seeking to do is to improve the Fund, but still within the Ministry and for it to be used for the purpose of the Ministry. So, if we are seeking to remove the Minister now as Chairman from the existing law, what are we seeking to do?

Mr Speaker, on this note, I support the amendment that has been proposed by the Chief Whip.

Thank you very much.

Mr First Deputy Speaker: Hon Members, by way of providing a background, for a good reason, the law has been amended to make the Chairperson the Minister for Roads and Highways. I always maintain that

sometimes in making law, we need to identify a mischief that the law is seeking to address. We saw a problem when the Chairperson was given to a person other than the Minister. So, in order to cure that particular mischief, before today, the law has been amended to give that particular power to the Minister. The question therefore is, what is the reason, changing it back to the *status quo*?

Alhaji Habib Iddrisu: Mr Speaker, if you could specify the exact amendment, because people may get confused.

Mr First Deputy Speaker: The amendment proposed by the Chief Whip is to maintain the *status quo* and make the Minister for Roads and Highways, the Chairperson of the Board of Trustees, or his representative. So, when it is carried, I will direct the draftsman to pick the correct rendition from the existing Act.

Question put and amendment agreed to.

Clause 4 as amended ordered to stand as part of the Bill.

Clause 5 to 7 ordered to stand part of the Bill.

Clause 8 — Meetings of the Board of Trustees.

Mr I.A Mensah: Mr Speaker, Sub-clause 3, *delete* “seven”, and *insert* “eight”.

Mr Agbodza: Mr Speaker, just to alert the drafters that the “eight” is simply because we have 15 members of the Board now. So what they are doing is just to get a tally to make sure that the tally is 15 to get it to 8. If they find any discrepancy, just let us know so that we can correct that.

Mr First Deputy Speaker: Well, yes, Mr Tampuli?

Mr Alhassan Tampuli Sulemana: Mr Speaker, I need guidance regarding Clause 8(3). The quorum for a meeting of the Board of Trustees normally, by convention is one-third, just like we have Article 102 of the Constitution, the quorum to commence business, and a decision quorum under Article 104.

Mr Speaker, consistent with that and other existing laws, normally we do not need more than half the number of members to start a meeting. One-third will suffice, and then when we are taking a decision, then Clause 8(5) comes in. That is where we need about eight to take a decision.

Mr Speaker, even in this House, it is difficult to have Members come in early enough for us to start Business. So normally we start with the small threshold, then as we move along, we have other Members come, then for a substantive decision to be taken, we need at least eight. That is the kind of proposal that I have made.

Mr Agbodza: Mr Speaker, I want to support the Chairman's proposal. This is about a board that takes very significant decisions about all the things we talked about here.

Mr Speaker, imagine membership of the board is 15, and then we have, for example, five people attending taking a decision, do we not think that the Board Chairman will basically decide that just a few people who are aligned to him will go and take a decision and disburse this money?

Mr Speaker, the larger the number, the better. Eight is nothing; if one is a member of a 15-member board, and constantly absents himself from meetings, then the person is not fit to be on the board.

4.54 p.m.

So, Mr Speaker, we should not even pride ourselves with the fact that we are 276 and we are struggling to get quorum to do business sometimes. It should not be something we should even say because we are all supposed to be here anyway. We know we can all not be here every time, but we should endeavour that at least when major decisions are supposed to be taken, majority of us are here.

So, clause 8 is appropriate and it is simply because once you have a quorum to start the meeting, you automatically have a quorum to take a decision and I think that is better.

Question put and amendment agreed to.

Clause 8 as amended ordered to stand part of the Bill.

Clause 9 ordered to stand part of the Bill.

Clause 10 – Establishment of Committee

Mr Boamah: Mr Speaker, Clause 10, the subcommittees—Technical, Finance and Risk Committee. Do you not think that you need a Monitoring and Evaluation Committee established—I know there is an omnibus clause there, but it has to find expression here because one cannot—

I propose that we *insert* a new subclause under 10(3)(c). So, we should have 10(3)(d), which should have a Monitoring and Evaluation Committee.

Mr Francis-Xavier Sosu: Mr Speaker, I support the proposed amendment by the Hon Colleague because given the nature of the Fund, it will really be important that we have a Committee that does Monitoring and Evaluation. So, I support the proposal by the Hon Member.

Mr First Deputy Speaker: Is it Monitoring and Evaluation of the roads or the management of the Fund?

Mr Sosu: Mr Speaker, it will be the implementation of the Fund. So basically, the management of the Fund.

Question put and amendment agreed to.

Mr First Deputy Speaker: Hon Members, do we not think that there should be an omnibus clause to clause 10 to the effect that “any other Committee that the Board may determine”.

Mr A. T. Sulemana: Mr Speaker, the omnibus clause is the 10(3). It says that,

“Without limiting subsection (1), the Board of Trustees shall establish the following committees...”

This means one can add any other committee from clause 10(1),

“The Board of Trustees may establish committees consisting of members of the Board of Trustees, non-members or both to perform a function of the Board of Trustees.”

So, if you read the two together, you get the sense that it jells.

I thank you.

Mr First Deputy Speaker: Well, I do not get it from the language. If you look at other laws, we normally have an omnibus clause that will say that “the Board may establish such other committees as the Board may deem fit”. This one, it says,

“The Board of Trustees may establish committees consisting of

members of the Board of Trustees, non-members or both to perform a function of the Board of Trustees.”

This one is just making reference to the fact that the committees going to be composed by the Board can either be members of the Board, non-members of the Board or both. That is what the cross-reference means. But the committees that we have listed here may not be exhaustive. So, what happens if the Board in future decides to establish another committee?

Mr James Agalga: Mr Speaker, your guidance is splendid. So let there be an omnibus clause.

5.04 p.m.

Mr First Deputy Speaker: Hon Members, I intend to direct the draftspersons to make provision for an omnibus clause.

Question put and amendment agreed to.

Clause 10 as amended ordered to stand part of the Bill.

Clauses 11-18 ordered to stand part of the Bill.

Clause 18 ordered to stand part of the Bill.

Clause 19- Secretary to the Board of Trustees

Mr I. A. Mensah: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: Hon Members, it is for the consideration of the House. Yes, Hon Member, you have the floor.

Mr Boamah-Nyarko: Mr Speaker, clause 19 (1) indicates that:

“The Administrator shall serve as the secretary to the Board of Trustees.” Mr Speaker, I believe that the functions of the administrator as the head of the Fund is inappropriate and it is not consistent with normally the secretary to boards or secretaries to funds. I am proposing that the Secretary to the Board of Trustees should be a staff of the Fund appointed by the Administrator in consultation with the Board.

This is because if we look at the functions of the Secretary, it reads:

- a) “provide administrative and secretarial support to the Board of Trustees;
- b) issue notices of meetings of the Board of Trustees and keep records of the proceeding of the Board of Trustees;
- c) maintain register of minutes...”

That can never be the function of the administrator of the Fund. It should be a staff that has been appointed by the administrator and the Board of Trustees.

I so move.

Mr First Deputy Speaker: Hon Members, it is for the consideration of the House. *[Pause]*

Mr Agbodza: Mr Speaker, the position taken by our Hon Colleague is right, but so the rendition will read:

“There shall be a Secretary to the Board appointed by the Administrator in consultation with the Board.”

In this case, the Secretary shall not be a member of the Board. Alright.

Mr First Deputy Speaker: Hon Members, we have three main ways of doing this: a secretariat being established; secondly, where the entity that we are creating has a legal department, then we say the head of legal shall act as the Secretary to the Board. Thirdly, we may ask the Administrator to act as the Secretary to the Board, but where that happens, there will be clause 2 which will give power to the Administrator to delegate that particular function, but he is not relieved of the ultimate responsibility. That I have not seen in this rendition, so the Hon Member is right in raising the issue. However, when I look at this particular Bill, it is not creating a secretariat or a legal department.

Hon Member?

Mr Abdul-Fatawu Alhassan: Mr Speaker, just in line with your submission, particularly your last point.

If I may refer you to clause 16(2), it cures the issue that you have just raised because it gives power to the Administrator to delegate any function that the Administrator may perform to any officer. So even if he is made the secretary to the Board, at any point in time, he can delegate that function per clause 16(2) which gives him the power to do so. That has no standing here, Mr Speaker.

Mr First Deputy Speaker: Hon Member, it is here, I have now seen it. That is clause 16(2), so it does not mean that he will do—But it does not relieve him of the ultimate responsibility.

Mr Boamah-Nyarko: Mr Speaker, inasmuch as the clause my Hon Colleague is in order, the clause 2 is in relation to the functions of the administrator as enumerated under clause 16. When we come to Secretary of the Board of Trustees, that is a separate section that is looking at the Board of Trustees and I know properly so called—

Mr First Deputy Speaker: Hon Member, you will be right, if you do not consider being the Secretary to the Board as a function, but if you consider it as a function, then it means that that function can be delegated.

Mr Boamah-Nyarko: Mr Speaker, in this House, it is easy to try and make these understandings and the rest, but recently, all the laws that we have passed in terms of establishing boards of funds including what we are having today, we have been very careful to either set up a

secretariat or as you said, get someone nominated to serve as a secretary.

I am saying this again because, if we put the function here that the Administrator shall serve as the Secretary to the Board with these functions, it is inappropriate. Look at the appointing authority, “the President shall appoint” this person and we are coming to clause 19 giving him this ‘shall’ responsibility as secretary. It is inappropriate from where I sit and looking at all the laws that we have passed.

Let us just refine it and properly situate the creation of either a secretariat or the power of the Board and then the Administrator to appoint someone as secretary. Once the person is appointed, of course, the Administrator is obliged to give the person an office and the needed logistics to function. That is my view.

Mr First Deputy Speaker: Yes, Hon Minister.

Mr Agbodza: Mr Speaker, I am with my Hon Colleague up to that point, but the Fund does not have a legal department and we do not intend to create a secretariat or legal department, because we do not want the Fund to start consuming almost all the resources we have allocated to them on themselves. So, we want to avoid creating an elaborate situation where their overheads are a quarter of the accruals to the Fund.

If we want to refine it by saying that the Administrator shall be the secretary,

however, the Administrator can nominate someone to act on his behalf but shall not absolve himself from the decisions or conduct of that individual, that solves the problem.

If he wants to help us, because I am with him up to the point that it is not appropriate to just name that he should do that. Then he made reference to the President appointing, but in any case, everybody in the Public Service in Ghana is appointed by the President including the teacher and the nurse in theory, but he does not do that directly. He does that through the other people.

Mr Boamah-Nyarko: Rightly so, Hon Minister, but the difficulty is looking at the functions of the Secretary which includes coordinating, facilitating communication between Board of Trustees and implementing agencies, coordinating documentation, reporting compliance, and performing any other function as the Board may direct. When we look at all of these clearly stated functions of the Board Secretary, we cannot at the first level put that burden on the Administrator. If we look at the entire function — *[Interruption]* — That is exactly what I said and we concurred that the Administrator in consultation with the Boards of Trustees would appoint an officer to be the Secretary to the Board and then all the others would flow.

5.14 p.m.

Mr First Deputy Speaker: Hon Members, there may be a problem,

because if you look at the appointment of the other staff, it reads that:

“The President shall in accordance with Article 195 of the Constitution, appoint other staff of the Fund that are necessary for the effective and efficient performance of the functions of the Fund.”

So, if you are now giving the appointment of the other staff function as a Secretary to the Administrator, in consultation with the Board, it may be problematic.

Hon Members, let us look at it this way: The Board may designate a staff of the Road Maintenance Trust Fund as the Secretary to the Board of Trustees. So that, if the Board so designates the Administrator, the Deputy Administrator, or any other staff, it is within the ambit of the law; would that solve the problem?

Mr Osei: The Secretary to the Board should be the decision of the Board to select who plays the role of a Secretary to the Board. So, I agree with you. We need to go with your rendition and we cannot spend much time on this particular clause.

Mr First Deputy Speaker: Yes, are we in favour?

Mr Sosu: Mr Speaker, I move that the rendition that you rightly gave to the House be adopted as the new rendition

for the appointment of Secretary to the Board of the Trustees.

Question put and amendment agreed to.

Mr Annoh-Dompreh: Mr Speaker, I seek your kind indulgence for your guidance on this matter. Mr Speaker, it is difficult for me because I know my Colleague wants us to dispense with this Business. At the start of Sitting today, we got a Colleague on the other Side coming under Order 67(2) for order of Business to be varied and the application was granted.

Mr Speaker, however, when we moved on, if you look at the Order Paper and the order of Business, we should have reverted to the item numbered 6 because Order 71—Mr Speaker, if you permit me, I am saying this for your guidance. Order 71(1) says:

“Every Friday, the chairperson of the Business Committee shall present to the House, a statement on the business arranged for the following week.”

That Business has not been dispensed with and I think, in the course of varying the Business, we got muffled with the litany of Businesses. If we do not take it, we will stand in defiance of Order 71. I am just bringing it to your notice, so that we are guided. We can proceed on the Consideration Stage or we can either suspend the Consideration Stage, do it and come back to it.

Mr Speaker, I so submit.

Mr First Deputy Speaker: Business Committee, were you able to meet?

Mr Annoh-Dompreh: I was there, but we were told—And the draft was brought; I saw the draft Business Statement, but we were told that the other Leaders were engaged in other Business. So, the clerk to the Committee suggested that when we come to the Chamber, we can exit momentarily and endorse the proposed amendment, so that it could be presented. So, there is a draft Business Statement.

Mr First Deputy Speaker: Very well.

Mr Agbodza: Mr Speaker, my good Friend, the respected Minority Chief Whip, is right. I think the mood of the House, initially, was that we were rising today, but, later, I think Leadership persuaded the Speaker to allow us to do a few more Businesses, including this one and I am grateful to Colleagues. So, it is also not unusual that we come back on Monday, sometimes, for them to quickly meet and bring a Report to the House for adoption. But while we are here, I think Leadership can confer and see whether they can quickly put something together as the Business goes on and then save us at a point in time.

Mr First Deputy Speaker: Very well. Let us make progress; I would get an indication from the Chairman of the Business Committee.

Mr Annoh-Dompreh: Even the Majority Chief Whip, my Colleague, and I can agree and relate to you while the Consideration Stage goes on.

Mr First Deputy Speaker: Very well. May the Whips engage and then relate to me.

Hon Members, with your pleasure, I may want to direct that, for clause 16(b) and (c), again, we put the omnibus clause to read, “Any other functions that the Board may assign”.

Mr Sosu: Mr Speaker, I think that that is a really great suggestion and we support that.

Question put and amendment agreed to.

Clause 16 as amended ordered to stand part of the Bill.

Clause 19 ordered to stand part of the Bill.

Mr First Deputy Speaker: Yes, I, consequentially, direct the drafters to tidy up the proposed amendment for us.

Clauses 20 and 21 ordered to stand part of the Bill.

Clause 22 — Moneys of the Fund

Mr Mensah: Mr Speaker, I beg to move, paragraph (h), *delete*.

Question put and amendment agreed to.

Clause 22 as amended ordered to stand part of the Bill.

Clause 23 — Prohibition of investment.

Mr First Deputy Speaker: Chairman of the Committee?

Nana Agyei Baffour Awuah: Mr Speaker, very respectfully, I would like to crave your indulgence to go back to clause 22.

Mr Speaker, clause 22(a) provides that one of the sources of funding for the Fund is a Road Maintenance levy on petroleum products as determined by Cabinet with approval of Parliament. Mr Speaker, clause 22(b), very respectfully, I pray that we consider this and expunge it because it would result in untold hardship on the people of this country—*[Interruption]*—Hon Ranking Member, why?

5.24 p.m.

Mr First Deputy Speaker: Hon Member, the Rule is that you address the Chair.

Hon Member, proceed.

Mr Baffour Awuah: Mr Speaker, very respectfully, introducing a road maintenance levy on petroleum products, in addition to what has already been done, would result in untold hardship on the people of this country.

Mr A. T. Sulemana: Mr Speaker, my learned and dandy Friend should make reference to our days at the NPA. The Road Fund has always been in the price build-up, which, currently, I think is about 49 pesewas. Last year, for instance, we know that it generated about 2.3 billion straight into the—Unless he is proposing that we do away completely with that part. That one, I will agree with him. If he is saying that we should completely throw it out—

Mr First Deputy Speaker: Well, Hon Member, is it already in existence?

Mr A. T. Sulemana: But with that one, we will bring the Minister for Finance to come and answer, not the Minister for Roads and Highways.

I thank you, Mr Speaker.

Mr Agbodza: Mr Speaker, I think it was on a lighter note, so let us move on.

Mr First Deputy Speaker: Yes, sometimes they want to do politics with everything, which for me is not correct.

Clause 23 to 25 ordered to stand part of the Bill.

Clause 26 — Withdrawal of moneys from the Fund.

Mr I. A. Mensah: Mr Speaker, no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Hon Members, any proposed amendment?

Yes, you have the floor?

Mr Nana Osei-Adjei: Mr Speaker, early on, I drew your attention to clause 4. Clause 26 says:

“(1) Moneys shall not be withdrawn from the Fund unless the withdrawal is jointly authorised by

- (a) the administrator; and
- (b) the chairperson...”

Mr Speaker, in this Bill, from clause 4, we have the Minister as the chairperson.

Mr First Deputy Speaker: Are you reading the entire clause 26(b)?

Mr Osei-Adjei: Mr Speaker, it reads:

“26(b) the chairperson of the Board of Trustees or a member of the Board of Trustees designated in writing by the Board of Trustees for this purpose.”

But, Mr Speaker, the first person is the chairperson who is the Minister.

Mr First Deputy Speaker: Yes, you have the floor, continue.

Mr Osei-Adjei: So, Mr Speaker, with all these institutions, for most of the funds, we have Chief Finance Officer and the Director of Finance, so I seek your guidance on this one. If we can

insulate the chairperson from withdrawal of funds, so that accountability will be key.

Mr Speaker, I propose that “the chairperson of the board of trustees” should be *deleted*, so that it reads, “a member of the board of trustees designated in writing by the board of trustees for this purpose”.

Mr Dafeamekpor: Mr Speaker, I am struggling to appreciate the rationale for the proposed amendment. One, because under clause 4, the chairperson who is the Minister is on the board, as well as the administrator. Now, when you come to clause 26(1)(b), where he has the issue, if he is saying that because the Minister is the chairperson and, therefore, he should be insulated, what about the administrator? Do you understand? So, his rationale is not tenable for purposes of seeking that the Minister should be insulated by being deleted.

So, I think that we should leave it the way it is. It is about approval. Once they are mandated under law to approve, I do not think it hurts the legislation.

Mr Boamah-Nyarko: Mr Speaker, in relation to the proposal made by my Colleague, I believe that these are matters of payments that are supposed to be made by the Fund. As a Fund, if there are issues related or that come after the withdrawals, the supervisory authority is the Ministry, which is headed by the Minister. So, my considered view is that, unless we are saying that the Minister

who is the chairperson or his representative—I still believe that we have the administrator and the other person who should co-sign the withdrawal from the Fund should be an appointee of the Board who is a member of the Board. So, I side with him that the Chairperson of the Board of Trustees should be deleted.

Mr First Deputy Speaker: Given the opportunity as a Board of Trustees or as a chairperson, you want to stay out and by the time you realise, moneys are taken from that particular account and you will be held liable?

Mr Boamah-Nyarko: No, because he is the Chairman. This is withdrawal; I am just coming up good governance practice because the Chairman is the Minister. So, if the Chairman is the Minister and all the approvals are being done by the Board, remember that the approvals of payments are supposed to be done by the Board, which is chaired by the Minister. So, there should not be any difficulty when it comes to signing.

Mr First Deputy Speaker: Mr Brother, you see, the question I am asking you is that he is the Minister; he has that role, but over here, he is the Chairperson of the Board of Trustees to manage the fund. And you know the responsibility on the Chairperson of the Board of such Trustees when it comes to the management of the Fund. So, your rendition will go to the effect that whoever is the Chairman of the Board of

Trustees should not be in charge of withdrawal of moneys from the Fund and you feel moneys can be withdrawn from the Fund without—

Mr Sosu: Mr Speaker, if you look at the language of the Act, it says that:

“Moneys shall not be withdrawn from the Fund unless the withdrawer is jointly authorised ...”

Mr Speaker, authorisation does not mean signing. You know, in accounting spectrum, authorisation could be passing *curriculum vitae* and authorising the process by which funds are released.

5.34 p.m.

So, particularly because this is a special purpose vehicle and that is why the Minister is chairing. The Minister who is responsible for Roads and Highways must have interest in authorising any withdrawal that comes from the fund. I think you are fine with that, Mr Speaker so that is the reason why the rendition is the way it is.

Mr A. T. Sulemana: Mr Speaker, I think what we are doing, we are merely legislating what the practice is. As far as I am concerned, you cannot make payments currently under the Road Fund without the Minister’s authorisation so, we are more or less, putting it in writing just to make it for certain that the minister must have a say. I think that is the whole idea.

Mr First Deputy Speaker: Hon Member, knowing the responsibilities of trustees of a fund, if you were to be the Chairman, you would allow a withdrawal without you authorising it? That would be suicidal.

Mr Boamah-Nyarko: Mr Speaker, I think we have agreed that the chairperson should co-authorise it. That is fine so, we will draw our proposal.

Mr First Deputy Speaker: All right. Very well.

Mr Boamah-Nyarko: Mr Speaker, I need your guidance on the (2). Which says that:

“Where a withdrawal is executed through an electronic system, the system shall ensure dual approval, incorporating appropriate audit trails and internal controls”.

But in this dual approval, it is not stated whose approval and it does not make reference to (1) so, I need your guidance if this dual approval does not seem to be in accordance with subsection 1. So, my proposal is for us to state the dual approval to be in reference to (1). I so propose.

Mr First Deputy Speaker: But why are you saying it is not in line with the provision when 26(1) is saying that:

“Money shall not be withdrawn from the Fund unless the

withdrawal is jointly authorised...”.

The word used here is “jointly”.

Clause 26 ordered to stand part of the Bill.

Mr A. T. Sulemana: Mr Speaker, with respect. Clause 27 is a surplusage. The Constitution provides for conditions under which tax exemption can take place and I do not think we should necessarily legislate how the Constitution should be applied so, with respect, Mr Speaker, I think that we should completely expunge clause 27. It is needless.

Mr First Deputy Speaker: Hon Member, I share your view. But apparently, in the laws that we have passed, I was here; on the third row. I have been arguing this particular provision. But all the time, I have lost the argument so, this has become part and parcel of our laws and as a student who so much believe in consistency—

Mr A. T. Sulemana: Mr Speaker, last year, I was on this Side when we were considering the Civil Aviation Act. Mr Speaker, the argument that we raised at the time to support this clause was that most of the time, when they go in for facilities, the lender wants to see a provision like that in their Acts and not necessarily to rely on the Constitution, so that they will use it to secure themselves. But, in this case, we are saying that this fund cannot even enter into any legal agreements.

Mr First Deputy Speaker: Hon Member, the question that they asked me at that time, I will ask you the same question. What harm is this provision causing?

Mr A. T. Sulemana: Mr Speaker, we are saying that if the Constitution has spoken, what more do you need to say about what the Constitution has said?

Mr First Deputy Speaker: That is why the provision says, subject to Article 174. It is subjecting it to the Constitution first and foremost, and the Exemption Act that we have passed. So, it does not derogate from the Constitution and it does not derogate from the Exemptions Act.

Mr A. T. Sulemana: Mr Speaker, with respect, it is like saying that all the provisions of this Act must be made subject to Article 11. It is like saying that every clause is subject to Article 11 or subject to Article 106.

Mr First Deputy Speaker: This particular clause, the exemption from taxes—

Mr A. T. Sulemana: Mr Speaker, we have been learning from you. We have been taking guidance from you. Even at the Committee level, when we were considering this, this issue came up and I agreed with you, Mr Speaker. But if you are abandoning your position, Mr Speaker, I will follow you.

Mr First Deputy Speaker: Thank you very much. I will put the Question.

Yes?

Mr Boamah-Nyarko: Mr Speaker, I have a bit of concern. In this House, making these provisions when it comes to exemption from payment of taxes, one of the biggest concerns and issues when it comes to our tax revenue are the way exemptions are treated. So, when you check the Exemptions Act, efforts have been made to streamline it such that we do not have these things happen. If you read the clause very closely— I read:

“Subject to Article 174 of the Constitution and the Exemptions Act, 2022. The fund is exempt from the payment of taxes that the Minister responsible for Finance may in writing determine with the prior approval of Parliament”.

And there has been much problems with exemptions that have been provided without even coming to this House for approval.

Mr First Deputy Speaker: No. That is not what the provision is saying so, what you are envisaging, when it happens, it will be contrary to this particular provision.

Mr Boamah-Nyarko: I understand. So, my respectful view is that if you look at the object of the Fund and what they are supposed to do, there is nothing in this execution that should warrant us contemplating an exemption from the payment of taxes.

Mr First Deputy Speaker: So, when they bring the proposal for exemption to Parliament, let Parliament refuse it.

Mr Boamah-Nyarko: Exemption?

Mr First Deputy Speaker: Yes, because the law is saying that:

“As determined by the Minister in writing with the prior approval of Parliament”.

So, when it comes to Parliament and Parliament refuses them, then the exemption will not be granted. So, for me, so long as this does not derogate from the Constitution and the Exemptions Act, apart from the fact that, the argument he made is to the effect that the provision is superfluous, whether it is here or it is not here, you can exempt without the Constitution, without the Exemptions Act, and without Parliament approving. But once it is here, it does not also spoil anything so, I will put a question on clause 27.

Clause 27 to 30 ordered to stand part of the Bill

5.44 p.m.

Clause 30 to 34 ordered to stand part of the Bill.

Mr Annoh-Dompreh: Mr Speaker, I have no proposed amendment, but just bring to your attention Order 55(3) and (4). *[Pause]*

Mr First Deputy Speaker: Hon Members, because I did not start the House, my attention is drawn to the fact that we have exceeded five hours. In view of the fact that we want to adjourn early next week, I intend to extend the Sitting beyond the prescribed hours. So, Sitting is hereby extended.

Clause 35 and 36 ordered to stand part of the Bill.

Clause 37—Use of Approved Contract Templates.

Mr Boamah-Nyarko: Mr Speaker, clause 37 deals with the use of approved contract templates. Subclauses (2) and (3) state that,

“(2) An implementing agency shall not amend or depart from an approved contract template.

(3) A road maintenance contract that substantially deviates from an approved contract template without the prior approval, written approval from the Attorney-General, given in consultation with the Minister, is void and unenforceable, and payment shall not be made under the contract for the Fund.”

Mr Speaker, my challenge is that the responsibility of contract templates is on the Fund and its administrators, but a contract properly signed and executed by a third party, who may be an innocent third party when it comes to the contract template—

Mr First Deputy Speaker: Hon Member, how innocent will you be if the law tells you, you cannot do that?

Mr Boamah-Nyarko: We are now passing the law. So, I am making a submission—

Mr First Deputy Speaker: Yes, but you know generally within the meaning of the Constitution, law does not take retrospective effects.

Mr Boamah-Nyarko: I know.

Mr First Deputy Speaker: So the law will only take prospective effects.

Mr Boamah-Nyarko: I know.

Mr First Deputy Speaker: Now, after the passage of this law, how do you claim you have innocently entered into a contract which varies from the template?

Mr Boamah-Nyarko: Mr Speaker, as representatives of the people and as someone who knows that these issues have very dire consequences, I am of the respectful view that we should be mindful of the lack of enforceability on contracts that have been properly executed based on a contract that has been signed.

Mr Agbodza: Although we have standard forms of contracts, we noticed that sometimes some managers of the entities go and insert particular conditions of contract which are not fit for purpose, and people go to court and

hold us accountable because it was signed in the name of the state.

Currently, the Attorney-General and Public Procurement Authority (PPA) are developing standard templates of contracts. We are saying that under this law, if the contract is not entered using the standard approved, those contracts shall not be tendered in as a legitimate contract to be paid for from the Road Fund. It is as simple as that.

In fact, the Road Fund shall not enter into any road contract. So, they are not even party to any road contract. This law is saying that if one goes and creates their own unfit-for-purpose contract and one brings it to them, they will not pay simply because that contract is not fit for purpose. So, this rendition is proper. Let us leave it in there like that.

Mr First Deputy Speaker: Yes, but Hon Minister, if you come to 37(3), there will be a need to do away with the word “substantially”. Other than that, it can deviate. But they must determine whether that deviation is substantial. So, I guide that in 37(3), we *delete* the word “substantially”.

Mr A. T. Sulemana: Mr Speaker, I share that view, and I want to propose that we *delete* “substantially” from clause 37(3) and leave it as it is so that being guided by subclauses (1) and (2). So, we do not need to even deviate to the minutest level and not to talk of even substantial.

Mr Sosu: Mr Speaker, I support the proposed amendment.

Mr First Deputy Speaker: Very well, Hon Minister, what do you say to the proposed amendment?

The essence is that when we leave it substantial, it means one has to go to court to go and argue that, yes, one has deviated, but the deviation is substantial or not before one can refuse payment. So, one may deviate with the approval of the Attorney-General.

Mr Agbodza: Yes, Mr Speaker, not necessarily with the permission of the Attorney-General.

5.54 p.m.

Every contract can vary to a certain degree and when we are given responsibilities, we are supposed to exercise that in a manner which is not capricious, malicious or anything. This is saying that if we make any changes to a contract, let us say the location requires that certain things be done in a certain way, it could have been done based on the standard contract.

Mr First Deputy Speaker: Yes, but I believe the standard that they will be providing will not indicate the location in view of the fact that the location may vary from one place to the other.

Mr Agbodza: All right, in that case, his rendition is not—

Let us just incorporate what he is proposing.

Mr First Deputy Speaker: Very well. So, the proposal is to *delete* the word “substantial” from clause 37(3).

Question put and amendment agreed to.

Clause 37 as amended ordered to stand part of the Bill.

Clause 38 to 57 ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, the Long Title.

Mr Dafeamekpor: Mr Speaker, if you may humbly look at the second consideration in respect of clause 55, “emergency works.”

6.04 p.m.

We are defining emergency works, but in the belly of the Bill, we did not use “emergency works”. We used “emergency maintenance”, so if we can reconcile.

Mr First Deputy Speaker: They have defined “emergency maintenance” and “emergency work”.

Mr Dafeamekpor: All right, I am guided then.

Long Title ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, we have come to the end of Consideration Stage of the Road Maintenance Trust Fund Bill, 2025.

Alhaji A. Alhassan: It was in relation to the Second Consideration, but he has brought the Mace back, so I do not know whether—

Mr Speaker, if you look at clause 55, where we have the definition for “District Assembly”. We have “District Assembly”, includes a Metropolitan Assembly and a District Assembly”. I think it should have been “a Municipal Assembly.”

Mr First Deputy Speaker: I will direct the drafters to put a correct rendition because it is a constitutional—

Mr Dafeamekpor: The Local Governance Act, 2016 (Act 936) defines district assembly to include municipal assemblies, so anywhere we use district assembly, it includes municipal and metropolitan assemblies.

[Pause]

Mr Nanja: What the Hon Member said is that the definition of a district assembly includes metropolitan assembly and a district assembly, so we should add municipal assembly because—

Mr First Deputy Speaker: That was why I directed the drafters that we have a constitutional interpretation for it, so the drafters will just adopt it. It is a regular constitutional provision, so they will adopt the correct rendition.

Hon Members having ended the Consideration Stage of the Road Maintenance Trust Fund Bill, 2025, we may now move to the Motion numbered 10.

Minister for Roads and Highways, you may move the Motion numbered 10.

BILLS — THIRD READING

Road Maintenance Trust Fund Bill, 2025

Minister for Roads and Highways (Mr Kwame Governs Agbodza) (MP): Mr Speaker, I beg to *move*:

That the Road Maintenance Trust Fund Bill, 2025 be now read the Third time.

Mr Francis-Xavier Kojo Sosu (NDC — Madina): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

The Road Maintenance Trust Fund Bill, 2025 – *read the Third time and passed.*

Mr Dafeamekpor: Mr Speaker, the Business Statement is ready, but for purposes of getting it distributed to Members, in the interim, we want to take the item numbered 7, Statements. I believe that there are one or two outstanding Statements, so we will take them and by the time we are done, the Business Statement will be ready, so that we can take it and bring the curtains down on today's Business.

Mr Annoh-Dompreh: Mr Speaker, I have no objections to that.

Mr First Deputy Speaker: Very well.

Clerks-at-the-Table, let me have copies of the Statement to be taken.

Hon Members, we have a Statement standing in the name of Hon Alexander Roosevelt Hottordze, the Member of Parliament for Central Tongu, on the murder of Nelson Anyina and the rising canker of ritual killing in Ghana.

Hon Member you have the floor.

STATEMENTS

Rising Canker of Ritual Killing in Ghana

Mr Alexander Roosevelt Hottordze (NDC—Central Tongu): Mr Speaker, I rise, with a very heavy heart, to draw the attention of this august House to an alarming and tragic incident that has occurred in Central Tongu, that is the brutal murder of one Nelson Anyina, a 24-year-old native of Wusuta in the North Dayi District who was residing at Avakpedome in the Central Tongu District.

The young man was reported missing to the Adidome Police Command on the 4th December, 2024 by his mother, Madam Comfort Hate, a trader at Donkokrom in the Eastern Region.

Mr Speaker, the initial disappearance of Nelson left local leaders and the community members in a state of shock and fear.

6.14 p.m.

Until relentless efforts by the National Intelligence Bureau (NIB) and the Ghana Police Service, including the intervention of officers from the Volta Regional Command of the Police Service in Ho, brought relief to the residents.

It is gratifying to note that investigations led to the arrest of three individuals: Wisdom Xedidor, Courage Bedzo and Augustina Esinu Fiawoyife at Avakpedome in the Central Tongu District. Upon series of investigations, these suspects later confessed to the investigators that they strangled the young man to death at around 11.30 p.m. on the same day he was declared missing.

Mr Speaker, further investigations have revealed that the lifeless body of the victim was reportedly transported in a tricycle to Gblorkope, a village near Mafi Adidome, where the body was sold to three brothers: Noah, John, and Johannes Gblor, for an amount of GHC10,000. An initial payment of GHC7,000 was made, with GHC3,000 in arrears, showing the sheer commodification of human life for ritual purposes.

Mr Speaker, this is not an isolated case. The Central Tongu District and its surrounding communities have become hotspots for suspected ritual murders. *Okada* riders have frequently fallen victim to these criminal elements. They are murdered either for their motorbikes or for ritual purposes.

Mr Speaker, in June 2021, a young man called Kobla Abraham Tsormana, a native of Mafi Tsakpo, was also murdered in cold blood. The whole area was thrown into fear and residents could not go about their normal duties, until I single-handedly funded the investigative efforts of security personnel of the area to get the perpetrators of this heinous crime arrested. They were processed for court, but no one knows where that matter has ended. It is very sad, Mr Speaker. These are not just anecdotal accounts. These are cases that have left families shattered and entire communities living in fear.

Mr Speaker, the nationwide trend of ritual killing is growing. According to data from the Ghana Police Service and various media houses, between 2021 and 2024, over 70 reported cases of suspected ritual killings were recorded in different parts of this country, including Kasoa, Wa, Sunyani and Central Tongu. In April 2021, the ritual killing of a 10-year-old boy in Kasoa by two teenagers shocked the whole nation and sparked public outcry.

In Wa, a series of killings targeted at private security personnel created panic, with some bodies discovered mutilated and suggestive of ritual motives. In the Ashanti Region, reports of missing persons, particularly women and children, continue to rise, with many believed to be victims of human sacrifice and money rituals.

Mr Speaker, the implications of these acts go beyond the loss of lives. They

scare investors away, incite mob action and diminish public trust in our security system.

Mr Speaker, I wish to call upon, the Ghana Police Service to intensify its surveillance on ritual-related activities and to fast-track the prosecution of all six suspects currently in custody at the regional police command in the Volta region to serve as deterrents to others. I, therefore, call upon the Inspector-General of Police (IGP) to, as a matter of urgency, not only increase the police visibility in the area, but to make available one strong vehicle for the district command of police in Central Tongu.

Mr Speaker, the Minister responsible for National Security should also conduct a nationwide intelligence operation to identify and dismantle unregistered shrines and criminal networks engaged in ritual killings. The Ministry of Local Government, Chieftaincy and Religious Affairs should partner with traditional leaders in educating communities and also regulating spiritual practices that glorify blood rituals and human sacrifices. The Ministry of the Interior and the Ministry of Local Government, Chieftaincy and Religious Affairs should strengthen district-level community policing and vigilance groups to monitor and report suspicious movements.

Mr Speaker, it is sad to inform you that Central Tongu District can only boast of 15 police personnel in the whole district, which alone can give rise, in no

small measure, to the ritual killing. The Ministry of Energy and Green Transition should also provide more street lights to the various districts for installations to prevent some of these crimes being perpetrated in obscure environments.

Mr Speaker, we must not wait until another life is lost under a horrific situation before we take action. The death of Nelson Anyina is a clarion call to act, not just in Central Tongu but across Ghana. No Ghanaian, regardless of age, class or location, should live in fear of being kidnapped or murdered for rituals. Justice must be swift, visible and effective.

Mr Speaker, I submit this Statement to this august House and urge all Members to lend their voices to this urgent national concern.

I thank you, Mr Speaker.

Mr First Deputy Speaker: Thank you, Hon maker of the Statement.

Yes, Hon Minority Chief Whip?

Mr Annoh-Dompreh: Mr Speaker, with respect, I just realised a Statement that stands in the name of the Hon Ernest Yaw Kumi had been admitted and is on the console. May I pray you that he also presents it, then you can allow comments on the two, if it pleases you, Mr Speaker.

Mr First Deputy Speaker: So, you want that Statement in the name of the deceased presented or another Statement?

Mr Annoh-Dompreh: The one that has been admitted in the name of Mr Ernest Yaw Anim.

Mr First Deputy Speaker: Once the person is no more, how would he be presenting his Statement?

Mr Annoh-Dompreh: Mr Speaker, I said Ernest Anim.

Mr First Deputy Speaker: Very well.

Mr Annoh-Dompreh: I said Anim.

Mr First Deputy Speaker: No, first you said Kumi.

Mr Annoh-Dompreh: I said that? Well, Mr Speaker, then—

Mr First Deputy Speaker: Yes. So, Hon Member, you have the floor.

Feeding Rate and General Living Conditions in Ghana's Prisons

Mr Ernest Yaw Anim (NPP — Kumawu): Mr Speaker, I am grateful for the opportunity to make this urgent Statement on the need to address a matter of grave concern: the deplorable feeding rates and the inhumane living conditions in Ghana's prisons.

Mr Speaker, following our recent fact-finding mission to the Nsawam Medium Security Prison and subsequent engagement with the management of the Ghana Prisons Service, the Committee has been left deeply alarmed by the

realities within our correctional facilities. The daily feeding rate for prisoners in Ghana is a mere GHC1.80, an amount that cannot provide even a basic nutritious meal in the economic climate of today. This woefully inadequate figure not only undermines the health and dignity of inmates, but also exposes a regrettable neglect of their fundamental human rights.

To put this into perspective, under the Ghana School Feeding Programme (GSFP), school children are allocated GHC2 per day for their meals. While this amount is also insufficient, it is essential to recognise that these children return home to their families daily, where they may receive additional care and nourishment.

6.24 p.m.

In contrast, prisoners have no other support system and are entirely dependent on the State for their nutrition and welfare. Their current feeding rate is not only inadequate but also a direct affront to human dignity. Many prisoners rely on the good will of family Members and charitable organisations to supplement their daily rations, a situation that is neither sustainable nor acceptable. Mr Speaker, the consequences of this neglect are devastating. Widespread malnutrition among inmates, some of whom are serving long sentences without adequate nourishment.

Overcrowding in facilities like Nsawam Medium Security Prison, holding over 3,500 inmates in a space

designed for just 700. That is an overcrowding rate of over 400 per cent. Limited access to clean water, proper sanitation and medical care creates a breeding ground for disaster and despair.

The absence of meaningful rehabilitation and reintegration programmes leaves many prisoners unprepared to re-enter society that is perpetuating the cycle of crime and poverty.

Mr Speaker, let us not forget that the majority of Ghana's prison population, over 70 per cent, are remand prisoners or serving short sentences. Many are young people, petty offenders, women and even mothers with infants who should never be subjected to such inhumane treatment. Ghana as a signatory to the United Nations Standard Minimum Rules for the Treatment of Prisoners, which is the Nelson Mandela Rules, the International Covenant on Civil and Political Rights, and the African Charter on Human and People's Rights have an obligation to uphold the dignity and fundamental human rights of all persons, including those in detention.

Mr Speaker, we cannot claim to be a just and democratic nation if we continue to treat the most vulnerable among us in such a manner. Being incarcerated does not mean being stripped of one's humanity.

Recommendations.

In light of these concerns, I call on the Government to;

- (1) Immediately review and increase the daily feeding rate to an amount that reflects current market realities and ensure the nutritional needs of inmates are met.
- (2) Allocate dedicated budgetary resources in the 2025 Midyear Budget to improve prison infrastructure, including sanitation, healthcare facilities and security.
- (3) Undertake a nationwide prison reform agenda in collaboration with Parliament, CHRAJ, the Judiciary and the civil society to address systemic challenges, including overcrowding, poor health conditions and lack of rehabilitation programmes.
- (4) Implement gender-sensitive policies to address the unique needs of women, children in conflict with the law and vulnerable groups within the prison system.
- (5) Establish a bipartisan parliamentary enquiry into the state of Ghana's prisons and report back to this House within three months with actionable recommendations.
- (6) Fulfil Ghana's international obligations by aligning prison conditions with global human rights standards, including the Nelson Mandela rules.

Mr Speaker, the measure of any society is not how it treats its privilege, but how it treats its most vulnerable. The men and women behind bars are Ghanaians, our brothers, sisters, and fellow citizens. I will continue to advocate for prison reforms, demand accountability and push for a correctional system that is just, humane and rehabilitative. The Committee calls on the Ghana Prison Service, the Ministry of the Interior and the Ministry of Finance to work collaboratively to improve the general living conditions within our prisons, ensuring that inmates are treated humanely and by national international human rights standards.

I wish to express my gratitude to CHRAJ for their relentless advocacy in protecting human rights in Ghana and to the Ghana Prisons Service, including the officers in charge of various facilities and the Director General of Prisons, Ms Patience Baffoe-Bonnie, for their dedication and openness in engaging with the Committee during our visit.

Mr Speaker, the time for reform is now. Let us not wait for a crisis to spur us into action. Thank you for your attention and I am grateful for the opportunity to make this Statement.

Thank you.

Mr First Deputy Speaker: Thank you very much. Hon Members, how many contributors we take from each Side? —One on each Side? Very well, then I will give the floor to Hon James Agalga.

Mr James Agalga (NDC — Builsa North): Thank you, Mr Speaker. I want to commend the maker of the Statement, who happens to be the Chairman of the newly established Committee on Human Rights of which I am the Ranking Member.

Mr Speaker, it is indeed true that as part of our mandate, we paid a working visit to the Nsawam Medium Security Prisons facility, and as a result of our engagement with the Prison authorities, quite a number of issues came to the fore, and the maker of the Statement amplified some of the issues that came up when we visited.

First of all, Mr Speaker, it is true that the feeding rates for prison inmates in this country is a blot on our conscience as a people. Mr Speaker, GH¢1.80 for three square meals a day is a blot on our conscience as a people. When this matter came to our attention, we took action. In fact, the authorities were duly notified, and some assurances were given to the effect that the feeding rate would be increased from GH¢1.80 to a minimum amount of GH¢5.00 for three square meals a day for an adult, not a child, an adult. Mr Speaker, I think we should not politicise this matter and speak truth to power. This particular increment must be done immediately. There was an omission. We are reliably informed when the Budget was read for the first time. Now, when the issue was raised—

Mr First Deputy Speaker: Hon Member, conclude.

Second Deputy Speaker to take the Chair.

Mr Agalga: Mr Speaker, these are human rights matters. These are human rights matters. Mr Speaker, with the greatest of respect, we paid a visit to the Nsawam Medium Prisons and so, if I have to touch on these issues that I am being asked to conclude—

Mr First Deputy Speaker: Hon Member, the drafters of our Rules know of human right matters and then indicated five minutes. And the last time the Business Committee came, they said we should reduce comments on Statements to three minutes. So, I am not invoking anything new. That was a Business Statement that we have adopted.

Hon Members, was that not the Business Statement that we have adopted? You are to comment within three minutes.

Mr Agalga: Mr Speaker, I crave your indulgence. Mr Speaker, we are masters of our own rules and when it suits us, we are able to change the rules, because the exigencies and the circumstances warrant it, with the greatest of respect.

6.33 p.m. — [HON SECOND DEPUTY SPEAKER, MR ANDREW ASIAMA AMOAKO IN THE CHAIR]

Mr Speaker, the feeding rate is something that we need to immediately

respond to. I am very passionate about this. We sit here, all of us are potential candidates for jail. We are potential candidates.

Mr Speaker, the second issue that came to our attention was the fact that the rate of congestion in our prisons is 40 per cent. So, in this country, congestion is 40 per cent. There is 40 per cent overcrowding in our prisons. But the Governments in the past took measures to resolve this problem. Yes, in 2015, the President Mahama Administration started the construction of a remand prison within the Nsawam Medium Security Prisons enclave. Mr Speaker, unfortunately, works have stalled. Again, this is one intervention that should be done immediately so that we can separate our remand prisoners from convicts.

6.34 p.m.

At the moment, they are combined. That is legally untenable and so action needs to be taken in this regard.

Again Mr Speaker, time without number we have stated that in this country when minor offences are committed, the only option judges are constrained to exercise, the only option they have is to impose custodial sentences. Now, how do we resolve this? The resolution lies in the passage of a law which would allow for community service. Time without number we have made this point. It appears the time has come for action to be taken so that we can have a Community Sentence Bill

brought before this House for quick passage. When that is done, the rights of our citizens would be best protected.

Lastly, Mr Speaker, one other issue which came to the fore when we visited the prisons was the plight of condemned prisoners. Giant steps were taken in this country to abolish the death penalty. Mr Speaker, we are not complete yet. We need to take action in respect of the constitutional provisions which ties the hands of Judges. For instance, convicts for the offence of treason. Treason is a matter that requires a referendum because those provisions are entrenched. So maybe as the Constitutional Review Commission continues to do its work this matter must be brought to their attention so that we can amend the constitution in order that we are able to achieve abolition in its entirety. At the moment it is only those offences, murder and the rest of them which are related under the Criminal and Adult Offences Act which have so far been abolished.

So Mr Speaker, thank you and let me conclude by saying that when it comes to human rights matters it is not for nothing that the Human Rights Committee was created. And so, when we present reports before this House, they need to be taken very seriously. Thank you for the opportunity Mr Speaker. [*Hear! Hear!*]

Mr Annoh-Dompreh: Mr Speaker, I just admire the convergence of mind and the non-partisan narrative by the two speakers, Hon Ernest Anim and my Colleague and a Brother, Hon Agalga. I just admire how they are working

together. Mr Speaker, not to rehash the issues raised, first of all my heart goes out there to my Colleague and condolence to the family and the entire constituency. I think this matter must not be left to die naturally. So later in the day when the Business Statement is read, we must find a way to get the Interior Minister who doubles as a National Security Minister to be here. We could maybe come under Order 60 and meet him at closed sitting because it is a sensitive national security matter. Then we can engage him and get some update.

Mr Speaker, the Nsawam Medium Prison is in my constituency and I have been there countless times. Mr Speaker, you need to be there to tell the story; it is pathetic. Truly, structural expansion has started. The last time the Hon Minister was in the House, he had said that that particular building the Member spoke to has gotten to 70 per cent. So, we will appeal to the Hon Minister to ensure completion of the work which will reduce the congestion. The Hon Minister also related to custodian sentence and what the Ministry is doing. But I guess we need to go beyond the normal narrative and the diplomacy that we often engage in and get practical and real. And so, I support and commend the maker of the Statement. I commend the Committee but their work should not be restricted to the medium prisons alone and Hon Agalga would agree with me? Human rights abuses are all over the country; in the markets and some other places. We should go beyond the prisons and find other places where our work can relate and bring these matters up to the

front burner and then we can show leadership as public servants and find a way which is common to address it. So having said that, I thank you. And the Member said that as a human rights and new committee in the Standing Order, we should be giving attention to their works. Yes, Hon, that is why the Statement was admitted. We had agreed we were not going to take Statement yet the Speaker compromised and took the Statement. So, his works I guess is appreciated and the Speaker gives it all the attention. Having said that, I thank you for the opportunity and I am grateful for the opportunity given.

Mr Second Deputy Speaker: Thank you. Majority Leadership?

Are you yielding it to Hon Peter Kuuire?

Mr Richard Kuuire (NDC—Nandom): Mr Speaker, is it to me or to my brother? *[Laughter]*

Mr Speaker, thank you for the opportunity. I am insisting on speaking because I am a former Director General of Prisons in Ghana. And I have 10 years' experience working with prison reform in the United Nations system. I want to associate myself with the Statement made by my Colleague and to urge this House to seriously consider the issues raised.

Mr Speaker, it is not just only about food, GH¢1.80. What will that buy? And that promotes diseases, hunger among others. Mr Speaker, it would have been

good if we agree that we all go and sleep at the prison for just one night to have a feel of it. I want to say that in the past, I have had the opportunity of hosting Ministers in this country in the prisons. While some of them were there, they were sending for me to come and they would tell me how we can improve upon the prison system. Mr Speaker, it is not a child's play to be in prison for just one day. The overcrowding is just terrible. We used to say they sleep like how you position sardines. Nsawam is not the worst prison. I would not mention other prisons, but they are very bad.

I associate myself with what Hon Agalga said. Look, we must have a special session to discuss the prisons. What did Mandela say? That if you want to measure the democracy in human rights in a country, then go to the prisons. He was there for 27 years. And when he came, his attitude to prisons and prisoners changed. Mr Speaker, I want to say the overcrowding is because of the way we are managing our criminal justice system. Because anybody who goes in there has no other means to seek redress. Because most of them cannot afford the legal fees. And particularly with drivers, if you are alleged to have committed an offence, and you are sent to court, and you plead not guilty, you are going in for two weeks remand and the consequences of that is not easy. Because you will lose your job.

Mr Speaker, the alternatives to imprisonment are not being used in this country. It is not just community service. Some of the issues are even diversions.

How to keep juveniles away from adult prisoners. If we are not careful, we are turning the prisons into schools or universities for learning how to commit crimes because first time offenders are associated with hardened criminals and what is the consequence?

6.44 p.m.

They learn criminality inside the prison, Mr Speaker. I think in the near future, we will have an opportunity to really discuss our prison system.

Thank you very much, Mr Speaker.
[Hear! Hear!]

Mr Second Deputy Speaker: I was getting enthused with your submission. Thank you very much. I think we will bring this particular Statement to a close. Hon Member, you will come back.

So, Hon Members, we will go back to the normal Order Paper, the item numbered 6. Today we have dealt with about two Order Paper *Addendums*, but I am referring to the original Order Paper, the item numbered 6, Business Statement for the ninth, for the tenth week.

Yes, Hon Majority Chief Whip?

BUSINESS OF THE HOUSE

Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor on behalf of the Chairman: Mr Speaker, your Committee met this morning to consider Business for next week from Monday to Friday, the 1st August, 2025.

Introduction:

Mr Speaker, the Business Committee met today, Friday, 25th July, 2025, and arranged Business of the House for the Tenth Week ending Friday, 1st August, 2025.

Mr Speaker, the Committee accordingly submits its report as follows:

Arrangement of Business

Formal Communications by the Speaker

Mr Speaker, you may read any available communication to the House.

Question(s)

Mr Speaker, the Business Committee has scheduled the following Ministers to respond to Questions asked of them during the Week.

	<u>No. of Question(s)</u>
i. Minister for Fisheries and Aquaculture Development	7
ii. Minister for Roads and Highways	5
iii. Minister for Local Government, Chieftaincy and Religious Affairs	5
iv. Minister for Energy and Green Transition	4
Total Number of Questions	<u>21</u>

Mr Speaker, in all, four (4) Ministers are expected to attend upon the House to respond to Twenty-one (21) Questions during the Week. The Questions are of the following types:

- i. Urgent – 0;
- ii. Oral – 21

Statements

Mr Speaker, pursuant to Order 91(2), Ministers of State may be permitted to make Statements on Government policy. You may also admit Statements by Hon Members in accordance with Order 93.

Bills, Papers and Reports

Mr Speaker, in accordance with Order 159, Bills may be presented to the House for First Reading. However, those of urgent nature may be taken through the various stages in a day in accordance with Order 160.

Pursuant to Order 97, Papers may be laid during the Week and reports from Committees may also be presented to the House for consideration.

Motions and Resolutions

Mr Speaker, Motions may be debated and their consequential Resolutions, if any, taken during the Week.

Referral at Committees

Mr Speaker, an update on pending referrals at Committees has been attached for the attention of leadership of the respective Committees

to guide the consideration and reporting on the referrals. A total of One Hundred and Eighty-Eight (188) referrals have been assigned to Twenty (20) Committees for consideration and report to the House.

Mr Speaker, the Business Committee continues to urge all Committees to prioritise consideration of the referrals and report on same in the coming week in accordance with Order 267(4).

Commentary On the Budget Statement and Economic Policy of Government

Mr Speaker, the Mid-Year Review of the Budget Statement and Economic Policy of the Government of Ghana for the 2025 Financial Year was presented by the Minister of Finance on Thursday 24th June, 2025. Comments on the Statement will commence on Monday, 28th July and be concluded on Thursday, 31st July, 2025.

Accordingly, the Business Committee recommends the following time allotments for contributions by Hon Members and Ministers of State pursuant to Order 216(2) (b).

- i. Majority Leader & Minority Leader - 45 minutes
- ii. Other Leaders - 30 minutes
- iii. Ministers - 15 minutes

iv. Chairpersons & Ranking
Members of Committees -
15 minutes

v. Vice Chairperson & Deputy
Ranking Members - 10
minutes

vi. Other Hon Members - 5
minutes

National Pledge

Statements

Presentation of Papers

a) Annual Statement by the Audit
Committee of the National Road
Safety Authority for the year
2024.

b) Annual Statement by the Audit
Committee of the Ghana
Shippers' Authority for the year
2024.

c) Annual Statement by the Audit
Committee of the Ghana
Maritime Authority for the year
2024.

d) Annual Statement by the Audit
Committee of the College of
Community Health Nursing,
Winneba for the year 2024.

e) Annual Statement by the Audit
Committee of the Yilo Krobo
Municipal Health Directorate for
the year 2024.

f) Annual Statement by the Audit
Committee of the Yilo Krobo
District Hospital for the year
2024.

g) Annual Statement by the Audit
Committee of the Somanya
Polyclinic for the year 2024.

h) Annual Statement by the Audit
Committee of the Health

Adjournment of the House

Mr Speaker, the House is expected to adjourn *sine die* on 1st August, 2025. In this regard, the Business Committee entreats Hon Members to continue to devote themselves to the scheduled Business as proposed.

The Business Committee takes this opportunity to sincerely commend your good self, your Deputies, and all Hon Members for the self-sacrifice and devotion to the Business of the House throughout the Meeting. The Business Committee urges all Hon Members to continue with this commitment until adjournment *sine die*.

Conclusion

Mr Speaker, in accordance with Order 216 (2) and subject to Order 67, the Committee submits to the House the order in which the Business of the House shall be taken during the Week.

Monday, 28th July, 2025

Roll Call

Facilities Regulatory Authority
for the year 2024.

- *Commencement of Debate*

Committee Sitzings

Tuesday, 29th July, 2025

Roll Call

Statements

Questions

i) Annual Statement by the Audit Committee of the Medical and Dental Council for the year 2024.

j) Annual Statement by the Audit Committee of the National Cardiothoracic Centre for the year 2024.

k) Annual Statement by the Audit Committee of the College of Nursing and Midwifery, Nalerigu for the year 2024.

l) Annual Statement by the Audit Committee of the National Identification Authority for the year 2024.

m) Annual Statement by the Audit Committee of the Ministry of Works, Housing and Water Resources for the year 2024.

n) Annual Report of the Ministry of Government Communication on the Implementation of the Right to Information Act, 2019 (Act 989) for the year 2024.

Motions

- That this honourable House approves the Mid-Year Review of the Budget Statement and Economic Policy of the Government of Ghana for the 2025 Financial Year.

***345. Mr Duke William Allen Kwame Amoako-Atta Ofori-Atta (Fanteakwa South):** To ask the Minister for Fisheries and Aquaculture Development the steps being taken to operationalise the One-Stop-Shop Aquaculture Licensing System in 2025, and how this reform will improve regulatory compliance and investment in the aquaculture industry.

***347. Mr Duke William Allen Kwame Amoako-Atta Ofori-Atta (Fanteakwa South):** To ask the Minister for Fisheries and Aquaculture Development when the proposed Blue-Economy Commission will be established and what legal or institutional framework will guide its operations.

***354 Ms Shirley Kyei (Atwima Nwabiagya South):** To ask the Minister for Fisheries and Aquaculture Development when the Anomabo Fisheries College will be fully operationalised and what Academic Programmes will be introduced for the first cohort in the 2025/2026 academic year.

***355 Mr Elvis Osei Mensah Dapaah (Ahafo Ano South West):** To ask the Minister for Fisheries and Aquaculture Development the measures the Ministry has taken to ensure the timely completion of the outstanding components of the Anomabo Fisheries College infrastructure.

***358 Ms Gloria Owusu (Trobu):** To ask the Minister for Fisheries and Aquaculture Development the steps the Ministry has taken to intensify biosecurity protocols in aquaculture, including fish disease detection training, quality assurance and improved fish genetics.

***359 Ms Gloria Owusu (Trobu):** To ask the Minister for Fisheries and Aquaculture Development the support packages being offered under the Aqua / Cage–Culture Project to women and youth groups and how equitable access to these inputs will be ensured across Districts.

***360 Mr Rudolf Amoako-Gyampah (Upper Denkyira West):** To ask the Minister for Fisheries and Aquaculture Development the status of the 157 Premix Fuel Automation outlets under construction as of the end of 2024 and the steps the Ministry is taking to ensure the completion of the remaining 143 outlets in 2025.

Presentation of papers

- a) Annual Statement by the Audit Committee of the Ghana

Irrigation Development Authority for the year 2024.

- b) Annual Statement by the Audit Committee of the Ghana Export Promotion Authority for the year 2024.
- c) Sixteenth Report of the Appointments Committee on His Excellency the President's Nominations for Appointment as Deputy Ministers.

Motions

- (a) That this Honourable House approves the Mid-Year Review of the Budget Statement and Economic Policy of the Government of Ghana for the 2025 Financial Year.

- Continuation of Debate

Committee Sitzings

Wednesday, 30th July, 2025

Roll Call

Statements

Questions

***294. Mr Daniel Nana Addo-Kenneth (Okere):** To ask the Minister for Roads and Highways when the contractor working on the following roads which have stalled will resume work: (i) Dawu town (ii) Abiriw town.

***295. Mr Daniel Nana Addo-Kenneth (Okere):** To ask the Minister for Roads and Highways when construction on the Konko-Asasekorkor-Kwamoso road will resume.

***296. Mr Charles Forson (Tema Central):** To ask the Minister for Roads and Highways when the contractor assigned to the Community Eleven (11) State Fishing Enclave Inner Roads will return to the site.

***297. Mr Daniel Nana Addo-Kenneth (Okere):** To ask the Minister for Roads and Highways when the Aseseeso-Abonse-Agomeda road will be completed.

***298. Mr Duke William Allen Kwame Amoako-Atta Ofori-Atta (Fanteakwa South):** To ask the Minister for Roads and Highways when a traffic light will be installed at the Osino intersection on the bus Accra-Kumasi highway.

Presentation of Papers

- (a) Annual Statement by the Audit Committee of the Wesley College of Education for the year 2024.
- (b) Annual Statement by the Audit Committee of the Sunyani Technical University for the year 2024.
- (c) Annual Statement by the Audit Committee of the Tumu College of Education for the year 2024.

- (d) Annual Statement by the Audit Committee of the St. Joseph College of Education for the year 2024.
- (e) Annual Statement by the Audit Committee of the Berekum College of Education for the year 2024.
- (f) Annual Statement by the Audit Committee of the St. Monica College of Education for the year 2024.
- (g) Annual Statement by the Audit Committee of the Gbewaa College of Education for the year 2024.
- (h) Annual Statement by the Audit Committee of the University of Energy and Natural Resources for the year 2024.
- (i) Annual Statement by the Audit Committee of the University of Cape Coast for the year 2024.
- (j) Annual Statement by the Audit Committee of the Evangelical Presbyterian College of Education, Amedzofe for the year 2024.
- (k) Annual Statement by the Audit Committee of the Institute of Chartered Accountant for the year 2024.
- (l) Annual Statement by the Audit Committee of the Jasikan

College of Education for the year 2024.

Development Studies for the year 2024.

(m) Annual Statement by the Audit Committee of the St. Vincent College of Education for the year 2024.

(n) Annual Statement by the Audit Committee of the Akatsi College of Education for the year 2024.

(o) Annual Statement by the Audit Committee of the St. Ambrose College of Education for the year 2024.

(p) Annual Statement by the Audit Committee of the Cape Coast Technical University for the year 2024.

(q) Annual Statement by the Audit Committee of the University of Professional Studies, Accra for the year 2024.

(r) Annual Statement by the Audit Committee of the Ghana Library Authority for the year 2024.

(s) Annual Statement by the Audit Committee of the Ghana Academy of Arts and Sciences for the year 2024.

(t) Annual Statement by the Audit Committee of the Simon Diedong Dimbo University of Business and Integrated

Motions

That this Honourable House approves the Mid-Year Review of the Budget Statement and Economic Policy of the Government of Ghana for the 2025 Financial Year.

- Continuation of Debate

Committee Sitzings

Thursday, 31st July, 202

Roll Call

Statements

Questions

***277. Mr Tweneboa Kodua Fokuo (Manso Nkwanta):** To ask the Minister for Local Government, Chieftaincy and Religious Affairs the status of the construction of the 1No. 6-unit classroom block at Yawhemekrom and 1No. 6-unit classroom block at Essuowim under the Infrastructure for Poverty Eradication Programme (IPEP) in the Manso Nkwanta Constituency.

***278. Mr Tweneboa Kodua Fokuo (Manso Nkwanta):** To ask the Minister for Local Government, Chieftaincy and Religious Affairs the status of the ongoing Astroturf football pitch construction at Pakyi No. 1 in the Manso Nkwanta Constituency.

***309. Prof Kingsley Nyarko (Kwadaso):** To ask the Minister for Local Government, Chieftaincy and Religious Affairs the total number of staff that were in the employ of the development authorities and the number that have been absorbed into the district assemblies as indicated in the 2025 budget.

***310. Prof Kingsley Nyarko (Kwadaso):** To ask the Minister for Local Government, Chieftaincy, and Religious Affairs the total number of shrines in the country and the number of them that are registered.

***311. Prof Kingsley Nyarko (Kwadaso):** To ask the Minister for Local Government, Chieftaincy, and Religious Affairs the measures the Ministry has implemented to promote and deepen religious tolerance and inclusivity in the country.

Presentation of Papers

- (a) Annual Statement by the Audit Committee of the Atwima Kwanwoma District Assembly for the year 2024.
- (b) Annual Statement by the Audit Committee of the Prestia-Huni Valley Municipal Assembly for the year 2024.
- (c) Annual Statement by the Audit Committee of the Juaben Municipal Assembly for the year 2024.

- (d) Annual Statement by the Audit Committee of the Ga South Municipal Assembly for the year 2024.
- (e) Annual Statement by the Audit Committee of the Asutifi North District Assembly for the year 2024.
- (f) Annual Statement by the Audit Committee of the Obuasi East Municipal Assembly for the year 2024.
- (g) Annual Statement by the Audit Committee of the Assin North District Assembly for the year 2024.
- (h) Annual Statement by the Audit Committee of the Sekyere Central District Assembly for the year 2024.
- (i) Annual Statement by the Audit Committee of the Ga West Municipal Assembly for the year 2024.
- (j) Annual Statement by the Audit Committee of the Suame Municipal Assembly for the year 2024.
- (k) Annual Statement by the Audit Committee of the Bosome Freho District Assembly for the year 2024.
- (l) Annual Statement by the Audit Committee of the Upper

Denkyira East Municipal Assembly for the year 2024.

- (m) Annual Statement by the Audit Committee of the New Juaben South Municipal Assembly for the year 2024.
- (n) Annual Statement by the Audit Committee of the Sekyere Afram Plains District Assembly for the year 2024.

Motions

- (a) That this Honourable House approves the Mid-Year Review of the Budget Statement and Economic Policy of the Government of Ghana for the 2025 Financial Year.

- Conclusion of Debate

- (b) That this Honourable House adopts the Sixteenth Report of the Appointments Committee on His Excellency the President's Nominations for Appointment as Deputy Ministers.

Committee Sittings

Friday, 1st August, 2025

Roll Call

Statements

Questions

***300. Mr Maxwell Kwame Lukutor (South Tongo):** To ask the Minister for Energy and Green

Transition the plans of the Ministry for the continuous removal of water weeds in the Volta River especially around the lower Volta bridge at Sogakope.

***301. Mr Abdul-Fatawu Alhassan (Yendi):** To ask the Minister for Energy and Green Transition the current state of the ongoing rural electrification projects in the following communities: (i) Kpasani (ii) Warikpomo (iii) Pion Kamonaayili (iv) Zakolinyen Bologni Neinbong (v) Oseido (vi) Adoyili (vii) Klunkpanga.

***302. Mr Abdul-Fatawu Alhassan (Yendi):** To ask the Minister for Energy and Green Transition the state of the ongoing rural electrification projects in the following communities: (i) Baaduli (ii) Kpalsogni (iii) Nasal Achiriyili (iv) Jembogni (v) Bunbun Yapala.

***303. Prof Kingsley Nyarko (Kwadaso):** To ask the Minister for Energy and Green Transition the specific interventions the Ministry has taken to reduce the inefficiencies in the power distribution sub-sector of the Ministry.

Presentation of Papers

- a. Annual Statement by the Audit Committee of the Ghana Cylinder Manufacturing Company for the year 2024.

Motions

Committee Sittings

The House Expected to Adjourn Sine Die.

LIST OF REFERRALS PENDING AT COMMITTEES

No.	COMMITTEE	REFERRALS
1.	Finance Committee (7 Referrals)	1. Annual Report on the Petroleum Funds for the 2024 Fiscal Year. 2. Annual Report on the Management of the Energy Sector Levies and Accounts for the Year 2024. 3. Annual Public Debt Management Report for the 2024 Financial Year. 4. Budget Performance Report in Respect of the Ministry of Finance for the Period January to December, 2024. 5. Report of the Finance Committee on the Ghana Cocoa Board (Amendment) Bill, 2025. 6. Ghana Deposit Protection (Amendment) Bill, 2025. 7. Annual Report on Public Private Partnership Projects for the year 2024.
2.	Public Accounts Committee (17 Referrals)	1. Follow-up Report of the Auditor-General on the Three Performance Audits in respect of: Regulating Small-Scale Mining for a Sustainable Environment; Sustainability of Sports Stadia in Ghana; and Administration of Scholarships by the GETFund. 2. Report of the Auditor-General on the Statements of Foreign Exchange Receipts and Payments of the Bank of Ghana (BoG) for the Half-Year Ended 30th June, 2024. 3. Special Audit Report of the Auditor-General on the recoveries made from disallowed expenditure in the Auditor-General's Reports from 2020 to 2023 and payroll savings as at 31st December, 2024. 4. Report of the Auditor-General on the Public Accounts of Ghana: Public Boards, Corporations and other

No.	COMMITTEE	REFERRALS
		Statutory Institutions for the Period Ended 31st December, 2024. 5. Report of the Auditor-General on the Accounts of District Assemblies for the Financial Year ended 31st December, 2024. 6. Performance Audit Report of the Auditor-General on the Availability of Fertilisers to Small Holder Farmers in Ghana. 7. Performance Audit Report of the Auditor-General on the Provision and Maintenance of Toilet Facilities in Public Schools. 8. Report of the Auditor-General on the Management and Utilisation of the District Assemblies' Common Fund (DACF) and Other Statutory Funds for the year ended 31st December, 2024. 9. Report of the Auditor-General on the Management of Petroleum Funds for the Period January to December 2024. 10. Report of the Auditor-General on the Public Accounts of Ghana – Public Universities and Colleges of Education for the Year Ended 31st December, 2024. 11. Report of the Auditor-General on the Public Accounts of Ghana - Ministries, Departments and Other Agencies for the Year Ended 31st December, 2024. 12. Performance Audit Report of the Auditor-General on the Utilisation of GNPC's Share of the Petroleum Revenue on Infrastructure Projects. 13. Performance Audit Report of the Auditor-General on Computerised Financial and Electronic Systems in

No.	COMMITTEE	REFERRALS
		Selected Covered Entities as at 31st December, 2024. 14. Performance Audit Report of the Auditor-General on the Procurement and Management of Medical Equipment in Teaching Hospitals. 15. Report of the Auditor-General on the Public Accounts of Ghana (Whole-of-Government Accounts) for the Year Ended 31st December, 2024. 16. Report of the Auditor-General on the Consolidated Statements of Foreign Exchange Receipts and Payments of the Bank of Ghana (BoG) for the Year Ended 31st December, 2024. 17. Report of the Auditor-General on the Public Accounts of Ghana, Pre-University Educational Institutions for the Financial Year Ended 31st December, 2024.
3.	Committee on Local Government and Rural Development (67 Referrals)	1. Annual report of the District Assemblies Common Fund for the year 2023 2. Annual Statement by the Audit Committee of the Births and Deaths Registry for the year 2024. 3. Annual Statement by the Audit Committee of the Krachi East Municipal Assembly for the year 2024. 4. Annual Statement by the Audit Committee of the Jaman North District Assembly for the year 2024. 5. Annual Statement by the Audit Committee of the Krachi West Municipal Assembly for the year 2024. 6. Annual Statement by the Audit Committee of the Krachi Nchumuru District Assembly for the year 2024.

No.	COMMITTEE	REFERRALS
		7. Annual Statement by the Audit Committee of the Atiwa West District Assembly for the year 2024. 8. Annual Statement by the Audit Committee of the Tema West Municipal Assembly for the year 2024. 9. Annual Statement by the Audit Committee of the Mampong Municipal Assembly for the year 2024. 10. Annual Statement by the Audit Committee of the Jasikan Municipal Assembly for the year 2024. 11. Annual Statement by the Audit Committee of the Juaboso District Assembly for the year 2024. 12. Annual Statement by the Audit Committee of the La Nkwantanang-Madina Municipal Assembly for the year 2024. 13. Annual Statement by the Audit Committee of the Berekum Municipal Assembly for the year 2024. 14. Annual Statement by the Audit Committee of the Ga Central Municipal Assembly for the year 2024. 15. Annual Statement by the Audit Committee of the Tano North Municipal Assembly for the year 2024. 16. Annual Statement by the Audit Committee of the Ministry of Local Government, Decentralisation and Rural Development for the year 2024. 17. Annual Statement by the Audit Committee of the Ga West Municipal Assembly for the year 2024. 18. Annual Statement by the Audit Committee of the Mion District Assembly for the year 2024. 19. Annual Statement by the Audit Committee of the Kadjebi District Assembly for the year 2024.

No.	COMMITTEE	REFERRALS
		20. Annual Statement by the Audit Committee of the Ningo-Prampram District Assembly for the year 2024. 21. Annual Statement by the Audit Committee of the Pru West District Assembly for the year 2024. 22. Annual Statement by the Audit Committee of the Jaman South Municipal Assembly for the year 2024. 23. Annual Statement by the Audit Committee of the Ledzokuku Municipal Assembly for the year 2024. 24. Annual Statement by the Audit Committee of the Atebubu-Amantin Municipal Assembly for the year 2024. 25. Annual Statement by the Audit Committee of the Tema Metropolitan Assembly for the year 2024. 26. Annual Statement by the Audit Committee of the Atebubu-Amantin Municipal Assembly for the year 2024. 27. Annual Statement by the Audit Committee of the Biakoye District Assembly for the year 2024. 28. Annual Statement by the Audit Committee of the Fanteakwa North District Assembly for the year 2024. 29. Annual Statement by the Audit Committee of the New Juaben North Municipal Assembly for the year 2024. 30. Annual Statement by the Audit Committee of the Yilo Krobo Municipal Assembly for the year 2024. 31. Annual Statement by the Audit Committee of the Tatale-Sanguli District Assembly for the year 2024. 32. Annual Statement by the Audit Committee of the Sunyani West Municipal Assembly for the year 2024.

No.	COMMITTEE	REFERRALS
		33. Annual Statement by the Audit Committee of the Gushegu Municipal Assembly for the year 2024. 34. Annual Statement by the Audit Committee of the Nanton District Assembly for the year 2024. 35. Annual Statement by the Audit Committee of the Ayawaso North Municipal Assembly for the year 2024. 36. Annual Statement by the Audit Committee of the Abuakwa North Municipal Assembly for the year 2024. 37. Annual Statement by the Audit Committee of the Ablekuma North Municipal Assembly for the year 2024. 38. Annual Statement by the Audit Committee of the Bosomtwe District Assembly for the year 2024. 39. Annual Statement by the Audit Committee of the Guan District Assembly for the year 2024. 40. Annual Statement by the Audit Committee of the Nsawam/Adoagyiri Municipal Assembly for the year 2024. 41. Annual Statement by the Audit Committee of the Ahanta West Municipal Assembly for the year 2024. 42. Annual Statement by the Audit Committee of the Hohoe Municipal Assembly for the year 2024. 43. Annual Statement by the Audit Committee of the Tolon District Assembly for the year 2024. 44. Annual Statement by the Audit Committee of the Bekwai Municipal Assembly for the year 2024. 45. Annual Statement by the Audit Committee of the Kintampo South District Assembly for the year 2024.

No.	COMMITTEE	REFERRALS
		46. Annual Statement by the Audit Committee of the Ga East Municipal Assembly for the year 2024. 47. Annual Statement by the Audit Committee of the Ashanti Regional Co-ordinating Council for the year 2024. 48. Annual Statement by the Audit Committee of the Afigya Kwabre South District Assembly for the year 2024. 49. Annual Statement by the Audit Committee of the Afigya Kwabre North District Assembly for the year 2024. 50. Annual Statement by the Audit Committee of the Sefwi Akontombra District Assembly for the year 2024. 51. Annual Statement by the Audit Committee of the Ablekuma North Municipal Assembly for the year 2024. 52. Annual Statement by the Audit Committee of the Okere District Assembly for the year 2024. 53. Annual Statement by the Audit Committee of the Shama District Assembly for the year 2024. 54. Annual Statement by the Audit Committee of the Amansie Central District Assembly for the year 2024. 55. Annual Statement by the Audit Committee of the Amansie South District Assembly for the year 2024. 56. Annual Statement by the Audit Committee of the Kwadaso Municipal Assembly for the year 2024. 57. Annual Statement by the Audit Committee of the Asunafo North Municipal Assembly for the year 2024. 58. Annual Statement by the Audit Committee of the Adansi North District Assembly for the year 2024.

No.	COMMITTEE	REFERRALS
		59. Annual Statement by the Audit Committee of the Nkoranza North District Assembly for the year 2024. 60. Annual Statement by the Audit Committee of the Old Tafo Municipal Assembly for the year 2024. 61. Annual Statement by the Audit Committee of the Agona West Municipal Assembly for the year 2024. 62. Annual Statement by the Audit Committee of the Tano South Municipal Assembly for the year 2024. 63. Annual Statement by the Audit Committee of the Sekyere East District Assembly for the year 2024. 64. Annual Statement by the Audit Committee of the Lower Manya Krobo Municipal Assembly for the year 2024. 65. Annual Statement by the Audit Committee of the Birim North District Assembly for the year 2024. 66. Annual Statement by the Audit Committee of the Ayawaso East Municipal Assembly for the year 2024. 67. Annual Statement by the Audit Committee of the Keta Municipal Assembly for the year 2024.
4.	Committee on Public Administration and State Interests (7 Referrals)	1. Annual Report on the Staffing Position of the Office of the President for the Period 1st January to 31st December 2024. 2. Budget Performance Report in respect of Office of the Head of the Civil Service for the Period January to December, 2024 3. Annual Statement by the Audit Committee of the Office of the President for the year 2024 4. Ghana Scholarships Authority Bill, 2025

No.	COMMITTEE	REFERRALS
		5. Annual Statement by the Audit Committee of the Office of the Head of Civil Service for the year 2024. 6. Annual Statement by the Audit Committee of the Office of the President for the year 2024 7. Annual Statement by the Audit Committee of the State Interests and Governance Authority for the year 2024.
5.	Committee on Independent Constitutional Bodies (4 Referrals)	1. Budget Performance Report in Respect of the Audit Service for the Period January to December, 2024 2. Budget Performance Report in Respect of the National Commission for Civic Education for the Period January to December, 2024 3. Budget Performance Report in respect of Office of the Electoral Commission for the Period January to December, 2024 4. Annual Statement by the Audit Committee of the National Commission for Civic Education for the year 2024.
6.	Committee on Lands and Natural Resources (5 Referrals)	1. Annual Report of the Forestry Commission for the Year 2022 2. Budget Performance Report in Respect of the Ministry of Lands and Natural Resources for the Period January to December, 2024 3. Annual Statement by the Audit Committee of the Land Use and Spatial Planning Authority (LUSPA) for the year 2024. 4. Annual Statement by the Audit Committee of the Minerals Commission for the year 2024. 5. Annual Statement by the Audit Committee of the Office of the

No.	COMMITTEE	REFERRALS
		Administrator of Stool Lands for the year 2024.
7.	Committee on Constitutional and Legal Affairs (6 Referrals)	1. Budget Performance Report in respect of the Office of the Attorney-General and Ministry of Justice for the Period January to December, 2024 2. Budget Performance Report in respect of the Office of the Special Prosecutor for the Period January to December, 2024 3. Budget Performance Report in respect of the Legal Aid Commission for the Period January to December, 2024 4. Annual Statement by the Audit Committee of the Architectural and Engineering Services Limited for the year 2024 5. Annual Report of the Right to Information Commission for the year 2024. 6. Annual Statement by the Audit Committee of the Ghana School of Law for the year 2024
8.	Committee on Food, Agriculture and Cocoa Affairs (1 Referral)	1. Budget Performance Report in respect of the Ministry of Fisheries and Aquaculture Development for the Period January to December, 2024
9.	Committee on Youth and Sports (2 Referrals)	1. Budget Performance Report in respect of the Ministry of Youth and Sports for the Period January to December, 2024 2. Report on the 13th African Games, Accra 2023, hosted by Ghana from 3rd - 23rd March, 2024
10.	Committee on Works and Housing (3 Referrals)	1. Budget Performance Report in respect of the Ministry of Works and Housing for the Period January to December, 2024

No.	COMMITTEE	REFERRALS
		2. Annual Statement by the Audit Committee of the State Housing Company for the year 2024. 3. Annual Statement by the Audit Committee of the TDC Ghana Limited for the year 2024.
11.	Committee on Roads and Transportation (3 Referrals)	1. Budget Performance Report in respect of the Ministry of Transport for the Period January to December, 2024 2. Budget Performance Report in respect of the Ministry of Railway Development for the Period January to December, 2024 3. Annual Statement by the Audit Committee of the Volta Lake Transport Company Limited for the year 2024
12.	Committee on Trade, Industry and Tourism (3 Referrals)	1. Budget Performance Report in respect of the Ministry of Trade and Industry for the Period January to December, 2024 2. Annual Statement by the Audit Committee of the Ministry of Trade, Agribusiness and Industry for the year 2024 3. Annual Statement by the Audit Committee of the Ghana Tourism Authority for the year 2024.
13.	Committee on Employment, Labour Relations and Pensions (1 Referral)	1. Budget Performance Report in respect of the Ministry of Employment and Labour Relations for the Period January to December, 2024
14.	Committee on Education (38 Referrals)	1. Annual Statement by the Audit Committee of the Presbyterian College of Education, Akropong-Akuapem for the year 2024 2. Annual Statement by the Audit Committee of the Ghana Communication Technology University for the year 2024 3. Annual Statement by the Audit Committee of the Nusrat Jahan

No.	COMMITTEE	REFERRALS
		Ahmadiyya College of Education for the year 2024 4. Annual Statement by the Audit Committee of the Mount Mary College of Education, Somanya, for the year 2024 5. Annual Statement by the Audit Committee of the Ghana Education Trust Fund (GETFund) for the year 2024 6. University for Development Studies Bill, 2025 7. Ghana Scholarships Authority Bill, 2025 8. Annual Statement by the Audit Committee of the Koforidua Technical University for the year 2024. 9. Annual Statement by the Audit Committee of the OLA College of Education, Cape Coast, for the year 2024. 10. Annual Statement by the Audit Committee of the Accra Technical University for the year 2024. 11. Annual Statement by the Audit Committee of the Kumasi Technical University for the year 2024. 12. Annual Statement by the Audit Committee of the Ada College of Education for the year 2024. 13. Annual Statement by the Audit Committee of the Presbyterian Women's College of Education, Aburi, for the year 2024. 14. Annual Statement by the Audit Committee of the Complementary Education Agency for the year 2024. 15. Annual Statement by the Audit Committee of the University of Education, Winneba, for the year 2024.

No.	COMMITTEE	REFERRALS
		16. Annual Statement by the Audit Committee of the Atebubu College of Education for the year 2024. 17. Annual Statement by the Audit Committee of the University for Development Studies for the year 2024. 18. Annual Statement by the Audit Committee of the Chartered Institute of Bankers, Ghana for the year 2024. 19. Annual Statement by the Audit Committee of the McCoy College of Education for the year 2024. 20. Annual Statement by the Audit Committee of the Enchi College of Education for the year 2024. 21. Annual Statement by the Audit Committee of the SDA College of Education, Asokore, Koforidua for the year 2024. 22. Annual Statement by the Audit Committee of the E.P. College of Education, Bimbilla for the year 2024. 23. Annual Statement by the Audit Committee of the Abetifi Presbyterian College of Education for the year 2024. 24. Annual Statement by the Audit Committee of the University of Media Arts and Communication for the year 2024. 25. Annual Statement by the Audit Committee of the Wiawso College of Education for the year 2024. 26. Annual Statement by the Audit Committee of the St. Louis College of Education for the year 2024. 27. Annual Statement by the Audit Committee of the Komenda College of Education for the year 2024.

No.	COMMITTEE	REFERRALS
		28. Annual Statement by the Audit Committee of the National Schools Inspectorate Authority for the year 2024. 29. Annual Statement by the Audit Committee of the Akrokerri College of Education for the year 2024. 30. Annual Statement by the Audit Committee of the Takoradi Technical University for the year 2024. 31. Annual Statement by the Audit Committee of the Ghana Science Association for the year 2024. 32. Annual Statement by the Audit Committee of the Ho Technical University for the year 2024. 33. Annual Statement by the Audit Committee of the Peki College of Education for the year 2024. 34. Annual Statement by the Audit Committee of the University of Health and Allied Sciences for the year 2024. 35. Annual Statement by the Audit Committee of the St Francis College of Education for the year 2024. 36. Annual Statement by the Audit Committee of the University of Mines and Technology for the year 2024. 37. Annual Statement by the Audit Committee of the Mampong Technical College of Education for the year 2024. 38. Annual Statement by the Audit Committee of the Students Loan Trust Fund for the year 2024.
15.	Committee on Gender, Children and	1. Social Welfare on the Social Protection Bill, 2025

No.	COMMITTEE	REFERRALS
	Social Welfare (2 Referrals)	2. Annual Statement by the Audit Committee of the Ministry of Gender, Children and Social Protection for the year 2024.
16.	Committee on Subsidiary Legislation (6 Referrals)	1. Environmental Protection (Refrigeration and Air Conditioning Certification) Regulations, 2025 2. Environmental Protection (Environmental Assessment) Regulations, 2025 3. Environmental Protection (Management of Ozone Depleting Substances, Halocarbons, Halocarbon Alternatives and their Products) Regulations, 2025 4. Environmental Protection (Effluent) Regulations, 2025 5. Environmental Protection (Air Quality Management) Regulations, 2025 6. Environmental Protection (Petroleum) Regulations, 2025
17.	Committee on Health (4 Referrals)	1. Annual Statement by the Audit Committee of the University of Ghana Medical Centre for the year 2024. 2. Annual Statement by the Audit Committee of the Food and Drug Authority for the year 2024. 3. Annual Statement by the Audit Committee of Nurses' Training College, Pantang for the year 2024. 4. Annual Statement by the Audit Committee of the Centre for Plant Medicine Research for the year 2024.
18.	Committee on Energy (8 Referrals)	1. Annual Statement by the Audit Committee of the National Petroleum Authority for the year 2024. 2. Annual Statement by the Audit Committee of the Volta River Authority for the year 2024.

No.	COMMITTEE	REFERRALS
		3. Annual Statement by the Audit Committee of the Bui Power Authority for the year 2024. 4. Annual Statement by the Audit Committee of the Petroleum Hub Development Corporation for the year 2024. 5. Annual Statement by the Audit Committee of the Ghana Grid Company Limited for the year 2024. 6. Annual Statement by the Audit Committee of the Northern Electricity Distribution Company for the year 2024. 7. Annual Statement by the Audit Committee of the Electricity Company of Ghana for the year 2024. 8. Annual Statement by the Audit Committee of the Ghana National Gas Company for the year 2024.
19.	Committee on Chieftaincy, Culture and Religious Affairs (1 Referral)	1. Annual Statement by the Audit Committee of the National Theatre of Ghana for the year 2024.
20.	Committee on Defence and Interior (3 Referrals)	1. Annual Statement by the Audit Committee of the Ghana National Fire Service for the year 2024. 2. Annual Statement by the Audit Committee of the Ghana Prisons Service for the year 2024. 3. Annual Statement by the Audit Committee of the Gaming Commission of Ghana for the year 2024.

Mr Second Deputy Speaker: Very well. Hon Members, the Business Statement for next week has been read to us. I will invite comments and issues any Member would like to raise with respect to the Statement that has been read to us by the Majority Chief Whip.

Yes, Minority Chief Whip?

Minority Chief Whip (Mr Frank Annoh-Dompreh): Yes, Mr Speaker, thank you for the opportunity. Let me commend my Friend, the Majority Chief Whip, for standing in the stead of the Chair of the Business Committee.

Mr Speaker, I have a few issues. The first one has to do with the number of Questions proposed to be asked. I do not find it impressive enough, and I say this in a context. I am aware of the endless number of letters that Ministers have written to this House, asking for Questions to be reprogrammed. So as a result of that, it has led to a number of the Questions standing in arrears, a number of them.

Now, on the average, we have often done 45 Questions for a week. I am struggling to understand why we have 21 people with all the outstanding. What it means is that most of the outstanding Questions would have been left out.

6.54 p.m.

So, may I pray my Friend to be a bit flexible and look at the key outstanding Questions that are left out. Then, we can rope them in and upgrade the 21 Questions proposed to be asked for the

ensuing week. I think they have a very valid point and besides, we will be rising, and Members will not have the opportunity until we return.

I think it was a decision we took that we should list the outstanding referrals. From the time we took that decision up to now, I have not seen any improvement. It is either getting more or static and we have often put the pressure on the Majority Leader alone.

Mr Speaker, I invite you to Order 232 of our Standing Orders. Order 232 is on the Committee on Ways and Means and among the functions of the Committee, it says, and I am particularly interested in (e) and (h),

“(2) The Committee shall

(e) determine the resource requirement and the formula for the allocation of funds to Committees;

(h) ensure that Committees submit reports as required by law.”

So, in all these, we often say that the Majority Leader shall ensure that they are programmed among others and we put all the pressure on our Colleague. Interestingly, the Committee on Ways and Means is chaired by the Deputy Majority Leader, so the Majority Chief

Whip may have to bring this to his notice. I am also a Member, but he is the head, so, he should, please, bring it to his notice.

Mr Speaker, on committee composition, we are rising on Friday. We are still in defiance of Order 208. If you will permit me, I will take you to Order 208:

“Compulsory membership of Committees.

A Member shall be appointed to at least one Standing Committee and one Select Committee.”

We still stand in defiance. On our Side, I am aware of about eight Members who were only on a Committee, so we have kind of done the recomposition and I know my Brother and Colleague has also done his. We have to either take a Motion on the Floor or if it has to be done administratively, the Speaker must direct because it is under the purview of the Select Committee which is chaired by the Speaker. So, I bring this to the notice of my respected Whip to take some action on this matter.

Mr Speaker, I invite you to rule on this matter. The Clerks-at-the-Table go through a Motion of preparing Ministers to appear to answer Questions. And we often receive letters from the Ministers saying that they cannot appear and as a result, they write the letters and that is all. The ideal situation should be where a Minister is programmed to come and do Business, that is, answer a Question or do

parliamentary Business—I concede that there will be times the Minister may be constrained, but the Minister must write to Parliament for the Parliament to grant that request.

That should be the jurisprudence. The Minister must write to Parliament and Parliament must grant that request before the Minister can decide not to show up. It cannot be the case that the Minister—We are an arm of government and so are they. So, they should treat it with respect. So, I will invite your kind directives on this matter. I have missed the Minister for Lands and Natural Resources; today he is here. I propose, for instance, if the Minister for Lands and Natural Resources writes that for some reason he is in Asankragua or some part of the Western Region fighting *galamsey*, which he is very committed to doing, he must wait on Parliament before he decides not to show up.

Mr Speaker, you need to give your directive and I invite your kind direction in this matter. Parliament must be respected. This is the representative of the people. They cannot just write and say they would not come. In situations where they cannot come, they must work closely with the Whips. I hope the Deputy Minister for Works, Housing and Water Resources, Hon Gizella, is listening.

Mr Speaker, these are matters I think we should all bring our minds to. Let me conclude on a very sad note. Today, our Colleague related a sad matter: the killings of innocent citizens. Mr Speaker, I say this with a heavy heart. We have

been reading news of people going missing and the next day or two, their bodies are found. We have read a number of them. I can cite them, but it is a national security matter and I need to be cautious and careful how I relate to it.

Mr Speaker, I want to come under Order 60 and pray you that we invite the Minister for the Interior, not to meet us at Plenary but at a Closed Sitting for him to brief us. Yesterday, we had two killings again in the Ashanti Region. Even today, it has happened again. We may also have some good suggestions. We are representing various constituencies and Members of Parliament may be carrying unique and diverse information, which could be made available to aid the work and operation of the Minister.

So, I think this is a matter we cannot, as the representative people, gloss over and I pray that, Mr Speaker, you invite the Minister for the Interior to meet Colleagues at a Closed Sitting. We have, for the avoidance of doubt, I will read if you permit me. Order 60 says—

Mr Second Deputy Speaker: I have read the Closed Sitting of the House myself, but we are dealing with the Business Statement. So, whatever suggestions you are coming up with should go to the Leader of the House, for now, because he has come out with a programme for next week. So, if you want him to bring something on board, let us address it to him and when he responds that we can accommodate this or not, then we can discuss it.

Mr Annoh-Dompreh: Mr Speaker, I am respectfully guided. So, I bring it to the notice of the Majority Chief Whip for direction in this matter.

Mr Kwame Dzudzorli Gakpey: Mr Speaker, the Minority Chief Whip invited you to rule on the appearance of the Ministers. Although it is a good call, I would like to know your guidance in terms of Ministers writing to indicate their unavoidable absence. That was the language we heard for eight good years.

For four years, I have been in this Chamber; that is the language I have been hearing. What is emanating from the departure from that letter where Ministers have to rewrite back to Parliament to justify their unavoidable absence? I would also like you to rule on that.

Mr Second Deputy Speaker: Nowadays, everything is pushed to the Speakers to rule. Yes, let me invite the Minister for Lands and Natural Resources.

Mr Emmanuel Armah-Kofi Buah: Mr Speaker, I was listening attentively to the Minority Chief Whip. As you know, the work of Ministers, necessarily, often requires that they attend to a lot of different functions across the country and internationally.

7.04 p.m.

So, it will obviously happen that Ministers may be outside the jurisdiction and that is why there is a protocol to write to Parliament that they will be

absent and it is always very important. Often when they write to the Clerk to Parliament, the Chief Director will communicate and agree on a convenient time. That has always been the protocol, so I think that we cannot depart from that. Because *aban papa aba nti*, as Dr Ato said, we are consistently here answering Questions—

Mr Second Deputy Speaker: What do you mean by *aban papa*?

Mr Buah: Good governance led by President John Dramani Mahama—*[Hear! Hear!]*—And, obviously, because of that we are very mindful that we have to attend to Parliament diligently. Not too long ago, we were not even getting letters from Ministers. They did not even write and we were here. It was very interesting that the Minority Chief Whip, who was expressing frustration at the time—And now I know he is so happy that he has access to Ministers. We are at his disposal 24 hours a day. Just today, he has called me three times or have you not called me—*[Laughter]*—We are at his disposal and are ready to serve. We understand the importance of Parliament, so I wanted to say that let us keep the old protocol. But we have been directed by the President that we must be responsive to Parliament and that is exactly what we will do.

Mr Second Deputy Speaker: Chief Whip, let me listen to the Deputy Minister for Works, Housing and Water Resources first.

Mrs Gizella Akushika Tetteh-Agbotui: Mr Speaker, I just want to

bring a small issue to your attention. I have complained privately, but I think that when we do that and no action is taken, then we have to bring it to the fore. Some of the tablets we have in front of us are not working and as we go on recess, my prayer is that they will finally be fixed. So, that we can access the documents because when one sits there and it is not working, the person has to move to somebody's seat or stretch across or do otherwise and this is where we read them now.

We do not often get hard copies, so if we do not get to read it or do not come at a particular time, one misses out on all the information, the Reports and all that is here. So, please, I have had to complain here officially, but I have done it in private and it is not taking effect. These also have warranty; we should remember they are delicate, so they have warranty. If we wait for the warranty to run out, they are going to go against us. So, please, if that can be taken into consideration.

Mr Second Deputy Speaker: Yes, Chief Whip, let us listen to Hon Member, so that you address them once and for all.

Mr Daniel Nana Addo-Kenneth: Mr Speaker. Mine is also on the issue that I have constantly been raising with the utilisation of the technology that has been given in terms of supply of papers and documents.

Mr Speaker, it is not just enough for Papers to be placed on the console because Papers placed on the console leaves the next day. It is also equally

important that, as they place the Papers and the documents on the console, they will also forward them to the e-mails that they have created for us, so that we can have copies of them.

Most of the time, apart from the Order Paper and the *Votes and Proceedings*, Members hardly get a lot of these Papers that are laid here and the circulation is not enough. So, I urge that as we go on recess, the IT Department will be put on edge, so that when we resume, they can place copies of Papers in our e-mails, so we can have permanent copies for references.

Mr Dafeamekpor: Mr Speaker, let me thank Members for their comments, particularly comments from the Minority Chief Whip in respect of the following: now, it is to remedy the situation that we bill Ministers of State to come at appointed times to answer Questions, which often takes two to three hours, even though Question time is one hour. Now, if we bill them to come and some urgent Businesses take priority over the appointed time for them, it disrupts their day. So, it is also to avoid a situation where we appoint time for Ministers and it clashes with other prior engagements. So, we decided that, for next week, we will slate Questions for Ministers who are available, so we do not get to him to complain.

We want to get Ministers who are available for next week to come and deal with their Questions in order not to fall foul of the Minority. Yes, these ones will appear and respond to the Questions; we do not want to do that, but I agree that if

we can accommodate—These are proposed Business for next week; we are yet to adopt.

Mr Speaker, luckily, the Deputy Clerk is the clerk to the Committee, so we will look at considering which other Ministers are available next week. We can accommodate a couple more, so that they can come.

Mr Speaker, I agree that because of how fluid Business is in the last days, especially when we are going on recess like this, some Questions do not get answered. So, they get buried and, eventually, even though they are advertised, we do not get Ministers to come. So, we may have to streamline that process as well. Now, the issue of the referrals, it is important that, like we considered at the Committee, we advertise them, so that the respective Committee leadership wake up to their responsibility. We are also not in breach of Order 208 that the Minority Chief Whip highlighted on.

So, the Committees are well-structured now. We may have to get the Chairman for the Committee on Ways and Means to send reminders to Committee leaderships, exhibiting to the reminder notice, details of the referrals and how long the referrals have been with these Committees. So, that he will prompt them and whip those Committee leaders to make sure they take action on the referrals, so it is well-noted.

Mr Speaker, on the issue about the finalising the composition of the

Committees, the Minority Chief Whip and I are the busiest; we do not get to sleep early because of works like this, but we have done our work, including finalising the sitting arrangements, so Members can have their permanent sitting places, so that when they come into the Chamber, they know that these are their seat. These are two of the major things that we need to conclude before we come back: the sitting arrangements, as well as the Committee issues.

So, we would finalise with the Speaker, whether he will give directive that it should be done administratively or we will carry it by a simple Motion on the Floor to see through the amendments, especially also because the last batch of the Ministerial appointments gives us opportunity to make some last minutes or the last adjustment. Because some, if one is a Deputy Minister for Transport, the person may not have to sit on the Committee on Roads and Transportation, so we have a window to make those last-minute adjustments.

With the issue of rescheduling, my Brother, Mr Annoh-Dompreh, I do not think we can construe it as a means of disrespect of Parliament. It is a matter of the exigencies and they can only write.

7.14 p.m.

But the difficulty I have is the demand that when a Minister pleads for rescheduling, that leave must come from Parliament before it is granted. It may never be granted, you know how things work. So, I will plead that, like the new model we have adopted, we will confirm

which Ministers will be available for the ensuing week and then we will list their Questions so they can attend to the House and answer them. I am sure that will reduce the number of rescheduled letters that you get.

Then the issue of the killings— Yes, as a House, the issues have been raised. Mr Speaker, like we do, the issues are raised, comments are made, and referrals are made to Committees, and they come back, oftentimes to all ends. So, we may indeed have a way of reviewing how we handle some of these matters such that when there is a matter of national concern and Parliament's attention is engaged, how do we handle it? We do not have budget for some of these things. So, we will continue to encourage Members to raise the issues so that they attract national attention. That is the only way as Parliament we can ventilate the matters as they occur in our respective constituencies.

Then, Hon Gizella raised the issue of the consoles not working. Yes, I agree. Initially, there were a couple of them — that was why they were doing a test run. But Mr Speaker, over time, we have discovered that somehow, in the category of those that are not functioning, we are getting to see a lot more.

So, I believe the Leadership and the head of the Parliamentary Service will take note of the concerns raised by Members so that replacements can be done before we come back for its full roll out.

As to adding emails if we are sending information, well, it is regular. So, we will take note of it and add that, while information is posted onto the consoles and we are also getting hard copies, emails of Members as provided to the ICT Department will also be used to send a lot of the documents that go wrong.

Mr Speaker, the issue of the Minister responsible for the Interior and National Security coming to brief the House next week at Closed Sitting, next week is tight, but we need to— Let me engage him and see his availability, that this matter has engaged Parliament and it is very necessary and urgent that he comes to brief the House. But I do not want a situation where he will be invited and there will be an excuse. So let us get his availability. We have only next week to do this. So let me get a specific date and get back to you.

Mr Speaker, I thank Members for the concerns that they have raised.

Mr Second Deputy Speaker: Thank you very much. You want to raise an issue? I think the Majority Chief Whip has responded to almost everything.

With respect to the Deputy Minister for Works and Housing, I think he has responded to your issue but what I know is that at any point in time, two of the microphones can work. Initially, they did it three or even beyond that, but they realised people were abusing it. While somebody is trying to speak, another person is also—So we have restricted it to only two. So, the Speaker's microphone will always be on and the

other one is the one the Speaker has given permission to speak. So, it is only two that at any point in time can work. That is the way they have programmed it for now, because we do not want it to be abused. If we make it three, once you are speaking, somebody will also be—It is not working. The ones which are not working, I think the Majority Chief Whip has already spoken to it. By the time you come, I think the administration will look at all those ones.

On that note, I will put the Question for the adoption of the—I think we have done justice to it. The Business Statement for the next week ahead of us is hereby adopted.

Question put and Motion agreed to.

Mr Dafeamekpor: Mr Speaker, clearly, we have done enough for the day, today being Friday, and we want to thank the Minority Leadership for the support. We thank them. It is not every day that we—

Mr Second Deputy Speaker: Why Minority Leadership? Thank all of us.

Mr Dafeamekpor: Mr Speaker, I will do that. But let me thank the Minority Leadership and the Minority for—It is not every day that we litigate.

As for the Majority, yes, thank you; gratitude. And Mr Speaker, to the two of you, your good self and the First Deputy Speaker, we thank you so much. Today, we thought that Business would be lighter, but it was so heavy. So, thank you.

Table Office, gratitude as always. The security men and media, we thank all of you, and we wish you a fruitful weekend and a restful one.

Back Benchers, have a restful weekend. [*Hear! Hear!*]

Mr Speaker, on this note, we are in your hands. We are entirely in your hands.

Mr Second Deputy Speaker: I will also thank you for thanking all of us.

Hon Members, as you have been informed, we are coming on Monday, 28th July, 2025 at two o'clock in the afternoon.

The House is accordingly adjourned.

ADJOURNMENT

The House was adjourned at 7.22 p.m. till Monday, 28th July, 2025 at 2.00 p.m.

